

**CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
LOS ANGELES REGION**

320 West 4th Street, Suite 200, Los Angeles, California, 90013

Phone (213) 576-6600 • Fax (213) 576-6640

[Los Angeles Regional Water Quality Control Board Website](http://www.waterboards.ca.gov/losangeles)

(<http://www.waterboards.ca.gov/losangeles>)

**ORDER NO. R4-2025-0272
NPDES NUMBER CA0064726**

**WASTE DISCHARGE REQUIREMENTS AND
NATIONAL POLLUTANT DISCHARGE ELIMINATION SYSTEM PERMIT
FOR THE CITY OF VENTURA, VENTURA WATER RECLAMATION FACILITY
DISCHARGE TO THE PACIFIC OCEAN VIA OUTFALL 002**

The following Discharger is subject to state waste discharge requirements (WDRs), as set forth in this Order:

Table 1. Discharger Information

Discharger	City of Ventura (Permittee or Discharger)
Name of Facility	Ventura Water Reclamation Facility (Ventura WRF or Facility) and its associated wastewater collection system for Discharge Point 002 (Pacific Ocean)
Facility Address	1400 Spinnaker Drive Ventura, CA 93001 Ventura County

Table 2. Discharge Location

Discharge Point	Effluent Description	Discharge Point Latitude (North)	Discharge Point Longitude (West)	Receiving Water
002	Tertiary treated effluent and/or reverse osmosis concentrate	34.253103°N	119.290653°W	Pacific Ocean

Table 3. Administrative Information for State Order

This Order was adopted on:	December 18, 2025
This Order shall become effective on:	December 18, 2025
This Order shall expire on:	December 17, 2030
The Discharger shall file a Report of Waste Discharge as an application for reissuance of WDRs in accordance with title 23, California Code of Regulations, and an application for reissuance of a National Pollutant Discharge Elimination System (NPDES) permit no later than:	180 days prior to the Order expiration date.
The U.S. Environmental Protection Agency (USEPA) Region 9 and the California Regional Water Quality Control Board, Los Angeles Region have classified this discharge as follows:	Major

I, Susana Arredondo, Executive Officer, do hereby certify that this Order with all attachments is a full, true, and correct copy of the Order adopted by the California Regional Water Quality Control Board, Los Angeles Region, on the date indicated above.

 Digitally signed by Jenny Newman
Date: 2025.12.26 13:26:01 -08'00'
Water Boards

for Susana Arredondo, Executive Officer

TABLE OF CONTENTS

1. FACILITY INFORMATION	5
2. FINDINGS	5
3. DISCHARGE PROHIBITIONS	6
4. EFFLUENT LIMITATIONS, PERFORMANCE GOALS, AND DISCHARGE SPECIFICATIONS	7
4.1. Effluent Limitations and Performance Goals – Discharge Point 002 (Pacific Ocean)	7
4.1.1. Final Effluent Limitations and Performance Goals – Discharge Point 002 ..	7
4.1.2. Interim Effluent Limitations – Not Applicable	12
4.2. Land Discharge Specifications –Not Applicable	12
4.3. Recycling Specifications.....	12
5. RECEIVING WATER LIMITATIONS – NOT APPLICABLE	13
6. PROVISIONS	13
6.1. Standard Provisions	13
6.2. Monitoring and Reporting Program (MRP) Requirements.....	17
6.3. Special Provisions.....	17
6.3.1. Reopener Provisions	17
6.3.2. Special Studies, Technical Reports and Additional Monitoring Requirements	18
6.3.3. Best Management Practices and Pollution Prevention	19
6.3.4. Construction, Operation and Maintenance Specifications	21
6.3.5. Special Provisions for Publicly Owned Treatment Works (POTWs)	22
6.3.6. Spill Reporting Requirements for POTWs	24
6.3.7. Other Special Provisions – Not Applicable	29
6.3.8. Compliance Schedules – Not Applicable.....	29
7. COMPLIANCE DETERMINATION	29

TABLE OF TABLES

TABLE 1. DISCHARGER INFORMATION	1
TABLE 2. DISCHARGE LOCATION	1
TABLE 3. ADMINISTRATIVE INFORMATION FOR STATE ORDER.....	2
TABLE 4. FINAL EFFLUENT LIMITATIONS FOR DISCHARGE POINT 002	7

TABLE OF ATTACHMENTS

ATTACHMENT A – DEFINITIONS.....A-1

ATTACHMENT B 1 – MAP OF VENTURA WRF SURROUNDING AREA AND
DISCHARGE POINTS 001 AND 002B-1

ATTACHMENT B 2 – VENTURA WRF MONITORING LOCATIONSB-2

ATTACHMENT C 1 – CURRENT PROCESS FLOW DIAGRAM OF VENTURA WRFC-1

ATTACHMENT C2 – FUTURE PROCESS FLOW DIAGRAM OF VENTURA WRF ... C-2

ATTACHMENT D – STANDARD PROVISIONS D-1

ATTACHMENT E – MONITORING AND REPORTING PROGRAM.....E-1

ATTACHMENT F – FACT SHEET F-1

ATTACHMENT G – TOXICITY REDUCTION EVALUATION (TRE) WORK PLAN..... G-1

ATTACHMENT H – BIOSOLIDS AND SLUDGE MANAGEMENT H-1

ATTACHMENT I – PRETREATMENT REPORTING REQUIREMENTS..... I-1

1. FACILITY INFORMATION

This Order regulates the Ventura Water Reclamation Facility's (Ventura WRF or Facility) discharge to the Pacific Ocean only. The Facility is also separately regulated under Order No. R4-2020-0024, NPDES NO. CA0053651 Waste Discharge Requirements and NPDES permit for the Ventura Water Reclamation Facility Discharge to the Santa Clara River Estuary Via Wildlife Ponds ("Estuary Discharge Permit"). Information describing the Facility's operations covered by the Order is summarized on the cover page and in sections 1 and 2 of the Fact Sheet (Attachment F). Section 1 of the Fact Sheet also includes information regarding the Facility's permit application.

2. FINDINGS

The California Regional Water Quality Control Board, Los Angeles Region (Los Angeles Water Board) finds:

- 2.1. **Legal Authorities.** This Order serves as waste discharge requirements (WDRs) pursuant to article 4, chapter 4, division 7 of the California Water Code (Water Code) (commencing with section 13260). This Order is also issued pursuant to section 402 of the federal Clean Water Act (CWA) and implementing regulations adopted by the USEPA and chapter 5.5, division 7 of the Water Code (commencing with section 13370). It shall serve as a National Pollutant Discharge Elimination System (NPDES) permit authorizing the Discharger to discharge into waters of the United States at the discharge location described in Table 2 subject to the WDRs in this Order.
- 2.2. **Background and Rationale for Requirements.** The Los Angeles Water Board developed the requirements in this Order based on information submitted as part of the application, through monitoring and reporting programs, and other available information. The Fact Sheet (Attachment F), which contains background information and rationale for the requirements in this Order, is hereby incorporated into and constitutes Findings for this Order. Attachments A through E, G, H, and I are also incorporated into this Order.
- 2.3. **Provisions and Requirements Implementing State Law.** The provisions/requirements implementing state law are not required or authorized under the federal CWA; consequently, violations of these provisions/requirements are not subject to the enforcement remedies that are available for NPDES violations.
- 2.4. **Notification of Interested Parties.** The Los Angeles Water Board has notified the Discharger and interested agencies and persons of its intent to prescribe WDRs and NPDES permit requirements for the discharge and has provided them with an opportunity to submit their written comments and recommendations. Details of the notification are provided in the Fact Sheet.

- 2.5. **Consideration of Public Comment.** The Los Angeles Water Board, in a public meeting, heard and considered all comments pertaining to this Order. Details of the public meeting are provided in the Fact Sheet.

THEREFORE, IT IS HEREBY ORDERED that in order to meet the provisions contained in division 7 of the CWC (commencing with section 13000) and regulations adopted thereunder, and the provisions of the CWA and regulations and guidelines adopted thereunder, the Permittee is authorized to discharge from the identified facility and outfall into the Pacific Ocean and shall comply with the requirements in this Order. Nothing in this Order is intended to supersede the requirements in the Estuary Discharge Permit, Order No R4-2020-0024 (NPDES No. CA0053651). If there is any conflict between requirements stated in this Order and provisions stated in the Estuary Discharge Permit, Order No. R4-2020-0024 (NPDES No. CA0053651), the more stringent requirements will prevail.

3. DISCHARGE PROHIBITIONS

- 3.1. The discharge of any radiological, chemical, or biological warfare agent or high-level radioactive waste is prohibited.
- 3.2. Discharge to designated Areas of Special Biological Significance is prohibited.
- 3.3. Pipeline discharge of sludge to the ocean is prohibited by federal law. The discharge of municipal and industrial waste sludge directly to the ocean, or into a waste stream that discharges to the ocean, is prohibited by the California Ocean Plan. The discharge of sludge digester supernatant directly to the ocean, or to a waste stream that discharges to the ocean without further treatment, is prohibited.
- 3.4. The bypass or overflow of untreated wastewater or wastes to surface waters or surface water drainage courses is prohibited, except as allowed in Standard Provision 1.7 of Attachment D, Standard Provisions.
- 3.5. Discharge of treated wastewater at a location different from that described in this Order is prohibited, unless authorized under a separate NPDES permit.
- 3.6. The discharge of trash to surface waters of the State is prohibited.
- 3.7. The monthly average dry weather discharge flow rate from the Facility to the ocean shall not exceed 10 MGD. The discharge to the ocean shall be limited to tertiary-treated effluent from the Ventura WRF and reverse osmosis concentrate produced at the City of Ventura's Advanced Water Purification Facility (AWPF).
- 3.8. The discharge of any waste resulting from the combustion of toxic or hazardous wastes to any waste stream that ultimately discharges to water of the United States is prohibited, unless specifically authorized elsewhere in this Order.

4. EFFLUENT LIMITATIONS, PERFORMANCE GOALS, AND DISCHARGE SPECIFICATIONS

4.1. Effluent Limitations and Performance Goals – Discharge Point 002 (Pacific Ocean)

Effluent limitations for Discharge Point 002 are specified below.

Performance goals for Discharge Point 002 are also prescribed below in this Order. Performance goals are based upon actual performance data, test method minimum levels, Ocean Plan water quality objectives, and effluent limits, and are specified only as an indication of the treatment efficiency of the Ventura WRF (Refer to Fact Sheet section 5). Performance goals are not enforceable values but are used to evaluate the Facility's treatment efficiency. The Discharger shall maintain, if not improve, the effluent quality at or below the performance goal concentrations. Any two consecutive exceedances of a single performance goal shall trigger an investigation into the cause of the exceedance. If the exceedance persists in three successive monitoring periods, the Discharger shall submit a written report to the Los Angeles Water Board on the nature of the exceedance, the results of the investigation including the cause of the exceedance, the corrective actions taken, any proposed corrective measures, and a timetable for implementation, if necessary.

4.1.1. Final Effluent Limitations and Performance Goals – Discharge Point 002

- a. The Discharger shall maintain compliance with the following effluent limitations in Table 4 for Discharge Point 002 into the Pacific Ocean, with compliance measured at Monitoring Location EFF-002 as described in the Monitoring and Reporting Program (MRP), Attachment E. Performance goals are only applicable to tertiary-treated wastewater (not reverse osmosis concentrate or mixed tertiary-treated flow and reverse osmosis concentrate) because they are based on actual performance data, which doesn't reflect the quality of reverse osmosis concentrate because it is a byproduct of the proposed Advanced Water Purification Plant treatment process.

Table 4. Final Effluent Limitations for Discharge Point 002

Parameter	Units	AMEL	AWEL	MDEL	Instan. Max.	Performance Goal	Notes
Biochemical Oxygen Demand (BOD ₅ 20°C)	mg/L	20	30	45	--	--	a
BOD ₅ 20°C	lbs/day	1,670	2,500	3,750	--	--	a, b
Total Suspended Solids (TSS)	mg/L	15	40	45	--	--	a, f

Parameter	Units	AMEL	AWEL	MDEL	Instan. Max.	Performance Goal	Notes
TSS	lbs/day	1,250	3,340	3,750	--	--	a, b
Oil and Grease	mg/L	25	40	--	75	--	a, c
Oil and Grease	lbs/day	2,090	3,340	--	6,260	--	a, b, c
Settleable Solids	mL/L	1.0	1.5	--	3.0	--	a, c
Turbidity	NTU	75	100	--	225	--	a, c
<i>Enterococcus</i>	MPN or CFU/100 mL	--	30	110	--	--	g
Fecal coliform	MPN or CFU/100 mL	200	--	--	400	--	c, g
Total Coliform	MPN or CFU/100 mL	70	--	230	--	--	--
Arsenic	µg/L	--	--	--	--	1.1	d
Cadmium	µg/L	--	--	--	--	1	d
Total Chromium	µg/L	--	--	--	--	1.3	d
Copper	µg/L	--	--	--	--	2.0	d
Lead	µg/L	--	--	--	--	0.37	d
Mercury	µg/L	--	--	--	--	0.01	d
Nickel	µg/L				--	3.5	d
Selenium	µg/L	--	--	--	--	5.2	d
Silver	µg/L	--	--	--	--	0.82	d
Zinc	µg/L	--	--	--	--	38.9	d
Cyanide	µg/L	--	--	--	--	9.7	--
Chlorine Residual	mg/L	--	--	--	--	0.07	--
Ammonia as N	mg/L	--	--	--	--	2.8	--

Parameter	Units	AMEL	AWEL	MDEL	Instan. Max.	Performance Goal	Notes
Phenolic compounds (non-chlorinated)	µg/L	--	--	--	--	5	e
Phenolic compounds (chlorinated)	µg/L	--	--	--	--	5	e
Endosulfans	µg/L	--	--	--	--	0.05	e
Endrin	µg/L	--	--	--	--	0.05	--
Hexachlorocyclohexane (HCH)	µg/L	--	--	--	--	0.025	e
Chronic toxicity <i>Atherinops affinis</i>	TUc	--	--	104	--	--	a
Acrolein	µg/L	--	--	--	--	10	--
Antimony	µg/L	--	--	--	--	0.6	--
Bis (2-chloroethoxy) methane	µg/L	--	--	--	--	25	--
Bis (2-chloro-isopropyl) ether	µg/L	--	--	--	--	10	--
Chlorobenzene	µg/L	--	--	--	--	2.5	--
Chromium (III)	µg/L	--	--	--	--	0.42	--
Di-n-butyl-phthalate	µg/L	--	--	--	--	50	--
Dichlorobenzenes	µg/L	--	--	--	--	2.5	--
Diethyl phthalate	µg/L	--	--	--	--	10	--
Dimethyl phthalate	µg/L	--	--	--	--	10	--
2-Methyl-4,6-dinitrophenol	µg/L	--	--	--	--	25	--
2,4-Dinitrophenol	µg/L	--	--	--	--	25	--
Ethylbenzene	µg/L	--	--	--	--	2.5	--
Fluoranthene	µg/L	--	--	--	--	0.25	--
Hexachlorocyclopentadiene	µg/L	--	--	--	--	25	--
Nitrobenzene	µg/L	--	--	--	--	5	--
Thallium	µg/L	--	--	--	--	5	d
Toluene	µg/L	--	--	--	--	2.5	--
Tributyltin	µg/L	--	--	--	--	--	--
1,1,1-Trichloroethane	µg/L	--	--	--	--	2.5	--

Parameter	Units	AMEL	AWEL	MDEL	Instan. Max.	Performance Goal	Notes
Acrylonitrile	µg/L	--	--	--	--	10	--
Aldrin	µg/L	--	--	--	--	0.025	--
Benzene	µg/L	--	--	--	--	2.5	--
Benzidine	µg/L	--	--	--	--	25	--
Beryllium	µg/L	--	--	--	--	2.5	d
Bis (2-chloroethyl) ether	µg/L	--	--	--	--	5	--
Bis (2-ethylhexyl) phthalate	µg/L	--	--	--	--	25	--
Carbon tetrachloride	µg/L	--	--	--	--	2.5	--
Chlordane	µg/L	--	--	--	--	0.5	e
Chlorodibromomethane	µg/L	--	--	--	--	8.9	--
Chloroform	µg/L	--	--	--	--	10	--
DDT	µg/L	--	--	--	--	0.25	e
1,4-Dichlorobenzene	µg/L	--	--	--	--	2.5	--
3,3'dichlorobenzidine	µg/L	--	--	--	--	25	--
1,2-Dichloroethane	µg/L	--	--	--	--	2.5	--
1,1-Dichloroethylene	µg/L	--	--	--	--	2.5	--
Dichloromethane	µg/L	--	--	--	--	2.5	--
1,3-Dichloropropene	µg/L	--	--	--	--	25	--
Dieldrin	µg/L	--	--	--	--	0.05	--
2,4-Dinitrotoluene	µg/L	--	--	--	--	25	--
1,2-Diphenylhydrazine	µg/L	--	--	--	--	5	--
Halomethanes	µg/L	--	--	--	--	3.9	e
Heptachlor	µg/L	--	--	--	--	0.05	--
Heptachlor epoxide	µg/L	--	--	--	--	0.05	--
Hexachlorobenzene	µg/L	--	--	--	--	5	--
Hexachlorobutadiene	µg/L	--	--	--	--	5	--
Hexachloroethane	µg/L	--	--	--	--	5	--
Isophorone	µg/L	--	--	--	--	5	--
N-Nitrosodimethylamine	µg/L	--	--	--	--	25	--

Parameter	Units	AMEL	AWEL	MDEL	Instan. Max.	Performance Goal	Notes
N-Nitrosodi-N-propylamine	µg/L	--	--	--	--	25	--
N-Nitrosodiphenylamine	µg/L	--	--	--	--	5	--
PAHs	µg/L	--	--	--	--	10	--
PCBs as aroclors	µg/L	--	--	--	--	2.5	a, e
TCDD equivalents	pg/L	--	--	--	--	0.0005	a, e
1,1,2,2-Tetrachloroethane	µg/L	--	--	--	--	2.5	--
Tetrachloroethylene	µg/L	--	--	--	--	2.5	--
Toxaphene	µg/L	--	--	--	--	2.5	--
Trichloroethylene	µg/L	--	--	--	--	2.5	--
1,1,2-Trichloroethane	µg/L	--	--	--	--	2.5	--
2,4,6-Trichlorophenol	µg/L	--	--	--	--	50	--
Vinyl chloride	µg/L	--	--	--	--	2.5	--

Footnotes for Table 4

- a. The maximum daily, average weekly, and average monthly effluent limitations shall apply to flow weighted 24-hour composite samples. These limitations may apply to grab samples if the collection of composite samples for those constituents is not appropriate because of the instability of the constituents.
- b. The mass emission rate is calculated using the design capacity of the ocean outfall of 10 MGD: lbs/day = 8.34 x Ce (effluent concentration in mg/L) x Q (flow rate in MGD).
- c. The instantaneous maximum effluent limitations shall apply to grab samples.
- d. Values expressed as total recoverable concentrations.
- e. See Section 7 of this Order and Attachment A for definitions of terms.
- f. For discharges of reverse osmosis concentrate alone or tertiary-treated effluent combined with reverse osmosis concentrate, the effluent must meet an average monthly effluent limitation of 60 mg/L in lieu of the concentration-based effluent limitations specified in this table and the removal efficiency requirements for TSS. The mass-based effluent limitations continue to apply regardless of whether reverse osmosis concentrate is discharged. If only tertiary-treated wastewater is discharged, all TSS effluent limits shown in this table apply.
- g. Consistent with section II.B. of the Ocean Plan, the average weekly effluent limitation shall be determined based on a rolling 6-week geometric mean for *Enterococcus*, calculated weekly. The maximum daily effluent limitation for *Enterococcus* shall be

determined as a statistical threshold value (STV) not to be exceeded in more than 10% of the samples in a calendar month. The AMEL for fecal coliform is a 30-day geometric mean, calculated based on the five most recent fecal coliform samples.

End of Footnotes for Table 4

b. Other Final Effluent Limitations- Discharge Point 002

- i. **Percent Removal:** The average monthly percent removal of BOD₅20°C and TSS in the tertiary-treated effluent shall not be less than 85%.
- ii. **Temperature:** The temperature of wastes discharged shall not exceed 100°F.
- iii. **pH:** The effluent values for pH shall be maintained within the limits of 6.0 standard units and 9.0 standard units.
- iv. **Radioactivity:** Not to exceed limits specified in Title 17, Division 1, Chapter 5, Subchapter 4, Group 3, Article 3, Section 30253 of the California Code of Regulations. Reference to section 30253 is prospective, including future changes to any incorporated provisions of federal law, as the changes take effect.

4.1.2. Interim Effluent Limitations – Not Applicable

4.2. Land Discharge Specifications –Not Applicable

4.3. Recycling Specifications

The reuse of the reclaimed water is regulated under separate WDRs and Water Reclamation Requirements (WRRs) for the City of Ventura Order No. 87-45, CI-6190. However, to promote and track the use of recycled water, the Discharger shall do the following:

4.3.1. Recycled Water Feasibility Investigation

The Discharger shall continue to investigate the feasibility of recycling, conservation, and/or alternative disposal methods for wastewater (such as groundwater injection), and/or capture and treatment of dry-weather urban runoff and stormwater on a permissive basis for beneficial reuse. The Discharger shall submit a feasibility study as part of the submittal of the Report of Waste Discharge for the next permit renewal.

4.3.2. Volumetric Reporting

The Discharger shall monitor and report recycled water usage from the Ventura WRF in accordance with section 9.4. of the MRP.

5. RECEIVING WATER LIMITATIONS – NOT APPLICABLE

6. PROVISIONS

6.1. Standard Provisions

- 6.1.1. The Permittee shall comply with all Standard Provisions included in Attachment D of this Order.
- 6.1.2. **Los Angeles Water Board Standard Provisions.** The Permittee shall comply with the following provisions. If there is any conflict, duplication, or overlap between provisions specified by this Order, the more stringent provision shall apply:
- a. Odors, vectors, and other nuisances of sewage or sludge origin beyond the limits of the treatment plant site or the sewage collection system due to improper operation of facilities (such as failure to implement appropriate best management practices) and/or spills, bypass, or overflow of sewage or sludge, as determined by the Los Angeles Water Board, are prohibited, except as set forth in Provision 1.7 of Attachment D, Standard Provisions.
 - b. All facilities used for collection, transport, treatment, or disposal of wastes shall be adequately protected against damage resulting from overflow, washout, or inundation from a storm or flood having a 1-percent chance of occurring in a 24-hour period in any given year.
 - c. Collection, treatment, and disposal systems shall be operated in a manner that precludes public contact with wastewater.
 - d. Collected screenings, sludges, and other solids removed from liquid wastes shall be disposed of in a manner approved by the Los Angeles Water Board Executive Officer.
 - e. The provisions of this Order are severable. If any provision of this Order or the application of any provision of this Order is found invalid, the remainder of this Order shall not be affected.
 - f. Nothing in this Order shall be construed to preclude the institution of any legal action or relieve the Permittee from any responsibilities, liabilities or penalties established pursuant to any applicable state law or regulation under authority preserved by section 510 of the CWA.
 - g. Nothing in this Order shall be construed to preclude the institution of any legal action or relieve the Permittee from any responsibilities, liabilities or penalties to which the Permittee is or may be subject to under section 311 of the CWA, related to oil and hazardous substances liability.
 - h. Discharge of wastes to any point other than specifically described in this Order is prohibited, unless authorized under a separate NPDES permit.

- i. The Permittee shall comply with all applicable effluent limitations, national standards of performance, toxic effluent standards, and all federal regulations established pursuant to sections 301, 302, 303(d), 304, 306, 307, 316, 403, and 405 of the federal CWA and amendments thereto.
- j. These requirements do not exempt the operator of the waste disposal facility from compliance with any other laws, regulations, or ordinances which may be applicable; they do not legalize this waste disposal facility; and they leave unaffected any further restraints on the disposal of wastes at this site which may be contained in other statutes or required by other agencies.
- k. The Permittee shall make diligent, proactive efforts to reduce Facility infrastructure vulnerability to current and future impacts resulting from climate change, including but not limited to extreme wet weather events, flooding, storm surges, and projected sea level rise when the facility is located near the ocean or discharges to the ocean.
- l. Oil or oily material, chemicals, refuse, or other polluting materials shall not be stored or deposited in areas where they may be picked up by rainfall and carried off the property and/or discharged to surface waters. Any such spill of such materials shall be contained and removed immediately.
- m. A copy of these waste discharge specifications shall be maintained at the discharge Facility and be available at all times to operating personnel.
- n. If there is any storage of hazardous or toxic materials or hydrocarbons at this Facility and if the Facility is not manned at all times, a 24-hour emergency response telephone number shall be prominently posted where it can easily be read from the outside.
- o. The Permittee shall file with the Los Angeles Water Board a Report of Waste Discharge at least 120 days before making any proposed change in the character, location, or volume of the discharge.
- p. The Permittee shall comply with the lawful requirements of municipalities, counties, drainage districts, and other local agencies regarding discharges of stormwater to storm drain systems or other water courses under their jurisdiction; including applicable requirements in municipal stormwater management programs developed to comply with the NPDES permit(s) issued by the Los Angeles Water Board to local agencies.
- q. In the event of any change in name, ownership, or control of these waste disposal facilities, the Permittee shall notify the Los Angeles Water Board of such change and shall notify the succeeding owner or

operator of the existence of this Order by letter, a copy of which shall be forwarded to the Los Angeles Water Board, 30 days prior to taking effect.

- r. The CWC provides that any person who violates a waste discharge requirement or a provision of the CWC is subject to civil penalties of up to \$5,000 per day, \$10,000 per day, or \$25,000 per day of violation, or when the violation involves the discharge of pollutants, is subject to civil penalties of up to \$10 per gallon per day or \$25 per gallon per day of violation, or some combination thereof, depending on the violation, or upon the combination of violations. Violation of any of the provisions of the applicable statutes and regulations or of any provisions of this Order may subject the violator to any of the penalties described herein, or any combinations thereof, at the discretion of the prosecuting authority; except that only one kind of penalty may be applied for each kind of violation.
- s. CWC section 13387(e) provides that any person who knowingly makes any false statement, representation, or certification in any record or other document submitted or required to be maintained under this Order, including monitoring reports or reports of compliance or noncompliance, or who knowingly falsifies, tampers with, or renders inaccurate any monitoring device or method required to be maintained in this Order is subject to a fine of not more than \$25,000, by imprisonment pursuant to subdivision (h) of section 1170 of the Penal Code for 16, 20, or 24 months, or by both that fine and imprisonment. For a subsequent conviction, such a person shall be punished by a fine of not more than \$25,000 per day of violation, by imprisonment pursuant to subdivision (h) of section 1170 of the Penal Code for two, three, or four years, or by both that fine and imprisonment.
- t. The Permittee shall notify the Los Angeles Water Board Executive Officer in writing no later than 6 months prior to planned discharge of any chemical, other than the products previously reported to the Los Angeles Water Board Executive Officer, which may be toxic to aquatic life. Such notification shall include:
 - i. Name and general composition of the chemical,
 - ii. Frequency of use,
 - iii. Quantities to be used,
 - iv. Proposed discharge concentrations, and
 - v. USEPA registration number, if applicable.
- u. Failure to comply with provisions or requirements of this Order, or violation of other applicable laws or regulations governing discharges from this facility, may subject the Permittee to administrative or civil

- liabilities, criminal penalties, and/or other enforcement remedies to ensure compliance. Additionally, certain violations may subject the Permittee to civil or criminal enforcement from appropriate local, state, or federal law enforcement entities.
- v. In the event the Permittee does not comply or will be unable to comply for any reason, with any prohibition or effluent limitation of this Order that may endanger health or the environment, the Permittee shall notify the Manager of the Watershed Regulatory Section at the Los Angeles Water Board by telephone (213) 576-6616, or by email at Jeong-Hee.Lim@waterboards.ca.gov within 24 hours of having knowledge of such noncompliance, and shall confirm this notification in writing to the Los Angeles Water Board within five days, unless the Los Angeles Water Board waives confirmation. The written notification shall state the nature, time, duration, and cause of noncompliance, and shall describe the measures being taken to remedy the current noncompliance and, prevent recurrence including, where applicable, a schedule of implementation. The written notification shall also be submitted via email with reference to CI-10859 to losangeles@waterboards.ca.gov. Other noncompliance requires written notification as above at the time of the normal monitoring report.
 - w. CWC section 13385(h)(i) requires the Los Angeles Water Board to assess a mandatory minimum penalty of three-thousand dollars (\$3,000) for each serious violation. Pursuant to CWC section 13385(h)(2), a “serious violation” is defined as any waste discharge that violates the effluent limitations contained in the applicable WDRs for a Group II pollutant by 20 percent or more, or for a Group I pollutant by 40 percent or more. Appendix A of 40 CFR § 123.45 specifies the Group I and II pollutants. Pursuant to CWC section 13385.1(a)(1), a “serious violation” is also defined as “a failure to file a discharge monitoring report required pursuant to section 13383 for each complete period of 30 days following the deadline for submitting the report, if the report is designed to ensure compliance with limitations contained in waste discharge requirements that contain effluent limitations.”
 - x. CWC section 13385(i) requires the Los Angeles Water Board to assess a mandatory minimum penalty of three-thousand dollars (\$3,000) for each non-serious violation whenever a person violates a waste discharge requirement effluent limitation four or more times in any period of six consecutive months, except that the requirement to assess the mandatory minimum penalty shall not be applicable to the first three violations within that time period.
 - y. Pursuant to CWC section 13385.1(d), for the purposes of section 13385.1 and subdivisions (h), (i), and (j) of section 13385, “effluent limitation” means a numeric restriction or a numerically expressed

narrative restriction, on the quantity, discharge rate, concentration, or toxicity units of a pollutant or pollutants that may be discharged from an authorized location. An effluent limitation may be final or interim and may be expressed as a prohibition. An effluent limitation, for these purposes, does not include a receiving water limitation, a compliance schedule, or a best management practice.

6.2. Monitoring and Reporting Program (MRP) Requirements

The Permittee shall comply with the MRP and future revisions thereto, in Attachment E of this Order.

6.3. Special Provisions

6.3.1. Reopener Provisions

- a. This Order may be reopened and modified to incorporate new limits based on future reasonable potential analyses to be conducted based on on-going monitoring data collected by the Permittee and evaluated by the Los Angeles Water Board.
- b. This Order may be reopened and modified to incorporate new mass emission effluent limitations based on an increase in Ventura WRF design capacity of 14 MGD provided that the Permittee requests and conducts an antidegradation analysis to demonstrate that the change is consistent with the state and federal antidegradation policies.
- c. This Order may be modified, in accordance with the provisions set forth in 40 CFR §§ 122 to 124, to include new minimum levels (MLs).
- d. This Order may be modified, in accordance with the provisions set forth in 40 CFR parts 122 and 124 to incorporate requirements for the implementation of a watershed protection management approach.
- e. The Los Angeles Water Board may modify or revoke and reissue this Order if present or future investigations/ special studies demonstrate that the discharge(s) governed by this Order will cause, have the potential to cause, or will contribute to adverse impacts on water quality and/or beneficial uses of the receiving waters.
- f. This Order may be modified, revoked, and reissued or terminated in accordance with the provisions of 40 CFR § 122.44, 122.62 to 122.64, 125.62, and 125.64. Causes for taking such actions include, but are not limited to, failure to comply with any condition of this Order, endangerment to human health or the environment resulting from the permitted activity, or acquisition of newly obtained information which would have justified the application of different conditions if known at the time of Order adoption and issuance.
- g. The filing of a request by the Discharger for an Order modification, revocation, and issuance or termination, or a notification of planned

changes or anticipated noncompliance does not stay any condition of this Order.

- h. This Order may be modified, revoked and reissued, or terminated for cause, including, but not limited to:
 - i. Violation of any term or condition contained in this Order;
 - ii. Obtaining this Order by misrepresentation, or by failure to disclose fully all relevant facts; or
 - iii. A change in any condition that requires either a temporary or permanent reduction or elimination of the authorized discharge.
- i. This Order may be reopened and modified to the extent necessary, to be consistent with new or revised policies, a new or revised state-wide plan, new laws, or new regulations.
- j. This Order may be reopened, modified, or terminated to consolidate the NPDES permits and waste discharge requirements applicable to discharges of wastewater from the Facility to surface waters.
- k. This Order may be reopened and modified to revise the dilution factor (and any effluent limitations calculated using the dilution factor) if the Permittee presents data supporting the need for a higher dilution factor, completes a tracer study supporting an alternative dilution factor, and receives approval from the Los Angeles Water Board for a revised dilution factor.

6.3.2. Special Studies, Technical Reports and Additional Monitoring Requirements

a. Toxicity Reduction Requirements

The Discharger shall prepare and submit a copy of the Discharger's initial investigation Toxicity Reduction Evaluation (TRE) workplan in accordance with MRP section 5.6.

b. Treatment Plant Capacity

The Discharger shall submit a written report to the Executive Officer of the Los Angeles Water Board within 90 days after the "30-day (monthly) average" daily dry-weather flow equals or exceeds 75 percent of the design capacity ($0.75 \times 14 \text{ MGD} = 10.5 \text{ MGD}$) of waste treatment and/or disposal facilities. The Discharger's senior administrative officer shall transmit the report with a signed letter certifying that the Discharger's policy-making body is adequately informed of the report's contents. The report shall include the following:

- i. The average daily flow for the calendar month, the date on which the peak flow occurred, the rate of that peak flow, and the total flow for the day;

- ii. The best estimate of when the monthly average daily dry-weather flow rate will equal or exceed the design capacity of the POTW; and
- iii. A schedule for studies, design, and other steps needed to provide additional capacity for waste treatment and/or disposal facilities before the waste flow rate equals the capacity of present units.

This requirement is applicable in the case where the facility has not reached 75 percent of capacity as of the effective date of this Order. If the facility has reached 75 percent of capacity by that date but has not previously submitted such report, such a report shall be filed within 90 days of the issuance of this Order.

c. New Wastewater Treatment Unit or Plant Expansion

If the Discharger plans to install new treatment units or expand the wastewater treatment plant, the Discharger shall submit an antidegradation analysis and engineering report along with an installation schedule to the Los Angeles Water Board. The Discharger must demonstrate that it has implemented adequate controls (e.g., adequate treatment capacity) to ensure that high quality waters will be maintained. If the Discharger increases plant capacity, the Discharger shall demonstrate that treatment systems are effective in preventing violations of effluent limitations.

6.3.3. Best Management Practices and Pollution Prevention

a. Storm Water Pollution Prevention Plan (SWPPP) – Not Applicable

b. Spill Clean-up Contingency Plan (SCCP)

Within 90 days of the effective date of this Order, the Permittee is required to update and submit an SCCP. The SCCP shall describe the activities and protocols to address the clean-up of spills, overflows, and bypasses of wastewater from the Permittee's collection system or treatment facilities. At a minimum, the SCCP shall include sections on spill clean-up and containment measures, public notifications, monitoring, nuisance and odor control measures, the procedures to be carried out if floatable material is visible on the water surface near the discharge point or has been washed ashore, and notification, monitoring, and reporting to regulatory agencies. The Permittee shall review and amend the plan as appropriate after each spill from the Facility or in the service area of the Facility. The Permittee shall include a discussion in the annual summary report of any modifications to the plan and the application of the plan to all spills during the year.

c. Pollutant Minimization Program (PMP)

Reporting protocols in the MRP describe sample results that are to be reported as Detected but Not Quantified (DNQ) or Not Detected (ND).

Definitions for a reported ML and Method Detection Limit (MDL) are provided in Attachment A and the Ocean Plan. These reporting protocols and definitions are used in determining the need to conduct a PMP as follows:

The Permittee shall develop and conduct a PMP as further described below when there is evidence (e.g., sample results reported as DNQ and when the effluent limitation is less than the MDL; sample results from analytical methods more sensitive than those methods required by this Order; presence of whole effluent toxicity; health advisories for fish consumption; beach posting by the local health officer per California Code of Regulations, Title 17, section 7958 et seq.; or, results of benthic or aquatic organism tissue sampling) that a pollutant is present in the effluent above an effluent limitation and either of the following is true:

- i. The concentration of the pollutant is reported as DNQ and the effluent limitation is less than the reported ML; or,
- ii. The concentration of the pollutant is reported as ND and the effluent limitation is less than the MDL, using definitions described in Attachment A and reporting protocols described in the MRP.

The Discharger may consult with the Los Angeles Water Board prior to initiating a PMP to ensure a PMP is necessary. Following the consultation, the Discharger shall initiate a PMP if directed by the Los Angeles Water Board. The goal of the PMP shall be to reduce all potential sources of a pollutant through pollutant minimization (control) strategies, including pollution prevention measures as appropriate, to maintain the effluent concentration at or below the effluent limitation. Pollution prevention measures may be particularly appropriate for persistent bioaccumulative priority pollutants where there is evidence that beneficial uses are being impacted. The Los Angeles Water Board may consider cost-effectiveness when establishing the requirements of a PMP. The completion and implementation of a Pollution Prevention Plan (PPP), if required pursuant to CWC section 13263.3(d), shall be considered to fulfill the PMP requirements.

The PMP shall include, but not be limited to, the following actions and submittals acceptable to the Los Angeles Water Board:

- i. An annual review and semi-annual monitoring of potential sources of the reportable pollutant(s), which may include fish tissue monitoring and other bio-uptake sampling;
- ii. Quarterly monitoring for the reportable pollutant(s) in the influent to the wastewater treatment system;

- iii. Submittal of a control strategy designed to proceed toward the goal of maintaining concentrations of the reportable pollutant(s) in the effluent at or below the effluent limitation;
- iv. Implementation of appropriate cost-effective control measures for the reportable pollutant(s), consistent with the control strategy; and
- v. An annual status report that shall be sent to the Los Angeles Water Board including:
 - 1) All PMP monitoring results for the previous year;
 - 2) A list of potential sources of the reportable pollutant(s);
 - 3) A summary of all actions undertaken pursuant to the control strategy; and
 - 4) a description of actions to be taken in the following year.

6.3.4. Construction, Operation and Maintenance Specifications

- a. **Certified Wastewater Treatment Plant Operator:** Wastewater treatment facilities subject to this Order shall be supervised and operated by persons possessing certificates of appropriate grade pursuant to CCR, title 23, division 3, chapter 26 (CWC sections 13625 – 13633). All treatment plant operators shall also be trained in emergency response.
- b. **Alternate Power Source:** The Permittee shall maintain in good working order a sufficient alternate power source for operating the wastewater treatment and disposal facilities. All equipment shall be located to minimize failure due to moisture, liquid spray, flooding, wildfires, and other physical phenomena. The alternate power source shall be designed to permit inspection and maintenance and shall provide for periodic testing. If such alternate power source is not in existence, the Permittee shall halt, reduce, or otherwise control all discharges upon the reduction, loss, or failure of the primary source of power. The Permittee shall provide standby or emergency power facilities and/or storage capacity or other means so that in the event of plant upset or outage due to power failure or other cause, discharge of raw or inadequately treated sewage does not occur. If the existing alternate power source is insufficient to prevent the discharge of raw or inadequately treated sewage, the Permittee shall develop a plan to provide additional back-up power to the facility.
- c. **Climate Change Effects Vulnerability Assessment and Mitigation Plan:** The Permittee shall consider the impacts of climate change as they affect the operation of the treatment facility due to flooding, wildfires, or other climate-related changes. The Permittee shall revise

the existing Climate Change Effects Vulnerability Assessment and Mitigation Plan (Climate Change Plan) to assess and manage climate change-related effects that may impact the wastewater treatment facility's operation, water supplies, its collection system, and water quality, including any projected changes to the influent water temperature and pollutant concentrations, and beneficial uses. The permittee shall also identify new or increased threats to the sewer system resulting from climate change that may impact desired levels of service in the next 50 years. The permittee shall project upgrades to existing assets or new infrastructure projects, and associated costs, necessary to meet desired levels of service. The Climate Change Plan shall also identify steps being taken or planned to address greenhouse gas emissions attributable to wastewater treatment plants, solids handling, and effluent discharge processes. For facilities that discharge to the ocean including desalination plants, the Climate Change Plan shall also include the impacts from sea level rise. The Climate Change Plan is due 12 months after the effective date of this Order.

- d. **Routine Maintenance and Operational Testing for Emergency Infrastructure/Equipment:** The Permittee shall perform monthly maintenance and operational testing for all emergency infrastructure and equipment at the facility, including but not limited to any bypass gate/weir in the headworks, alarm systems, backup pumps, standby power generators, and other critical emergency pump station components. The Permittee shall update the Operation and Maintenance Plan to include monthly maintenance and operational testing of emergency infrastructure and equipment, and shall keep the records of all operational testing for emergency systems, repairs, and modifications.
- e. **Outfalls:** The Discharger shall properly operate and maintain the Outfall structure to ensure it (or its replacement, in whole or part) is in good working order and is consistent with or can achieve better mixing than 103:1 at Discharge Point 002.

6.3.5. Special Provisions for Publicly Owned Treatment Works (POTWs)

a. Biosolids Disposal Requirements – Refer to Attachment H

- i. All sewage sludge (including biosolids) generated at the wastewater treatment plant must be disposed of, treated, or applied to land in accordance with federal regulations contained in 40 CFR § 503. These requirements are enforceable by USEPA.
- ii. The Permittee is separately required to comply with the requirements in State Water Board Water Quality Order Number 2004-0012-DWQ, *General WDRs for the Discharge of Biosolids to Land for Use as a Soil Amendment in Agricultural, Silvicultural, Horticultural and Land*

Reclamation Activities (General Order), for those sites receiving the Permittee's biosolids which a regional water board has placed under this general order, and with the requirements in individual WDRs issued by a regional water board for sites receiving the Permittee's biosolids.

- iii. The Permittee shall separately comply, if applicable, with WDRs issued by other regional water boards to which jurisdiction the biosolids are transported and applied.
- iv. The Permittee shall ensure that haulers transporting sludge for treatment, storage, use, or disposal take all necessary measures to keep the sludge contained. The Permittee shall maintain and have haulers adhere to a spill clean-up plan. Any spills shall be reported to USEPA and the Los Angeles Water Board or the state agency with jurisdiction over the location in which the spill occurred. All trucks hauling sludge shall be thoroughly washed after unloading at the field or at the receiving facility.

b. Pretreatment Requirements – Refer to Attachment I

- i. The Discharger has developed and implemented a Pretreatment Program that was previously submitted to the Los Angeles Water Board and USEPA. This Order requires continued implementation of the approved Pretreatment Program. Any violation of the Pretreatment Program will be considered a violation of this Order.
- ii. Any change to the program shall be reported to the Los Angeles Water Board in writing and shall not become effective until approved by the Executive Officer in accordance with procedures established in 40 CFR § 403.18.
- iii. Applications for renewal or modification of this Order must contain information about industrial discharges to the POTW pursuant to 40 CFR § 122.21(j)(6). Pursuant to 40 CFR § 122.42(b) and provision 7.1 of Attachment D, Standard Provisions, of this Order, the Discharger shall provide adequate notice of any new introduction of pollutants or substantial change in the volume or character of pollutants from industrial discharges which were not included in the permit application. Pursuant to 40 CFR § 122.44(j)(1), the Discharger shall annually identify and report, in terms of character and volume of pollutants, any Significant Industrial Users discharging to the POTW subject to Pretreatment Standards under section 307(b) of the CWA and 40 CFR § 403.
- iv. The Discharger shall evaluate whether its pretreatment local limits are adequate to meet the requirements of this Order and shall submit a written technical report as required under Attachment I. The Discharger shall submit revised local limits to the Los Angeles Water

Board for approval, as necessary. In addition, the Discharger shall consider collection system overflow protection from such constituents as oil and grease, etc.

- v. The Discharger shall comply with requirements contained in Attachment I – Pretreatment Reporting Requirements.

c. Collection System Requirements

The Discharger's collection system is part of the system that is subject to this Order. As such, the Discharger must properly operate and maintain its collection system (40 CFR section 122.41(e)). The Discharger must report any noncompliance (40 CFR section 122.41(l)(6) and (7)) and mitigate any discharge from the collection system in violation of this Order (40 CFR section 122.41(d)).

d. Filter Bypass

Conditions pertaining to bypass are contained in Attachment D, Section 1. Standard Provisions – Permit Compliance, subsection 1.7. The bypass or overflow of untreated or partially treated wastewater to waters of the State is prohibited, except as allowed under conditions stated in 40 CFR section 122.41(m) and (n). During periods of elevated, wet weather flows, an overflow basin is used to store the excess flow before returning it to the Primary Flow Equalization Basin. If the overflow basin is not able to accommodate any additional wet weather flow, the excess secondary treated wastewater is diverted around the tertiary filters. These anticipated discharges are approved under the bypass conditions when the resulting combined discharge of fully treated (tertiary) and partially treated (secondary) wastewater complies with the effluent limitations in this Order.

6.3.6. Spill Reporting Requirements for POTWs

a. Initial Notification

Although State and Los Angeles Water Board staff do not have duties as first responders, this requirement is an appropriate mechanism to ensure that the agencies that do have first responder duties are notified in a timely manner to protect public health and beneficial uses. For certain spills, overflows and bypasses, the Discharger shall make notifications as required below:

- i. In accordance with the requirements of Health and Safety Code section 5411.5, the Discharger shall provide notification to the local health officer or the director of environmental health with jurisdiction over the affected water body of any unauthorized release of sewage or other waste that causes, or probably will cause, a discharge to any waters of the state as soon as possible, but no later than two hours after becoming aware of the release.

- ii. In accordance with the requirements of Water Code section 13271, the Discharger shall provide notification to the California Office of Emergency Services (Cal OES) of the release of reportable amounts of hazardous substances or sewage that causes, or probably will cause, a discharge to any waters of the state as soon as possible, but not later than two hours after becoming aware of the release. The CCR, Title 23, section 2250, defines a reportable amount of sewage as being 1,000 gallons. The phone number for reporting these releases to the Cal OES is (800) 852-7550. In addition, the Discharger shall notify other interested persons of any such sewage spill, including but not limited to the Ventura County Air Pollution Control District, cities within the jurisdiction of the spill, and Heal the Bay, by maintaining an email list of those interested persons that have requested such notification. The Discharger shall also include public outreach in their emergency communications protocols, which may include media updates, social media postings, and community notices. The Permittee shall submit an emergency communications protocol to the Los Angeles Water Board within 60 days of the effective date of the Order including specific outreach elements, such as mass emails and telephone calls to residents in the communities surrounding the plant.
- iii. The Discharger shall notify the Los Angeles Water Board of any unauthorized release of sewage from its POTW that causes, or probably will cause, a discharge to a water of the state or odors, vectors, and other nuisances of sewage or sludge origin beyond the limits of the treatment plant site or the sewage collection system as soon as possible, but not later than two hours after becoming aware of the release. This initial notification does not need to be made if the Discharger has notified Cal OES and the local health officer or the director of environmental health with jurisdiction over the affected waterbody. The phone number for reporting these releases of sewage to the Los Angeles Water Board is (213) 576-6657. The phone numbers for after hours and weekend reporting of releases of sewage to the Los Angeles Water Board are (213) 305-2284 and (213) 305-2253.
- iv. At a minimum, the following information shall be provided to the Los Angeles Water Board:
 - 1) The location, date, and time of the release.
 - 2) The route of the spill including the water body that received or will receive the discharge.
 - 3) An estimate of the amount of sewage or other waste released and the amount that reached a surface water at the time of notification.

- 4) If ongoing, the estimated flow rate of the release at the time of the notification.
- 5) The name, organization, phone number and email address of the reporting representative.

b. Monitoring

For spills, overflows and bypasses reported under section 6.3.6.a, the Discharger shall monitor as required below:

To define the geographical extent of the spill's impact, the Discharger shall obtain grab samples from the receiving water for all spills, overflows or bypasses of any volume that reach any waters of the state (including shoreline, surface, ground waters, etc.). If a grab sample cannot be obtained due to accessibility or safety concerns that cannot be addressed with the appropriate personal protective equipment or following proper sampling procedures, the sample shall be obtained as soon as it becomes safe to do so. The Discharger shall analyze the samples for total coliform, fecal coliform, *E. coli* (if fecal coliform tests positive), *Enterococcus* (if the spill reaches marine waters where the salinity is greater than 1 part per thousand more than 5 percent of the time), and relevant pollutants of concern that are typically present in the POTW influent, upstream and downstream of the point of entry of the spill (if feasible, accessible, and safe). Rapid fecal monitoring is preferred in these situations, as long as a State Water Board's Environmental Laboratory Accreditation Program (ELAP) - certified lab is available to conduct the analyses. Daily monitoring shall be conducted from the time the spill is known until the results of two consecutive sets of bacteriological monitoring indicate the return to the background level or the Ventura County Health Care Agency authorizes cessation of monitoring.

c. Reporting

The initial notification required under section 6.3.6.a shall include the following:

- i. As soon as possible, but not later than twenty-four (24) hours after becoming aware of an unauthorized discharge of sewage or other waste from its wastewater treatment plant to a water of the state, the Discharger shall submit a statement to the Los Angeles Water Board by email at augustine.anijelo@waterboards.ca.gov. If the discharge is 1,000 gallons or more, this statement shall certify that Cal OES has been notified of the discharge in accordance with CWC section 13271. The statement shall also certify that the local health officer or director of environmental health with jurisdiction over the affected water bodies has been notified of the discharge in accordance with

Health and Safety Code section 5411.5. The statement shall also include at a minimum the following information:

- 1) Agency, NPDES No., Order No., and MRP CI No., if applicable.
 - 2) The location, date, and time of the discharge.
 - 3) The water body that received the discharge.
 - 4) A description of the level of treatment of the sewage or other waste discharged.
 - 5) An initial estimate of the amount of sewage or other waste released and the amount that reached a surface water.
 - 6) The Cal OES control number and the date and time that notification of the incident was provided to Cal OES.
 - 7) The name of the local health officer or director of environmental health representative notified (if contacted directly); the date and time of notification; and the method of notification (e.g., phone, fax, email).
- ii. A written preliminary report five (5) business days after disclosure of the incident is required. Submission to the Los Angeles Water Board of the California Integrated Water Quality System (CIWQS) Sanitary Sewer Overflow (SSO) event number shall satisfy this requirement. Within 30 days after submitting the preliminary report, the Discharger shall submit the final written report to the Los Angeles Water Board. A copy of the final written report, for a given incident, already submitted pursuant to *Statewide General WDRs for Sanitary Sewer Systems* (SSS WDRs, State Water Board Order No. WQ 2022-0103-DWQ), may be submitted to the Los Angeles Water Board to satisfy this requirement. The written report shall document the information required in paragraph 6.3.6.d. below, monitoring results and any other information required in provisions of the Standard Provisions document including corrective measures implemented or proposed to be implemented to prevent/minimize future occurrences. The Los Angeles Water Board Executive Officer may grant an extension for submittal of the final written report.
- iii. The Discharger shall include a certification in the annual summary report (due according to the schedule in the MRP) that states that the sewer system emergency equipment, including alarm systems, backup pumps, standby power generators, and other critical emergency pump station components were maintained and tested in accordance with the Discharger's preventive maintenance plan. Any deviations from or modifications to the plan shall be discussed.

d. Records

The Discharger shall develop and maintain a record of all spills, overflows or bypasses of raw or partially treated sewage from its collection system or treatment plant. This record shall be made available to the Los Angeles Water Board upon request and a spill summary shall be included in the annual summary report. The records shall contain:

- i. The date and time of each spill, overflow, or bypass.
- ii. The location of each spill, overflow, or bypass.
- iii. The estimated volume of each spill, overflow, and bypass including gross volume, amount recovered and amount not recovered, monitoring results as required by section 6.3.6.b.
- iv. The cause of each spill, overflow, or bypass.
- v. Whether each spill, overflow, or bypass entered a receiving water and, if so, the name of the water body and whether it entered via storm drains or other man-made conveyances.
- vi. Any mitigation measures implemented.
- vii. Any corrective measures implemented or proposed to be implemented to prevent/minimize future occurrences.
- viii. The mandatory information included in SSO online reporting for finalizing and certifying the SSO report for each spill, overflow, or bypass under the SSS WDRs.
- ix. Evaluation of the discharge plume pathway using high frequency radar ocean current data collected by the Southern California Coastal Ocean Observing System if a spill impacts the beach or the ocean.

e. Activities Coordination

Although not required by this Order, the Los Angeles Water Board expects the POTW's owners/operators to coordinate their compliance activities for consistency and efficiency with other entities that have responsibilities to implement: (i) this NPDES permit, including the Pretreatment Program, (ii) a Municipal Separate Storm Sewer Systems (MS4) NPDES permit that may contain spill prevention, sewer maintenance, reporting requirements and (iii) the SSS WDRs or subsequent updates. The Los Angeles Water Board also expects the POTW's owners/operators to consider coordination with other agencies regarding the potential for the permissive integration of the MS4 with the wastewater collection system.

f. Consistency with SSS WDRs

The Permittee must separately comply with the SSS WDRs (State Water Board Order WQ 2022-0103-DWQ, *Statewide General Waste Discharge Requirements for Sanitary Sewer Systems*) in which the Permittee is currently enrolled and assigned WDID 4SSO11367.

Because there may be some overlap between sections 6.3.3.b (SCCP), 6.3.4. (Construction, Operation and Maintenance Specifications), and 6.3.6. (Spill Reporting Requirements) of this Order and the SSS WDRs requirements related to the collection systems, the Los Angeles Water Board will accept the documentation prepared by the Discharger under the SSS WDRs satisfying the requirements in sections 6.3.3.b, 6.3.4, and 6.3.6 of this Order, provided the submission addresses the more stringent provisions contained in this Order and is submitted with the routine NPDES monitoring report. Pursuant to the SSS WDRs (Order No. WQ 2022-0103-DWQ section 6.2), the provisions of this Order supersede the SSS WDRs, for all purposes, including enforcement, to the extent the requirements may be deemed duplicative.

6.3.7. Other Special Provisions – Not Applicable

6.3.8. Compliance Schedules – Not Applicable

7. COMPLIANCE DETERMINATION

Compliance with the effluent limitations contained in section 4 of this Order will be determined as specified below:

7.1. General

Compliance with effluent limitations for priority pollutants shall be determined using sample reporting protocols defined in the MRP and Attachment A of this Order. For purposes of reporting and administrative enforcement by the Los Angeles Water Board, State Water Board, or USEPA, the Permittee shall be deemed out of compliance with effluent limitations if the concentration of the priority pollutant in the monitoring sample is greater than the corresponding effluent limitation and greater than or equal to the reporting level (RL) or ML.

7.2. Multiple Sample Data

When determining compliance with a measure of central tendency (arithmetic mean, geometric mean, median, etc.) of multiple sample analyses and the data set contains one or more reported determinations of DNQ or ND, the Permittee shall compute the median in place of the arithmetic mean in accordance with the following procedure:

7.2.1. The data set shall be ranked from low to high, ranking the reported ND determinations lowest, DNQ determinations next, followed by quantified

values (if any). The order of the individual ND or DNQ determinations is unimportant.

- 7.2.2. The median value of the data set shall be determined. If the data set has an odd number of data points, then the median is the middle value. If the data set has an even number of data points, then the median is the average of the two values around the middle unless one or both points are ND or DNQ, in which case the median value shall be the lower of the two data points where DNQ is lower than a value and ND is lower than DNQ.

7.3. Average Monthly Effluent Limitation (AMEL)

If the average (or when applicable, the median determined by subsection 7.2 above for multiple sample data) of daily discharges over a calendar month exceeds the AMEL for a given parameter, this will represent a single violation, though the Permittee may be considered out of compliance for each day of that month for that parameter (e.g., resulting in 31 days of noncompliance in a 31-day month) in cases where discretionary administrative civil liabilities are appropriate. If only a single sample is collected during the calendar month and the analytical result for that sample exceeds the AMEL, the Permittee may be considered out of compliance for that calendar month. The Permittee will only be considered out of compliance for days when the discharge occurs. For any one calendar month during which no sample (daily discharge) is collected, no compliance determination can be made for that calendar month with respect to the AMEL.

If the analytical result of a single sample, monitored monthly, quarterly, semiannually, or annually, does not exceed the AMEL for a given parameter, the Permittee will have demonstrated compliance with the AMEL for each day of that month for that parameter.

If the analytical result of any single sample, monitored monthly, quarterly, semiannually, or annually, exceeds the AMEL for any parameter, the Permittee may collect up to four additional samples within the same calendar month. All analytical results shall be reported in the monitoring report for that month. The concentration of pollutant (an arithmetic mean or a median) in these samples estimated from the "Multiple Sample Data Reduction" section above, will be used for compliance determination.

In the event of noncompliance with an AMEL, the sampling frequency for that parameter shall be increased to weekly and shall continue at this level until compliance with the AMEL has been demonstrated.

7.4. Average Weekly Effluent Limitation (AWEL)

If the average of daily discharges over a calendar week exceeds the AWEL for a given parameter, a potential violation will be flagged and the Permittee will be considered out of compliance for each day of that week for that parameter, resulting in 7 days of noncompliance. The average of daily discharges over the calendar week that exceeds the AWEL for a parameter will be considered out of

compliance for that week only. If only a single sample is collected during the calendar week and the analytical result for that sample exceeds the AWEL, the Permittee will be considered out of compliance for that calendar week. For any one calendar week during which no sample (daily discharge) is collected, no compliance determination can be made for that calendar week with respect to the AWEL.

A calendar week will begin on Sunday and end on Saturday. Partial calendar weeks at the end of calendar month will be carried forward to the next month to calculate and report a consecutive seven-day average value on Saturday.

7.5. Maximum Daily Effluent Limitation (MDEL)

Composite Samples. If a 24-hour composite sample exceeds the MDEL for a given parameter, a potential violation will be flagged, and the Permittee will be considered out of compliance for that parameter for that one day only within the reporting period. If no sample (daily discharge) is collected over a calendar day, no compliance determination can be made for that day with respect to effluent violation determination, but compliance determination can be made for that day with respect to reporting violation determination.

Grab Samples. If the initial grab sample exceeds the MDEL in a day, then the Discharger may initiate accelerated testing, consisting of a minimum of two additional grab samples during the remainder of the calendar day. The average (or median when any data is not detected (ND) or detected but not quantified (DNQ), see section 7.2 of this Order) of all grab samples collected in one calendar day shall be used to determine compliance with the MDEL. When the median is used to determine compliance with the concentration-based MDEL, compliance with the mass-based MDEL shall be determined as the product of these three values: the maximum concentration detected (expressed in mg/L), the peak flow on that calendar day (expressed in MGD), and the 8.34 conversion factor.

If a daily discharge on a calendar day exceeds the MDEL for a given parameter, an alleged violation will be flagged, and the Discharger will be considered out of compliance for that day for that parameter. If no sample (daily discharge) is collected over a calendar day, no compliance determination can be made for that day with respect to effluent violation determination, but compliance determination can be made for that day with respect to reporting violation determination.

7.6. Instantaneous Minimum Effluent Limitation

If the analytical result of a single grab sample is lower than the instantaneous minimum effluent limitation for a parameter, a potential violation will be flagged, and the Permittee will be considered out of compliance for that parameter for that single sample. Non-compliance for each sample will be considered separately (e.g., the results of two grab samples collected within a calendar day that both are lower than the instantaneous minimum effluent limitation would result in two instances of non-compliance with the instantaneous minimum effluent limitation).

7.7. Instantaneous Maximum Effluent Limitation

If the analytical result of a single grab sample is higher than the instantaneous maximum effluent limitation for a parameter, a potential violation will be flagged, and the Permittee will be considered out of compliance for that parameter for that single sample. Non-compliance for each sample will be considered separately (e.g., the results of two grab samples collected within a calendar day that both exceed the instantaneous maximum effluent limitation would result in two instances of non-compliance with the instantaneous maximum effluent limitation).

7.8. Six-month Median Effluent Limitation

If the median of daily discharges over any 180-day period exceeds the six-month median effluent limitation for a given parameter, a potential violation will be flagged, and the Permittee will be considered out of compliance for each day of that 180-day period for that parameter. The next assessment of compliance will occur after the next sample is collected. If only a single sample is collected during a given 180-day period and the analytical result for that sample exceeds the six-month median, the Permittee will be considered out of compliance for the 180-day period. For any 180-period during which no sample is collected, no compliance determination can be made for the six-month median effluent limitation.

7.9. Annual Average Effluent Limitation

If the annual average of monthly discharges over a calendar year exceeds the annual average effluent limitation for a given parameter, a potential violation will be flagged, and the Permittee will be considered out of compliance for each month of that year for that parameter. However, a potential violation of the annual average effluent limitation will be considered one violation for the purpose of assessing State mandatory minimum penalties. If no sample (daily discharge) is collected over a calendar year, no compliance determination can be made for that year with respect to an effluent violation determination, but compliance determination can be made for that month with respect to a reporting violation determination.

7.10. Chronic Toxicity

The MDEL for chronic toxicity is exceeded and a violation will be flagged when a chronic toxicity test exceeds 104 TUC.

Standard Operating Procedures used by the toxicity testing laboratory to identify and report valid, invalid, anomalous, or inconclusive effluent (and receiving water) toxicity test measurement results must be consistent with *Short-term Methods for Estimating the Chronic Toxicity of Effluents and Receiving Waters to West Coast Marine and Estuarine Organisms* (EPA/600/R-95/136, 1995), and must be submitted to the Los Angeles Water Board [40 CFR § 122.41(h)]. The Los Angeles Water Board will make a final determination as to whether a toxicity test result is valid, and may consult with the Permittee,

USEPA, the State Water Board's Quality Assurance Officer, or the State Water Board's ELAP as needed. The Los Angeles Water Board may consider the results of any Toxicity Identification Evaluation (TIE)/TRE studies in an enforcement action.

7.11. Percent Removal

The average monthly percent removal is the removal efficiency expressed as a percentage across a treatment plant for a given pollutant parameter, as determined from the 30-day average values of pollutant concentrations (C in mg/L) of influent and effluent samples collected at about the same time using the following equation:

$$\text{Percent Removal (\%)} = [1 - (C_{\text{Effluent}}/C_{\text{Influent}})] \times 100\%$$

When preferred, the Permittee may substitute mass loadings and mass emissions for the concentrations.

7.12. Mass and Concentration Limitations

Compliance with mass and concentration effluent limitations for the same parameter shall be determined separately with their respective limitations. When the concentration of a constituent in an effluent sample is determined to be ND or DNQ, the corresponding mass emission rate determined from that sample concentration shall also be reported as ND or DNQ.

7.13. Compliance with Single Constituent Effluent Limitations

Permittees may be considered out of compliance with the effluent limitation if the concentration of the pollutant (see section 7.2 "Multiple Sample Data" above) in the monitoring sample is greater than the effluent limitation and greater than or equal to the ML or RL.

7.14. Compliance with Effluent Limitations Expressed as a Sum of Several Constituents

Permittees are out of compliance with an effluent limitation which applies to the sum of a group of chemicals (e.g., PCBs) if the sum of the individual pollutant concentrations is greater than the effluent limitation. Individual pollutants of the group will be considered to have a concentration of zero if the constituent is reported as ND or DNQ.

7.15. Compliance with 2,3,7,8-Tetrachlorodibenzo-p-dioxin (TCDD) Equivalents

Compliance with a 2,3,7,8-TCDD (dioxin) effluent limitation shall be determined based on 2,3,7,8-TCDD alone. However, TCDD equivalents shall be monitored and calculated using the following formula, where the MLs, and toxicity equivalency factors (TEFs) are as provided in the table below. The Permittee shall report all measured values of individual congeners, including data qualifiers. When calculating TCDD equivalents, the Permittee shall set

congener concentrations below the minimum levels to zero. USEPA method 1613 may be used to analyze dioxin and furan congeners.

$$\text{Dioxin Concentration} = \sum_{i=1}^{17} (TEQ_i) = \sum_{i=1}^{17} (C_i)(TEF_i)$$

where:

C_i = individual concentration of a dioxin or furan congener

TEF_i = individual TEF for a congener

MLs and TEFs

Congeners	MLs (pg/L)	TEFs
2,3,7,8-TetraCDD	10	1.0
1,2,3,7,8-PentaCDD	50	0.5
1,2,3,4,7,8-HexaCDD	50	0.1
1,2,3,6,7,8-HexaCDD	50	0.1
1,2,3,7,8,9-HexaCDD	50	0.1
1,2,3,4,6,7,8-HeptaCDD	50	0.01
OctaCDD	100	0.001
2,3,7,8-TetraCDF	10	0.1
1,2,3,7,8-PentaCDF	50	0.05
2,3,4,7,8-PentaCDF	50	0.5
1,2,3,4,7,8-HexaCDF	50	0.1
1,2,3,6,7,8-HexaCDF	50	0.1
1,2,3,7,8,9-HexaCDF	50	0.1
2,3,4,6,7,8-HexaCDF	50	0.1
1,2,3,4,6,7,8-HeptaCDF	50	0.01
1,2,3,4,7,8,9-HeptaCDF	50	0.01
OctaCDF	100	0.001

7.16. Mass Emission Rate

The mass emission rate shall be obtained from the following calculation for any calendar day:

$$\text{Mass emission rate (lbs/day)} = \frac{8.34}{N} \sum_{i=1}^N Q_i C_i$$

$$\text{Mass emission rate (kg/day)} = \frac{3.79}{N} \sum_{i=1}^N Q_i C_i$$

in which 'N' is the number of samples analyzed in any calendar day. 'Q_i' and 'C_i' are the flow rate (MGD) and the constituent concentration (mg/L), respectively, which are associated with each of the 'N' grab samples, which may be collected on any calendar day. If a composite sample is collected, 'C_i' is the concentration measured in the composite sample and 'Q_i' is the average flow rate occurring during the period over which samples are composited.

The daily concentration of all constituents shall be determined from the flow-weighted average of the same constituents in the combined waste streams as follows:

$$\text{Daily concentration} = \frac{1}{Q_t} \sum_{i=1}^N Q_i C_i$$

in which 'N' is the number of component waste streams. 'Q_i' and 'C_i' are the flow rate (MGD) and the constituent concentration (mg/L), respectively, which are associated with each of the 'N' waste streams. 'Q_t' is the total flow rate of the combined waste streams.

7.17. Bacterial Standards and Analysis

7.17.1. The geometric mean (GM) is a type of mean or average that indicates the central tendency or typical value of a set of numbers by using the product of their values (as opposed to the arithmetic mean which uses their sum). The geometric mean is defined as the n^{th} root of the product of n numbers. The formula is expressed as:

$$GM = \sqrt[n]{(x_1)(x_2)(x_3) \cdots (x_n)}$$

where x is the sample value and n is the number of samples collected.

7.17.2. The STV for the bacteria water quality objective is a set value that approximates the 90th percentile of the water quality distribution of a bacterial population.

7.17.3. For bacterial analyses, sample dilutions should be performed so the expected range of values is bracketed (for example, with multiple tube fermentation method or membrane filtration method, 2 to 16,000 per 100 mL for total and fecal coliform, at a minimum, and 1 to 1000 per 100 mL for *Enterococcus*). The detection methods used for each analysis shall be reported with the results of the analyses.

7.17.4. Detection methods used for coliforms (total and fecal) shall be those presented in Table 1A of 40 CFR § 136, unless alternate methods have been approved by USEPA pursuant to 40 CFR § 136, or improved methods have been determined by the Los Angeles Water Board Executive Officer and/or the USEPA Region 9 Water Division Director.

7.17.5. Detection methods used for *Enterococcus* shall be those presented in Table 1A of 40 CFR § 136 or in the USEPA publication EPA 600/4-85/076, *Test Methods for Escherichia coli and Enterococci in Water by Membrane Filter Procedure* or any improved method determined by the Los Angeles Water Board Executive Officer and/or the USEPA Region 9 Water Division Director to be appropriate.

7.18. Single Operational Upset (SOU)

An SOU that leads to simultaneous violations of more than one pollutant parameter shall be treated as a single violation and limits the Permittee's liability in accordance with the following conditions:

- 7.18.1. An SOU is broadly defined as a single unusual event that temporarily disrupts the usually satisfactory operation of a system in such a way that it results in violation of multiple pollutant parameters.
- 7.18.2. A Permittee may assert SOU to limit liability only for those violations which the Permittee submitted notice of the upset as required in Provision 5.5.2.b of Attachment D – Standard Provisions.
- 7.18.3. For purpose outside of CWC section 13385 subdivisions (h) and (i), determination of compliance and civil liability (including any more specific definition of SOU, the requirements for Permittees to assert the SOU limitation of liability, and the manner of counting violations) shall be in accordance with USEPA Memorandum *Issuance of Guidance Interpreting Single Operational Upset* (September 27, 1989).
- 7.18.4. For purpose of CWC section 13385 (h) and (i), determination of compliance and civil liability (including any more specific definition of SOU, the requirements for Permittees to assert the SOU limitation of liability, and the manner of counting violations) shall be in accordance with CWC section 13385 (f)(2).

ATTACHMENT A – DEFINITIONS

Areas of Special Biological Significance (ASBS)

Those areas designated by the State Water Resources Control Board (State Water Board) as ocean areas requiring protection of species or biological communities to the extent that alteration of natural water quality is undesirable. All Areas of Special Biological Significance are also classified as a subset of STATE WATER QUALITY PROTECTION AREAS.

Arithmetic Mean (μ)

Also called the average, is the sum of measured values divided by the number of samples. For ambient water concentrations, the arithmetic mean is calculated as follows:

$$\text{Arithmetic mean} = \mu = (\sum x)/n$$

Where: $\sum x$ is the sum of the measured ambient water concentrations, and n is the number of samples.

Average Monthly Effluent Limitation (AMEL)

The highest allowable average of daily discharges over a calendar month, calculated as the sum of all daily discharges measured during a calendar month divided by the number of daily discharges measured during that month.

Average Weekly Effluent Limitation (AWEL)

The highest allowable average of daily discharges over a calendar week (Sunday through Saturday), calculated as the sum of all daily discharges measured during a calendar week divided by the number of daily discharges measured during that week.

Bioaccumulative

Those substances taken up by an organism from its surrounding medium through gill membranes, epithelial tissue, or from food and subsequently concentrated and retained in the body of the organism.

Biosolids

Sewage sludge that has been treated and tested and shown to be capable of being beneficially and legally used pursuant to federal and state regulators as a soil amendment for agricultural, silvicultural, horticultural, and land reclamation activities as specified under 40 CFR Part 503.

Carcinogenic

Substances that are known to cause cancer in living organisms.

Chlordane

The sum of chlordane-alpha, chlordane-gamma, chlordene-alpha, chlordene-gamma, nonachlor-alpha, nonachlor-gamma, and oxychlordane.

Coefficient of Variation (CV)

A measure of the data variability and is calculated as the estimated standard deviation divided by the arithmetic mean of the observed values.

Composite Sample, 24-hour

For flow rate measurements, the arithmetic mean of no fewer than eight individual measurements taken at equal intervals for 24 hours or for the duration of discharge, whichever is shorter.

Composite sample, for other than flow rate measurements:

- a. No fewer than eight individual sample portions collected at equal time intervals for 24 hours. The volume of each individual sample portion shall be directly proportional to the discharge flow rate at the time of sampling; or,
- b. No fewer than eight individual sample portions collected of equal time volume collected over a 24-hour period. The time interval between each individual sample portion shall vary such that the volume of the discharge between each individual sample portion remains constant.

The compositing period shall equal 24 hours if no period is specified.

The composite sample result shall be reported for the calendar day during which composite sampling ends.

Daily Discharge

Either: (1) the total mass of the constituent discharged over the calendar day (12:00 am through 11:59 pm) or any 24-hour period that reasonably represents a calendar day for purposes of sampling (as specified in the permit), for a constituent with limitations expressed in units of mass or; (2) the unweighted arithmetic mean measurement of the constituent over the day for a constituent with limitations expressed in other units of measurement (e.g., concentration).

The daily discharge may be determined by the analytical results of a composite sample collected over the course of one day (a calendar day or other 24-hour period defined as a day) or by the arithmetic mean of analytical results from one or more grab samples collected over the course of the day.

For composite sampling, if 1 day is defined as a 24-hour period other than a calendar day, the analytical result for the 24-hour period will be considered as the result for the calendar day in which the 24-hour period ends.

DDT

The sum of 4,4'-DDT, 2,4'-DDT, 4,4'-DDE, 2,4'-DDE, 4,4'-DDD, and 2,4'-DDD.

Degrade

Degradation shall be determined by comparison of the waste field and reference site(s) for characteristic species diversity, population density, contamination, growth anomalies, debility, or supplanting of normal species by undesirable plant and animal species. Degradation occurs if there are significant differences in any of three major biotic groups, namely, demersal fish, benthic invertebrates, or attached algae. Other groups may be evaluated where benthic species are not affected or are not the only ones affected.

Detected, but Not Quantified (DNQ)

Sample results that are less than the reported Minimum Level, but greater than or equal to the laboratory's MDL. Sample results reported as DNQ are estimated concentrations.

Dichlorobenzenes

The sum of 1,2- and 1,3-dichlorobenzene.

Dilution Credit

The amount of dilution granted to a discharge in the calculation of a water quality-based effluent limitation, based on the allowance of a specified mixing zone. It is calculated from the dilution ratio or determined through conducting a mixing zone study or modeling of the discharge and receiving water.

Downstream Ocean Waters

Waters downstream with respect to ocean currents.

Dredged Material

Any material excavated or dredged from the navigable waters of the United States, including material otherwise referred to as "spoil."

Effective Concentration (EC_p)

A point estimate of the toxicant concentration that causes a given percent reduction (p) in a quantal biological measurement (e.g. development, survival) calculated from a continuous model (e.g. Probit).

Effluent Concentration Allowance (ECA)

A value derived from the water quality criterion/objective, dilution credit, and ambient background concentration that is used, in conjunction with the coefficient of variation for the effluent monitoring data, to calculate a long-term average (LTA) discharge concentration. The ECA has the same meaning as waste load allocation (WLA) as used in USEPA guidance (*Technical Support Document For Water Quality-based Toxics Control*, March 1991, second printing, EPA/505/2-90-001).

Enclosed Bays

Indentations along the coast that enclose an area of oceanic water within distinct headlands or harbor works. Enclosed bays include all bays where the narrowest distance between headlands or outermost harbor works is less than 75 percent of the

greatest dimension of the enclosed portion of the bay. This definition includes but is not limited to: Humboldt Bay, Bodega Harbor, Tomales Bay, Drakes Estero, San Francisco Bay, Morro Bay, Los Angeles Harbor, Upper and Lower Newport Bay, Mission Bay, and San Diego Bay. Enclosed bays do not include inland surface waters or ocean waters.

Endosulfan

The sum of endosulfan-alpha and -beta and endosulfan sulfate.

Estimated Chemical Concentration

The estimated chemical concentration that results from the confirmed detection of the substance by the analytical method below the ML value.

Estuaries and Coastal Lagoons

Waters at the mouths of streams that serve as mixing zones for fresh and ocean waters during a major portion of the year. Mouths of streams that are temporarily separated from the ocean by sandbars shall be considered estuaries. Estuarine waters will generally be considered to extend from a bay or the open ocean to the upstream limit of tidal action but may be considered to extend seaward if significant mixing of fresh and saltwater occurs in the open coastal waters. The waters described by this definition include but are not limited to the Sacramento-San Joaquin Delta as defined by Section 12220 of the California Water Code (CWC), Suisun Bay, Carquinez Strait downstream to Carquinez Bridge, and appropriate areas of the Smith, Klamath, Mad, Eel, Noyo, and Russian Rivers.

Grab Sample

An individual sample collected during a period not to exceed 15 minutes. Grab samples shall be collected during normal peak loading conditions for the parameter of interest, which may or may not occur during hydraulic peaks.

Halomethanes

The sum of bromoform, bromomethane (methyl bromide) and chloromethane (methyl chloride).

Hexachlorocyclohexane (HCH)

The sum of the alpha, beta, gamma (lindane) and delta isomers of hexachlorocyclohexane.

Indirect Discharge

The introduction of pollutants into a POTW from any non-domestic source regulated under section 307(b), (c), or (d) of the CWA.

Inhibition Concentration (IC_p)

A point estimate of the toxicant concentration that causes a given percent reduction (p) in a non-quantal biological endpoint (e.g. reproduction, growth) calculated from a continuous model (e.g. EPA interpolation Model).

Initial Dilution

The process that results in the rapid and irreversible turbulent mixing of wastewater with ocean water around the point of discharge.

For a submerged buoyant discharge, characteristic of most municipal and industrial wastes that are released from the submarine outfalls, the momentum of the discharge and its initial buoyancy act together to produce turbulent mixing. Initial dilution in this case is completed when the diluting wastewater ceases to rise in the water column and first begins to spread horizontally.

For shallow water submerged discharges, surface discharges, and non-buoyant discharges, characteristic of cooling water wastes and some individual discharges, turbulent mixing results primarily from the momentum of discharge. Initial dilution, in these cases, is considered to be completed when the momentum induced velocity of the discharge ceases to produce significant mixing of the waste, or the diluting plume reaches a fixed distance from the discharge to be specified by the Los Angeles Water Board, whichever results in the lower estimate for initial dilution.

Inland Surface Waters

All surface waters of the state that do not include the ocean, enclosed bays, or estuaries.

Instantaneous Maximum Effluent Limitation

The highest allowable value for any single grab sample or aliquot (i.e., each grab sample or aliquot is independently compared to the instantaneous maximum limitation).

Instantaneous Minimum Effluent Limitation

The lowest allowable value for any single grab sample or aliquot (i.e., each grab sample or aliquot is independently compared to the instantaneous minimum limitation).

In-stream Waste Concentration (IWC)

The concentration of a toxicant or the parameter toxicity in the receiving water after mixing.

Kelp Beds

For purposes of the bacteriological standards of the Ocean Plan, are significant aggregations of marine algae of the genera *Macrocystis* and *Nereocystis*. Kelp beds include the total foliage canopy of *Macrocystis* and *Nereocystis* plants throughout the water column.

Mariculture

The culture of plants and animals in marine waters independent of any pollution source.

Material

(a) In common usage: (1) the substance or substances of which a thing is made or composed (2) substantial; (b) For purposes of the Ocean Plan relating to waste disposal, dredging and the disposal of dredged material and fill, MATERIAL means matter of any kind or description which is subject to regulation as waste, or any material

dredged from the navigable waters of the United States. See also, DREDGED MATERIAL.

Maximum Daily Effluent Limitation (MDEL)

The highest allowable daily discharge of a pollutant, over a calendar day (or 24-hour period). For pollutants with limitations expressed in units of mass, the daily discharge is calculated as the total mass of the pollutant discharged over the day. For pollutants with limitations expressed in other units of measurement, the daily discharge is calculated as the arithmetic mean measurement of the pollutant over the day.

Maximum Daily Flow

The maximum instantaneous flow of the day.

Median

The middle measurement in a set of data. The median of a set of data is found by first arranging the measurements in order of magnitude (either increasing or decreasing order). If the number of measurements (n) is odd, then the median = $X_{(n+1)/2}$. If n is even, then the median = $(X_{n/2} + X_{(n/2)+1})/2$ (i.e., the midpoint between the $n/2$ and $n/2+1$).

Method Detection Limit (MDL)

The minimum concentration of a substance that can be reported with 99 percent confidence that the measured concentration is distinguishable from method blank results, as defined in 40 CFR part 136, Attachment B.

Minimum Level (ML)

The concentration at which the entire analytical system must give a recognizable signal and acceptable calibration point. The ML is the concentration in a sample that is equivalent to the concentration of the lowest calibration standard analyzed by a specific analytical procedure, assuming all the method specified sample weights, volumes, and processing steps have been followed.

Mixing Zone

A limited volume of receiving water that is allocated for mixing with a wastewater discharge where water quality criteria can be exceeded without causing adverse effects to the overall water body.

Natural Light

Reduction of natural light may be determined by the Los Angeles Water Board and USEPA by measurement of light transmissivity or total irradiance, or both, according to the monitoring needs of the Los Angeles Water Board and USEPA.

Not Detected (ND)

Those sample results less than the laboratory's MDL.

Ocean Waters

The territorial marine waters of the state as defined by California law to the extent these

waters are outside of enclosed bays, estuaries, and coastal lagoons. If a discharge outside the territorial waters of the state could affect the quality of the waters of the state, the discharge may be regulated to assure no violation of the Ocean Plan will occur in ocean waters.

PAHs (polynuclear aromatic hydrocarbons)

The sum of acenaphthylene, anthracene, 1,2-benzanthracene, 3,4-benzofluoranthene, benzo[k]fluoranthene, 1,12-benzoperylene, benzo[a]pyrene, chrysene, dibenzo[ah]anthracene, fluorene, indeno[1,2,3-cd]pyrene, phenanthrene, and pyrene.

PCBs (polychlorinated biphenyls) as Aroclors

The sum of chlorinated biphenyls whose analytical characteristics resemble those of Aroclor-1016, Aroclor-1221, Aroclor-1232, Aroclor-1242, Aroclor-1248, Aroclor-1254 and Aroclor-1260.

PCBs as Congeners

The sum of the following 41 individually quantified PCB congeners or mixtures of isomers of a single congener in a co-elution: PCB-18, 28, 37, 44, 49, 52, 66, 70, 74, 77, 81, 87, 99, 101, 105, 110, 114, 118, 119, 123, 126, 128, 138, 149, 151, 153, 156, 157, 158, 167, 168, 169, 170, 177, 180, 183, 187, 189, 194, 201, and 206.

Persistent Pollutants

Substances for which degradation or decomposition in the environment is nonexistent or very slow.

Per- and Polyfluoroalkyl Substances (PFAS)

A family of more than 5,000 man-made chemicals that are mobile, persistent, and bioaccumulative. They are resistant to degradation in the environment and when degradation occurs, it often results in the formation of other PFAS compounds. Perfluorooctane sulfonic acid (PFOS) and perfluorooctanoic acid (PFOA) are two types of PFAS.

Phenols (chlorinated)

The sum of 2-chlorophenol, 2,4-dichlorophenol, 4-chloro-3-methylphenol, 2,4,6-trichlorophenol, and pentachlorophenol.

Phenols (non-chlorinated)

The sum of 2,4-dimethylphenol, 2-nitrophenol, 4-nitrophenol, 2,4-dinitrophenol, 4,6-dinitro-2-methylphenol, and phenol.

Pollutant Minimization Program (PMP)

Waste minimization and pollution prevention actions that include, but are not limited to, product substitution, waste stream recycling, alternative waste management methods, and education of the public and businesses. The goal of the PMP shall be to reduce all potential sources of pollutants through pollutant minimization (control) strategies, including pollution prevention measures as appropriate, to maintain the effluent

concentration at or below the water quality-based effluent limitation. Pollution prevention measures may be particularly appropriate for persistent bioaccumulative priority pollutants where there is evidence that beneficial uses are being impacted. The Los Angeles Water Board and USEPA may consider cost effectiveness when establishing the requirements of a PMP. The completion and implementation of a Pollution Prevention Plan, if required pursuant to CWC section 13263.3(d), shall be considered to fulfill the PMP requirements.

Pollution Prevention

Any action that causes a net reduction in the use or generation of a hazardous substance or other pollutant that is discharged into water and includes, but is not limited to, input change, operational improvement, production process change, and product reformulation (as defined in CWC section 13263.3). Pollution prevention does not include actions that merely shift a pollutant in wastewater from one environmental medium to another environmental medium, unless clear environmental benefits of such an approach are identified to the satisfaction of the State Water Resources Control Board (State Water Board), Los Angeles Water, or USEPA.

Publicly Owned Treatment Works

A treatment works as defined by section 212 of the CWA, which is owned by a State or municipality (as defined by section 502(4) of the Act). This definition includes any devices and systems used in the storage, treatment, recycling and reclamation of municipal sewage or industrial wastes of a liquid nature. It also includes sewers, pipes and other conveyances only if they convey wastewater to a POTW treatment plant. The term also means the municipality which has jurisdiction over the indirect discharges to and the discharges from such treatment works. (40 CFR § 403.3(q))

Reported Minimum Level

The reported ML (also known as the Reporting Level or RL) is the ML (and its associated analytical method) chosen by the Discharger for reporting and compliance determination from the MLs included in this Order, including an additional factor if applicable as discussed herein. The MLs included in this Order correspond to approved analytical methods for reporting a sample result that are selected by the Los Angeles Water Board and USEPA either from 1) Appendix II of the Ocean Plan in accordance with section III.C.5.a. of the Ocean Plan or established in accordance with section III.C.5.b. of the Ocean Plan or 2) Appendix 4 of the SIP in accordance with section 2.4.2 of the SIP or established in accordance with section 2.4.3 of the SIP. The ML is based on the proper application of method-based analytical procedures for sample preparation and the absence of any matrix interferences. Other factors may be applied to the ML depending on the specific sample preparation steps employed. For example, the treatment typically applied in cases where there are matrix-effects is to dilute the sample or sample aliquot by a factor of ten. In such cases, this additional factor must be applied to the ML in the computation of the reported ML.

Satellite Collection System

The portion, if any, of a sanitary sewer system owned or operated by a different public agency than the agency that owns and operates the wastewater treatment facility that a sanitary sewer system is tributary to.

Shellfish

Organisms identified by the California Department of Health Services as shellfish for public health purposes (i.e., mussels, clams and oysters).

Significant Difference

Defined as a statistically significant difference in the means of two distributions of sampling results at the 95 percent confidence level.

Six-Month Median Effluent Limitation

The highest allowable moving median of all daily discharges for any 180-day period.

Source of Drinking Water

Any water designated as municipal or domestic supply (MUN) in a Los Angeles Water Board Basin Plan.

Standard Deviation (σ)

A measure of variability that is calculated as follows:

$$\sigma = \sqrt{\frac{\sum(x - \mu)^2}{n - 1}}$$

where:

x is the observed value;

μ is the arithmetic mean of the observed values; and

n is the number of samples.

State Water Quality Protection Areas (SWQPAs)

Non-terrestrial marine or estuarine areas designated to protect marine species or biological communities from an undesirable alteration in natural water quality. All AREAS OF SPECIAL BIOLOGICAL SIGNIFICANCE (ASBS) that were previously designated by the State Water Board in Resolutions 74-28, 74-32, and 75-61 are now also classified as a subset of State Water Quality Protection Areas and require special protections afforded by the Ocean Plan.

Statistical Threshold Value (STV)

The STV for the bacteria water quality objectives is a set value that approximates the 90th percentile of the water quality distribution of a bacterial population.

Total Nitrogen

The sum of nitrate nitrogen, nitrite nitrogen, ammonia nitrogen, and total organic nitrogen.

Total phosphorus

The sum of orthophosphate, condensed phosphate, and organic phosphate.

Total Trihalomethanes (TTHMs)

The sum of concentrations of the trihalomethane compounds: bromodichloromethane, bromoform, chloroform, and dibromochloromethane.

Toxicity Identification Evaluation (TIE)

Set of procedures to identify the specific chemical(s) responsible for toxicity. These procedures are performed in three phases (characterization, identification, and confirmation) using aquatic organism toxicity tests.

Toxicity Reduction Evaluation (TRE)

A study conducted in a stepwise process designed to identify the causative agents of effluent or ambient toxicity, isolate the sources of toxicity, evaluate the effectiveness of toxicity control options, and then confirm the reduction in toxicity. The first steps of the TRE consist of the collection of data relevant to the toxicity, including additional toxicity testing, and an evaluation of facility operations and maintenance practices, and best management practices. A Toxicity Identification Evaluation (TIE) may be required as part of the TRE, if appropriate.

Waste

As used in the Ocean Plan, waste includes a Discharger's total discharge, of whatever origin, i.e., gross, not net, discharge.

Water Recycling

The treatment of wastewater to render it suitable for reuse, the transportation of treated wastewater to the place of use, and the actual use of treated wastewater for a direct beneficial use or controlled use that would not otherwise occur.

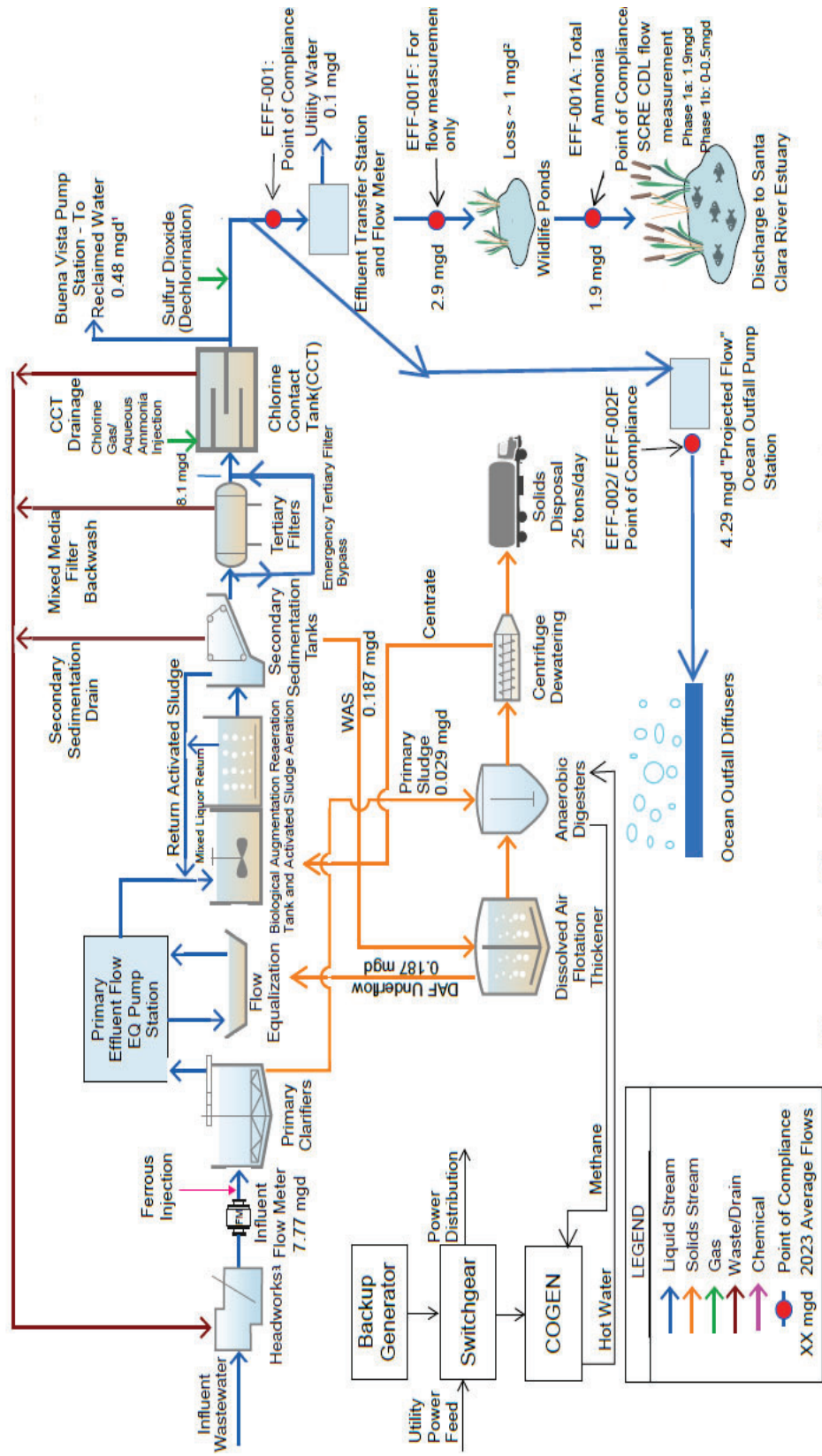
**ATTACHMENT B1 – MAP OF VENTURA WRF SURROUNDING AREA AND
DISCHARGE POINTS 001 AND 002**



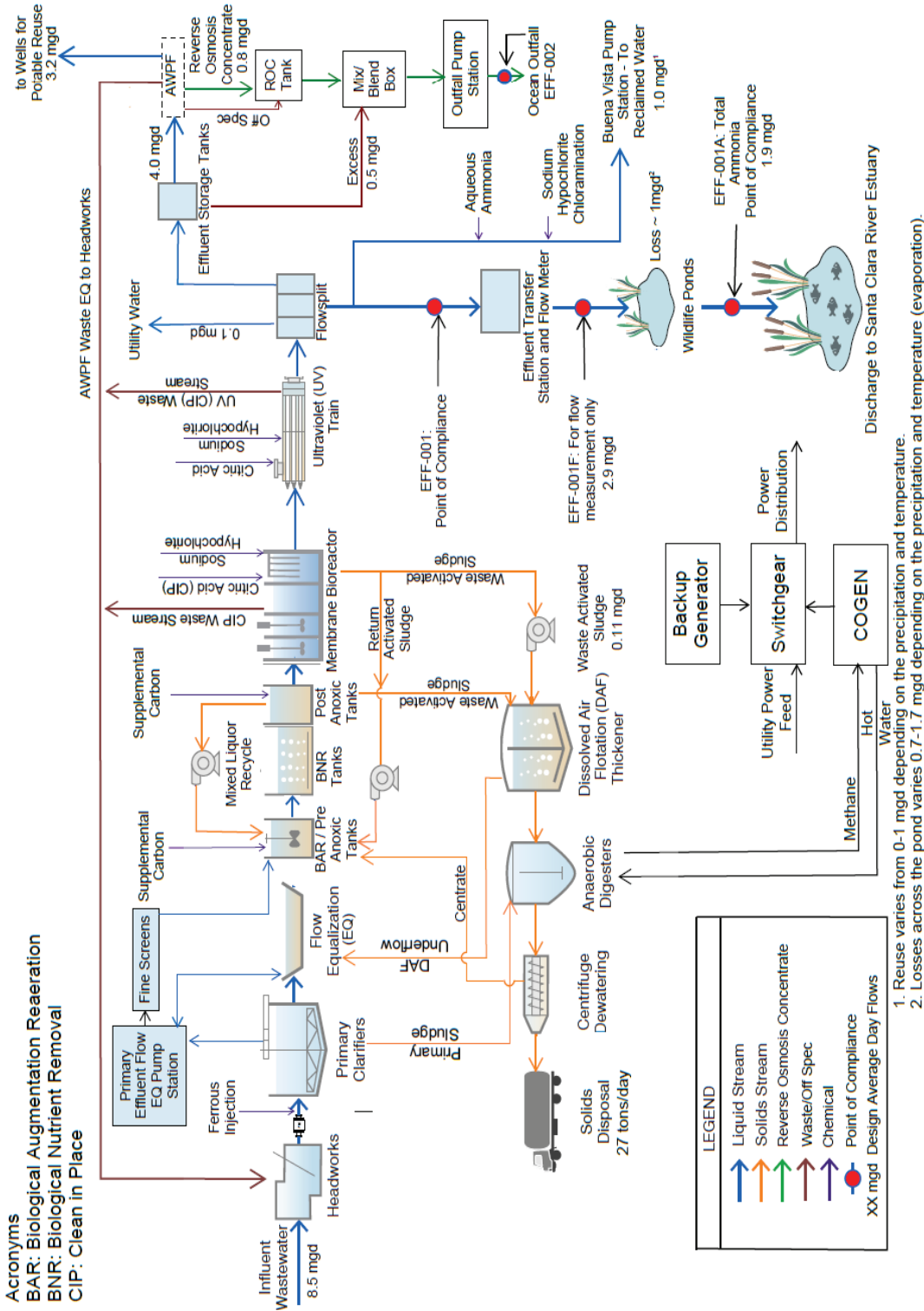
ATTACHMENT B2 – VENTURA WRF MONITORING LOCATIONS



ATTACHMENT C1 – CURRENT PROCESS FLOW DIAGRAM OF VENTURA WRF



ATTACHMENT C2 – FUTURE PROCESS FLOW DIAGRAM OF VENTURA WRF



ATTACHMENT D– STANDARD PROVISIONS

1. STANDARD PROVISIONS – PERMIT COMPLIANCE

1.1. Duty to Comply

- 1.1.1. The Discharger must comply with all the terms, requirements, and conditions of this Order. Any noncompliance constitutes a violation of the Clean Water Act (CWA) and the California Water Code (CWC) and is grounds for enforcement action; permit termination, revocation and reissuance, or modification; denial of a permit renewal application; or a combination thereof. (40 CFR § 122.41(a); CWC, §§ 13261, 13263, 13265, 13268, 13000, 13001, 13304, 13350, 13385.)
- 1.1.2. The Discharger shall comply with effluent standards or prohibitions established under Section 307(a) of the CWA for toxic pollutants within the time provided in the regulations that establish these standards or prohibitions, even if this Order has not yet been modified to incorporate the requirement. (40 CFR § 122.41(a)(1).)

1.2. Need to Halt or Reduce Activity Not a Defense

It shall not be a defense for a Discharger in an enforcement action that it would have been necessary to halt or reduce the permitted activity to maintain compliance with the conditions of this Order. (40 CFR § 122.41(c).)

1.3. Duty to Mitigate

The Discharger shall take all reasonable steps to minimize or prevent any discharge in violation of this Order that has a reasonable likelihood of adversely affecting human health or the environment. (40 CFR § 122.41(d).)

1.4. Proper Operation and Maintenance

The Discharger shall at all times properly operate and maintain all facilities and systems of treatment and control (and related appurtenances) which are installed or used by the Discharger to achieve compliance with the conditions of this Order. Proper operation and maintenance also includes adequate laboratory controls and appropriate quality assurance procedures. This provision requires the operation of backup or auxiliary facilities or similar systems that are installed by a Discharger only when necessary to achieve compliance with the conditions of this Order. (40 CFR § 122.41(e).)

1.5. Property Rights

- 1.5.1. This Order does not convey any property rights of any sort or any exclusive privileges. (40 CFR § 122.41(g).)
- 1.5.2. The issuance of this Order does not authorize any injury to persons or property or invasion of other private rights, or any infringement of state or local law or regulations. (40 CFR § 122.5(c).)

1.6. Inspection and Entry

The Discharger shall allow the Los Angeles Water Board, State Water Board, USEPA, and/or their authorized representatives (including an authorized contractor acting as their representative), upon the presentation of credentials and other documents, as may be required by law, to (33 USC. § 1318(a)(4)(b); 40 CFR § 122.41(i); CWC, §§ 13267, 13383):

- 1.6.1. Enter upon the Discharger's premises where a regulated facility or activity is located or conducted, or where records are kept under the conditions of this Order (33 U.S.C. § 1318(a)(B)(i); 40 CFR § 122.41(i)(1); CWC, §§ 13267, 13383);
- 1.6.2. Have access to and copy, at reasonable times, any records that must be kept under the conditions of this Order (33 U.S.C. § 1318(a)(B)(ii); 40 CFR § 122.41(i)(2); CWC, §§ 13267, 13383);
- 1.6.3. Inspect and photograph, at reasonable times, any facilities, equipment (including monitoring and control equipment), practices, or operations regulated or required under this Order (33 U.S.C. § 1318(a)(B)(ii); 40 CFR § 122.41(i)(3); CWC, §§ 13267, 13383); and
- 1.6.4. Sample or monitor, at reasonable times, for the purposes of assuring Order compliance or as otherwise authorized by the CWA or the Water Code, any substances or parameters at any location. (33 USC § 1318(a)(B); 40 CFR § 122.41(i)(4); CWC, §§ 13267, 13383.)

1.7. Bypass

1.7.1. Definitions

- a. "Bypass" means the intentional diversion of waste streams from any portion of a treatment facility. (40 CFR § 122.41(m)(1)(i).)
- b. "Severe property damage" means substantial physical damage to property, damage to the treatment facilities, which causes them to become inoperable, or substantial and permanent loss of natural resources that can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production (40 CFR § 122.41(m)(1)(ii).)

- 1.7.2. Bypass not exceeding limitations. The Discharger may allow any bypass to occur which does not cause exceedances of effluent limitations, but only if it is for essential maintenance to ensure efficient operation. These bypasses are not subject to the provisions listed in Standard Provisions – Permit Compliance 1.7.3, 1.7.4, and 1.7.5 below. (40 CFR § 122.41(m)(2).)
- 1.7.3. Prohibition of bypass. Bypass is prohibited, and the Los Angeles Water Board or USEPA Region 9 may take enforcement action against a Discharger for bypass, unless (40 CFR § 122.41(m)(4)(i)):

- a. Bypass was unavoidable to prevent loss of life, personal injury, or severe property damage (40 CFR § 122.41(m)(4)(i)(A));
 - b. There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate back up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass that occurred during normal periods of equipment downtime or preventive maintenance (40 CFR § 122.41(m)(4)(i)(B)); and
 - c. The Discharger submitted notice to the Los Angeles Water Board and USEPA Region 9 as required under Standard Provisions – Permit Compliance 1.7.5 below. (40 CFR § 122.41(m)(4)(i)(C).)
- 1.7.4. The Los Angeles Water Board and USEPA may approve an anticipated bypass, after considering its adverse effects, if the Los Angeles Water Board and USEPA determine that it will meet the three conditions listed in Standard Provisions – Permit Compliance 1.7.3 above. (40 CFR § 122.41(m)(4)(ii).)
- 1.7.5. Notice
- a. **Anticipated bypass.** If the Discharger knows in advance of the need for a bypass, it shall submit prior notice, if possible, at least 10 days before the date of the bypass. The notice shall be sent to the Los Angeles Water Board and USEPA Region 9. As of December 21, 2025, all notices submitted in compliance with this section must be submitted electronically by the Discharger to the Los Angeles Water Board and USEPA Region 9 or initial recipient, as defined in 40 CFR § 127.2(b), in compliance with this section and 40 CFR § 3 (including, in all cases, subpart D to part 3), 122.22 and part 127. Part 127 is not intended to undo existing requirements for electronic reporting. Prior to this date, and independent of part 127, the Discharger may be required to report electronically if specified by a particular Order or if required to do so by State law. (40 CFR § 122.41(m)(3)(i).)
 - b. **Unanticipated bypass.** The Discharger shall submit a notice of an unanticipated bypass as required in Standard Provisions - Reporting 5.5 below (24-hour notice). As of December 21, 2025, all notices submitted in compliance with this section must be submitted electronically by the Discharger to the Los Angeles Water Board and USEPA or initial recipient, as defined in 40 CFR § 127.2(b), in compliance with this section and 40 CFR § 3 (including, in all cases, subpart D to part 3), 122.22 and part 127. Part 127 is not intended to undo existing requirements for electronic reporting. Prior to this date, and independent of part 127, the Discharger may be required to report electronically if

specified by a particular Order or if required to do so by State law. (40 CFR § 122.41(m)(3)(ii).)

1.8. Upset

Upset means an exceptional incident in which there is unintentional and temporary noncompliance with technology-based permit effluent limitations because of factors beyond the reasonable control of the Discharger. An upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation. (40 CFR § 122.41(n)(1).)

1.8.1. **Effect of an upset.** An upset constitutes an affirmative defense to an action brought for noncompliance with such technology-based permit effluent limitations if the requirements of Standard Provisions – Permit Compliance 1.8.2 below are met. No determination made during administrative review of claims that noncompliance was caused by upset, and before an action for noncompliance, is final administrative action subject to judicial review. (40 CFR § 122.41(n)(2).)

1.8.2. **Conditions necessary for a demonstration of upset.** A Discharger who wishes to establish the affirmative defense of upset shall demonstrate, through properly signed, contemporaneous operating logs or other relevant evidence that (40 CFR § 122.41(n)(3)):

- a. An upset occurred and that the Discharger can identify the cause(s) of the upset (40 CFR § 122.41(n)(3)(i));
- b. The permitted facility was, at the time, being properly operated (40 CFR § 122.41(n)(3)(ii));
- c. The Discharger submitted notice of the upset as required in Standard Provisions – Reporting 5.5.2.b below (24-hour notice) (40 CFR § 122.41(n)(3)(iii)); and
- d. The Discharger complied with any remedial measures required under Standard Provisions – Permit Compliance 1.3 above. (40 CFR § 122.41(n)(3)(iv).)

1.8.3. **Burden of proof.** In any enforcement proceeding, the Discharger seeking to establish the occurrence of an upset has the burden of proof. (40 CFR § 122.41(n)(4).)

2. STANDARD PROVISIONS – PERMIT ACTION

2.1. General

This Order may be modified, revoked and reissued, or terminated for cause. The filing of a request by the Discharger for modification, revocation and reissuance,

or termination, or a notification of planned changes or anticipated noncompliance does not stay any Order condition. (40 CFR § 122.41(f).)

2.2. Duty to Reapply

If the Discharger wishes to continue an activity regulated by this Order after the expiration date of this Order, the Discharger must apply for and obtain a new permit. (40 CFR § 122.41(b).)

2.3. Transfers

This Order is not transferable to any person except after notice to the Los Angeles Water Board and USEPA. The Los Angeles Water Board and USEPA Region 9 may require modification or revocation and reissuance of the Order to change the name of the Discharger and incorporate such other requirements as may be necessary under the CWA and the Water Code. (40 CFR §§ 122.41(l)(3), 122.61.)

3. STANDARD PROVISIONS – MONITORING

- 3.1. Samples and measurements taken for the purpose of monitoring shall be representative of the monitored activity. (40 CFR § 122.41(j)(1).)
- 3.2. Monitoring must be conducted according to test procedures approved under 40 CFR part 136 for the analyses of pollutants unless another method is required under 40 CFR chapter 1, subchapter N. Monitoring must be conducted according to sufficiently sensitive test methods approved under 40 CFR part 136 for the analysis of pollutants or pollutant parameters or as required under 40 CFR chapter 1, subchapter N. For the purposes of this paragraph, a method is sufficiently sensitive when:
 - 3.2.1. The method minimum level (ML) is at or below the level of the most stringent effluent limitation established in the permit for the measured pollutant or pollutant parameter, and either the method ML is at or below the level of the most stringent applicable water quality criterion for the measured pollutant or pollutant parameter or the method ML is above the applicable water quality criterion but the amount of the pollutant or pollutant parameter in the facility's discharge is high enough that the method detects and quantifies the level of the pollutant or pollutant parameter in the discharge; or

3.2.2. The method has the lowest ML of the analytical methods approved under 40 CFR part 136 or required under 40 CFR chapter 1, subchapter N for the measured pollutant or pollutant parameter. In the case of pollutants or pollutant parameters for which there are no approved methods under 40 CFR part 136 or otherwise required under 40 CFR chapter 1, subchapter N, monitoring must be conducted according to a test procedure specified in this Order for such pollutants or pollutant parameters. (40 CFR §§ 122.21(e)(3), 122.41(j)(4), 122.44(i)(1)(iv).)

4. STANDARD PROVISIONS – RECORDS

- 4.1. The Discharger shall retain records of all monitoring information, including all calibration and maintenance records and all original strip chart recordings for continuous monitoring instrumentation, copies of all reports required by this Order, and records of all data used to complete the application for this Order, for a period of at least three (3) years from the date of the sample, measurement, report or application. This period may be extended by request of the Los Angeles Water Board Executive Officer at any time. (40 CFR § 122.41(j)(2).)
- 4.2. Records of monitoring information shall include:
- 4.2.1. The date, exact place, and time of sampling or measurements (40 CFR § 122.41(j)(3)(i));
 - 4.2.2. The individual(s) who performed the sampling or measurements (40 CFR § 122.41(j)(3)(ii));
 - 4.2.3. The date(s) analyses were performed (40 CFR § 122.41(j)(3)(iii));
 - 4.2.4. The individual(s) who performed the analyses (40 CFR § 122.41(j)(3)(iv));
 - 4.2.5. The analytical techniques or methods used (40 CFR § 122.41(j)(3)(v)); and
 - 4.2.6. The results of such analyses. (40 CFR § 122.41(j)(3)(vi).)
- 4.3. Claims of confidentiality for the following information will be denied (40 CFR § 122.7(b)):
- 4.3.1. The name and address of any permit applicant or Discharger (40 CFR § 122.7(b)(1)); and
 - 4.3.2. Permit applications and attachments, permits and effluent data. (40 CFR § 122.7(b)(2).)

5. STANDARD PROVISIONS – REPORTING

5.1. Duty to Provide Information

The Discharger shall furnish to the Los Angeles Water Board, State Water Board, or USEPA Region 9 within a reasonable time, any information which the Los Angeles Water Board, State Water Board, or USEPA Region 9 may request to determine whether cause exists for modifying, revoking and reissuing, or terminating this Order or to determine compliance with this Order. Upon request, the Discharger shall also furnish to the Los Angeles Water Board, State Water Board, or USEPA Region 9 copies of records required to be kept by this Order. (40 CFR § 122.41(h); CWC, §§ 13267, 13383.)

5.2. Signatory and Certification Requirements

- 5.2.1. All applications, reports, or information submitted to the Los Angeles Water Board, State Water Board, and/or USEPA Region 9 shall be signed and certified in accordance with Standard Provisions – Reporting 5.2.2, 5.2.3, 5.2.4, 5.2.5, and 5.2.6 below. (40 CFR § 122.41(k).)
- 5.2.2. All permit applications shall be signed by either a principal executive officer or ranking elected official. For purposes of this provision, a principal executive officer of a federal agency includes: (i) the chief executive officer of the agency, or (ii) a senior executive officer having responsibility for the overall operations of a principal geographic unit of the agency (e.g., Regional Administrators of USEPA). (40 CFR § 122.22(a)(3).)
- 5.2.3. All reports required by this Order and other information requested by the Los Angeles Water Board, State Water Board, or USEPA Region 9 shall be signed by a person described in Standard Provisions – Reporting 5.2.2 above, or by a duly authorized representative of that person. A person is a duly authorized representative only if:
 - a. The authorization is made in writing by a person described in Standard Provisions – Reporting 5.2.2 above (40 CFR § 122.22(b)(1));
 - b. The authorization specifies either an individual or a position having responsibility for the overall operation of the regulated facility or activity such as the position of plant manager, operator of a well or a well field, superintendent, position of equivalent responsibility, or an individual or position having overall responsibility for environmental matters for the company. (A duly authorized representative may thus be either a named individual or any individual occupying a named position.) (40 CFR § 122.22(b)(2)); and
 - c. The written authorization is submitted to the Los Angeles Water Board, State Water Board, and USEPA. (40 CFR § 122.22(b)(3).)
- 5.2.4. If an authorization under Standard Provisions – Reporting 5.2.3 above is no longer accurate because a different individual or position has

responsibility for the overall operation of the facility, a new authorization satisfying the requirements of Standard Provisions – Reporting 5.2.3 above must be submitted to the Los Angeles Water Board, State Water Board, and USEPA Region 9 prior to or together with any reports, information, or applications, to be signed by an authorized representative. (40 CFR § 122.22(c).)

- 5.2.5. Any person signing a document under Standard Provisions – Reporting 5.2.2 or 5.2.3 above shall make the following certification:

“I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations.” (40 CFR § 122.22(d).)

- 5.2.6. Any person providing the electronic signature for documents described in Standard Provisions – 5.2.1, 5.2.2, or 5.2.3 that are submitted electronically shall meet all relevant requirements of Standard Provisions – Reporting 5.2 and shall ensure that all relevant requirements of 40 CFR part 3 (Cross-Media Electronic Reporting) and 40 CFR part 127 (NPDES Electronic Reporting Requirements) are met for that submission. (40 CFR § 122.22(e).)

5.3. Monitoring Reports

- 5.3.1. Monitoring results shall be reported at the intervals specified in the Monitoring and Reporting Program (Attachment E) in this Order. (40 CFR § 122.41(l)(4).)
- 5.3.2. Monitoring results must be reported on a Discharge Monitoring Report (DMR) form or forms provided or specified by the Los Angeles Water Board, State Water Board, or USEPA Region 9. All reports and forms must be submitted electronically to the initial recipient defined in Standard Provisions – Reporting 5.10 and comply with 40 CFR part 3, 40 CFR section 122.22, and 40 CFR part 127. (40 CFR § 122.41(l)(4)(i).)
- 5.3.3. If the Permittee monitors any pollutant more frequently than required by this Order using test procedures approved under 40 CFR part 136, or another method required for an industry-specific waste stream under 40 CFR chapter 1, subchapter N, the results of such monitoring shall be included in the calculation and reporting of the data submitted in the DMR or reporting form specified by the Los Angeles Water Board, State Water Board, and/or USEPA Region 9. (40 CFR § 122.41(l)(4)(ii).)

- 5.3.4. Calculations for all limitations, which require an averaging of measurements, shall utilize an arithmetic mean unless otherwise specified in this Order. (40 CFR § 122.41(l)(4)(iii).)

5.4. Compliance Schedules

Reports of compliance or noncompliance with, or any progress reports on, interim and final requirements contained in any compliance schedule of this Order, shall be submitted no later than 14 days following each schedule date. (40 CFR § 122.41(l)(5).)

5.5. Twenty-Four Hour Reporting

- 5.5.1. The Permittee shall report any noncompliance which may endanger health or the environment to the Manager of the Watershed Regulatory Section of the Los Angeles Water Board at (213) 576-6616 and jeong-hee.lim@waterboard.ca.gov. Any information shall be provided orally within 24 hours from the time the Permittee becomes aware of the circumstances. A report shall also be provided within five (5) days of the time the Permittee becomes aware of the circumstances. The report shall contain a description of the noncompliance and its cause; the period of noncompliance, including exact dates and times, and if the noncompliance has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent reoccurrence of the noncompliance.

For noncompliance events related to combined sewer overflows, sanitary sewer overflows, or bypass events, these reports must include the data described above (with the exception of time of discovery) as well as the type of event (i.e., combined sewer overflow, sanitary sewer overflow, or bypass event), type of overflow structure (e.g., manhole, combined sewer overflow outfall), discharge volume untreated by the treatment works treating domestic sewage, types of human health and environmental impacts of the event, and whether the noncompliance was related to wet weather.

As of December 21, 2025, all reports related to combined sewer overflows, sanitary sewer overflows, or bypass events must be submitted to the Los Angeles Water Board and must be submitted electronically by the Permittee to the initial recipient defined in Standard Provisions – Reporting 5.10. The reports shall comply with 40 CFR part 3, 40 CFR section 122.22, and 40 CFR part 127. The Los Angeles Water Board may also require the Permittee to electronically submit reports not related to combined sewer overflows, sanitary sewer overflows, or bypass events under this section. (40 CFR § 122.41(l)(6)(i).)

- 5.5.2. The following shall be included as information that must be reported within 24 hours:

- a. Any unanticipated bypass that exceeds any effluent limitation in this Order. (40 CFR § 122.41(l)(6)(ii)(A).)
- b. Any upset that exceeds any effluent limitation in this Order. (40 CFR § 122.41(l)(6)(ii)(B).)

5.5.3. The Los Angeles Water Board may waive the above required written report on a case-by-case basis if an oral report has been received within 24 hours. (40 CFR § 122.41(l)(6)(ii)(B).)

5.6. Planned Changes

The Permittee shall give notice to the Los Angeles Water Board as soon as possible of any planned physical alterations or additions to the permitted facility. Notice is required under this provision only when (40 CFR § 122.41(l)(1)):

5.6.1. The alteration or addition to a permitted facility may meet one of the criteria for determining whether a facility is a new source in section 122.29(b) (40 CFR § 122.41(l)(1)(i)); or

5.6.2. The alteration or addition could significantly change the nature or increase the quantity of pollutants discharged. This notification applies to pollutants that are not subject to effluent limitations in this Order. (40 CFR § 122.41(l)(1)(ii).)

5.6.3. The alteration or addition results in a significant change in the Permittee's sludge use or disposal practices, and such alteration, addition, or change may justify the application of permit conditions that are different from or absent in the existing permit, including notification of additional use or disposal sites not reported during the permit application process or not reported pursuant to an approved land application plan. (40 CFR § 122.41(l)(1)(iii).)

5.7. Anticipated Noncompliance

The Permittee shall give advance notice to the Los Angeles Water Board of any planned changes in the permitted facility or activity that may result in noncompliance with this Order's requirements. (40 CFR § 122.41(l)(2).)

5.8. Other Noncompliance

The Permittee shall report all instances of noncompliance not reported under Standard Provisions – Reporting 5.3, 5.4, and 5.5 above at the time monitoring reports are submitted. The reports shall contain the information listed in Standard Provision – Reporting 5.5 above. For noncompliance events related to combined sewer overflows, sanitary sewer overflows, or bypass events, these reports shall contain the information described in Standard Provision – Reporting 5.5 and the applicable required data in appendix A to 40 CFR part 127. As of December 21, 2025, all reports related to combined sewer overflows, sanitary sewer overflows or bypass events submitted in compliance with this section must be submitted electronically by the Discharger to the Los Angeles Water Board or initial

recipient, as defined in 40 CFR § 127.2(b), in compliance with this section and 40 CFR § 3 (including, in all cases, subpart D to 3), 122.22, and 40 CFR § 127. (40 CFR § 122.41(l)(7).)

5.9. Other Information

When the Permittee becomes aware that it failed to submit any relevant facts in a permit application or submitted incorrect information in a permit application or in any report to the Los Angeles Water Board, State Water Board, or USEPA Region 9, the Permittee shall promptly submit such facts or information. (40 CFR § 122.41(l)(8).)

5.10. Initial Recipient for Electronic Reporting Data

The owner, operator, or the duly authorized representative is required to electronically submit NPDES information specified in appendix A to 40 CFR part 127 to the initial recipient defined in 40 CFR section 127.2(b). USEPA will identify and publish the list of initial recipients on its website and in the Federal Register, by state and by NPDES data group [see 40 CFR section 127.2(c)]. USEPA will update and maintain this listing. (40 CFR § 122.41(l)(9).)

6. STANDARD PROVISIONS – ENFORCEMENT

- 6.1. The Los Angeles Water Board and USEPA Region 9 are authorized to enforce the terms of this Order under several provisions of the Water Code, including, but not limited to, sections 13268, 13385, 13386, and 13387.
- 6.2. The CWA provides that any person who violates section 301, 302, 306, 307, 308, 318 or 405 of the CWA, or any permit condition or limitation implementing any such sections in a permit issued under section 402, or any requirement imposed in a pretreatment program approved under sections 402(a)(3) or 402(b)(8) of the CWA, is subject to a civil penalty not to exceed \$25,000 per day for each violation. The CWA provides that any person who negligently violates sections 301, 302, 306, 307, 308, 318, or 405 of the CWA, or any condition or limitation implementing any of such sections in a permit issued under section 402 of the CWA, or any requirement imposed in a pretreatment program approved under section 402(a)(3) or 402(b)(8) of the CWA, is subject to criminal penalties of \$2,500 to \$25,000 per day of violation, or imprisonment of not more than one year, or both. In the case of a second or subsequent conviction for a negligent violation, a person shall be subject to criminal penalties of not more than \$50,000 per day of violation, or by imprisonment of not more than two years, or both. Any person who knowingly violates such conditions or limitations is subject to criminal penalties of \$5,000 to \$50,000 per day of violation, or imprisonment for not more than three years, or both. In the case of a second or subsequent conviction for a knowing violation, a person shall be subject to criminal penalties of not more than \$100,000 per day of violation, or imprisonment of not more than 6 years, or both. Any person who knowingly violates section 301, 302, 303, 306, 307, 308, 318 or 405 of the CWA, or any permit condition or limitation implementing any of

such sections in a permit issued under section 402 of the CWA, and who knows at that time that he thereby places another person in imminent danger of death or serious bodily injury, shall, upon conviction, be subject to a fine of not more than \$250,000 or imprisonment of not more than 15 years, or both. In the case of a second or subsequent conviction for a knowing endangerment violation, a person shall be subject to a fine of not more than \$500,000 or by imprisonment of not more than 30 years, or both. An organization, as defined in section 309(c)(3)(B)(iii) of the CWA, shall, upon conviction of violating the imminent danger provision, be subject to a fine of not more than \$1,000,000 and can be fined up to \$2,000,000 for second or subsequent convictions (40 CFR § 122.41(a)(2); CWC section 13385 and 13387).

- 6.3. Any person may be assessed an administrative penalty by the Administrator of USEPA, or an administrative civil liability by the Los Angeles Water Board, or State Water Board for violating section 301, 302, 306, 307, 308, 318 or 405 of the CWA, or any permit condition or limitation implementing any of such sections in a permit issued under section 402 of the CWA. Administrative penalties for Class I violations are not to exceed \$10,000 per violation, with the maximum amount of any Class I penalty assessed not to exceed \$25,000. Penalties for Class II violations are not to exceed \$10,000 per day for each day during which the violation continues, with the maximum amount of any Class II penalty not to exceed \$125,000. (40 CFR § 122.41(a)(3).)
- 6.4. The CWA provides that any person who falsifies, tampers with, or knowingly renders inaccurate any monitoring device or method required to be maintained under this permit shall, upon conviction, be punished by a fine of not more than \$10,000, or by imprisonment for not more than two years, or both. If a conviction of a person is for a violation committed after a first conviction of such person under this paragraph, punishment is a fine of not more than \$20,000 per day of violation, or by imprisonment of not more than four years, or both. (40 CFR § 122.41(j)(5).)
- 6.5. The CWA provides that any person who knowingly makes any false statement, representation, or certification in any record or other document submitted or required to be maintained under this permit, including monitoring reports or reports of compliance or non-compliance shall, upon conviction, be punished by a fine of not more than \$10,000 per violation, or by imprisonment for not more than six months per violation, or by both. (40 CFR § 122.41(k)(2).)

7. ADDITIONAL PROVISIONS – NOTIFICATION LEVELS

7.1. Publicly Owned Treatment Works (POTWs)

All POTWs shall provide adequate notice to the Los Angeles Water Board of the following (40 CFR 122.42(b)):

- 7.1.1. Any new introduction of pollutants into the POTW from an indirect discharger that would be subject to sections 301 or 306 of the CWA if it

were directly discharging those pollutants (40 CFR section 122.42(b)(1));
and

- 7.1.2. Any substantial change in the volume or character of pollutants being introduced into that POTW by a source introducing pollutants into the POTW at the time of adoption of the Order. (40 CFR 122.42(b)(2))
- 7.1.3. Adequate notice shall include information on the quality and quantity of effluent introduced into the POTW as well as any anticipated impact of the change on the quantity or quality of effluent to be discharged from the POTW. (40 CFR section 122.42(b)(3))

ATTACHMENT E– MONITORING AND REPORTING PROGRAM

TABLE OF CONTENTS

1. GENERAL MONITORING PROVISIONS.....	E-3
2. MONITORING LOCATIONS	E-7
3. INFLUENT MONITORING REQUIREMENTS.....	E-17
3.1. Monitoring Location INF-001	E-17
4. EFFLUENT MONITORING REQUIREMENTS.....	E-19
4.1 Monitoring Location EFF-002.....	E-19
5. WHOLE EFFLUENT TOXICITY (WET) TESTING REQUIREMENTS.....	E-22
5.1. Discharge In-stream Waste Concentration (IWC) for Chronic Toxicity.....	E-22
5.2. Sample Volume and Holding Time.....	E-23
5.3. Chronic Marine and Estuarine Species and Test Methods.....	E-23
5.4. Species Sensitivity Screening	E-23
5.5. Quality Assurance and Additional Requirements	E-24
5.6. Preparation of Initial Investigation Toxicity Reduction Evaluation (TRE) Work Plan.....	E-26
5.7. Accelerated Monitoring Schedule for Maximum Daily Single Result: >104 TUc .E- 27	
5.8. Toxicity Reduction Evaluation (TRE) Process.....	E-27
5.9. Reporting.....	E-28
5.10. Ammonia Removal.....	E-29
5.11. Chlorine Removal.....	E-30
6. LAND DISCHARGE MONITORING REQUIREMENTS (NOT APPLICABLE).....	E-30
7. RECYCLING MONITORING REQUIREMENTS (NOT APPLICABLE).....	E-30
8. RECEIVING WATER MONITORING REQUIREMENTS.....	E-30
8.1 Pacific Ocean Monitoring	E-30
9. OTHER MONITORING REQUIREMENTS.....	E-42
9.1. Tertiary Filter Treatment Bypasses	E-42
9.2. Outfall and Diffuser Inspection	E-43
9.3. Biosolids and Sludge Management.....	E-43
9.4. Monitoring of Volumetric Data for Wastewater and Recycled Water.....	E-43
10. REPORTING REQUIREMENTS	E-43
10.1. General Monitoring and Reporting Requirements	E-43
10.2. Self-Monitoring Reports (SMRs)	E-45
10.3. Discharge Monitoring Reports (DMRs).....	E-48
10.4. Other Reports.....	E-48

TABLE OF TABLES

TABLE E- 1. INFLUENT, EFFLUENT, AND RECEIVING WATER MONITORING STATIONS	E-8
TABLE E-2. CORE OFFSHORE RECEIVING WATER MONITORING STATIONS (FIGURE E-1).....	E-8
TABLE E-3. RECEIVING WATER BENTHIC MONITORING STATIONS (FIGURE E-2)	E-9
TABLE E-4. RECEIVING WATER TRAWL STATIONS (FIGURE E-3).....	E-10
TABLE E-5. SHORELINE BACTERIOLOGICAL MONITORING STATIONS (FIGURE E-4).....	E-11
TABLE E-6. INFLUENT MONITORING.....	E-17
TABLE E-7. EFFLUENT MONITORING AT EFF-002	E-19
TABLE E-8. USEPA TEST METHODS AND TEST ACCEPTABILITY CRITERIA	E-25
TABLE E-9. CORE OFFSHORE RECEIVING WATER MONITORING	E-31
TABLE E-10. SHORELINE BACTERIA RECEIVING WATER MONITORING	E-32
TABLE E-11. BENTHIC INFAUNA AND SEDIMENT CHEMISTRY MONITORING...	E-33
TABLE E-12. BIOACCUMULATION AND LOCAL SEAFOOD SAFETY MONITORINGE-39	
TABLE E- 13. MONITORING PERIODS AND REPORTING SCHEDULE	E-46

ATTACHMENT E – MONITORING AND REPORTING PROGRAM (MRP) No. 10859

Section 308(a) of the federal Clean Water Act (CWA) and sections 122.41(h), (j)-(l), 122.44(i), and 122.48 of title 40 of the Code of Federal Regulations (40 CFR) require that all National Pollutant Discharge Elimination System (NPDES) permits specify monitoring and reporting requirements. California Water Code (Water Code) section 13383 also authorizes the Los Angeles Water Board to establish monitoring, reporting, and recordkeeping requirements. This MRP establishes monitoring, reporting, and recordkeeping requirements that implement federal and California laws and/or regulations. If there is any conflict between requirements stated in this MRP and the provisions stated in the Estuary Discharge Permit, Order No. R4-2020-0024 (NPDES No. CA0053651), the more stringent requirements will prevail.

1. GENERAL MONITORING PROVISIONS

- 1.1. All samples shall be representative of the waste discharge under conditions of peak load. Results of monthly, quarterly, semiannual, and annual analyses as applicable shall be reported by the due date specified in Table E-17. The Discharger shall make every effort to schedule monitoring so that the different seasons are represented in the quarterly and semiannual monitoring throughout the year.
- 1.2. Pollutants, except those analyzed in the field, shall be analyzed using the analytical methods described in 40 CFR parts 136.3, 136.4, and 136.5; or where no methods are specified for a given pollutant, by methods approved by the Los Angeles Water Board or the State Water Resources Control Board (State Water Board).
- 1.3. **Laboratory Certification.** Laboratories analyzing samples shall be certified by the State Water Board, Division of Drinking Water (DDW) Environmental Laboratory Accreditation Program (ELAP), in accordance with Water Code section 13176, or approved by the Los Angeles Water Board Executive Officer, and must include quality assurance/quality control (QA/QC) data in their reports. A copy of the laboratory certification shall be provided in the Annual Report due to the Los Angeles Water Board each time a new certification and/or renewal of the certification is obtained from ELAP.
- 1.4. Water/wastewater samples must be analyzed within allowable holding time limits as specified in 40 CFR § 136.3. All QA/QC analyses must be run on the same dates that samples are actually analyzed. The Permittee shall retain the QA/QC documentation in its files and make available for inspection and/or submit this documentation. Proper chain of custody procedures must be followed, and a copy of this documentation shall be submitted.
- 1.5. The Permittee shall ensure all monitoring instruments are calibrated and maintained to ensure accuracy of measurements.

- 1.6. For any analyses performed for which no procedure is specified in the USEPA guidelines, or in the MRP, the constituent or parameter analyzed, and method or procedure used must be specified in the monitoring report.
- 1.7. Each monitoring report must affirm in writing that “with the exception of field tests, all analyses were conducted at a laboratory certified for such analyses under the ELAP through the State Water Board, Division of Drinking Water (DDW); or, were approved by the Executive Officer in accordance with current USEPA guideline procedures or as specified in this Monitoring and Reporting Program.”
- 1.8. The monitoring report shall specify the approved analytical method used, the Method Detection Limit (MDL), and the Reporting Level (RL) [the applicable Minimum Level (ML) or Reported Minimum Level (RML)] for each pollutant. The MLs are those published by the State Water Board in Appendix II of the Ocean Plan. The ML represents the lowest quantifiable concentration in a sample based on the proper application of all method-based analytical procedures and the absence of any matrix interference. When all specific analytical steps are followed and after appropriate application of method specific factors, the ML also represents the lowest standard in the calibration curve for that specific analytical technique. When there is deviation from the analytical method for dilution or concentration of samples, other factors are applied to the ML depending on the sample preparation. The resulting value is the RML.
- 1.9. The Permittee shall select the analytical method that provides an ML lower than the effluent limitation or performance goal established for a given parameter or where no such requirement exists, the lowest applicable water quality objective in the Ocean Plan. If the effluent limitation, performance goal, or the lowest applicable water quality objective is lower than all the MLs in Appendix II of the Ocean Plan, the Permittee must select the method with the lowest ML for compliance purposes. The Permittee shall include in the annual summary reports a list of the analytical methods and MLs employed for each test.
- 1.10. The Permittee shall develop and maintain a record of all spills or bypasses from its collection system or treatment plant according to the requirements in the Waste Discharge Requirements (WDRs) of this Order. This record shall be made available to the Los Angeles Water Board upon request and a spill/bypass summary shall be included in the annual summary report.
- 1.11. If the Permittee samples and performs analyses (other than for process/operational control, startup, research conducted outside of permit requirements, or equipment testing) on any influent or effluent constituent more frequently than required by this Order using approved analytical methods, the results of those analyses shall be included in the monitoring report. These results shall be reflected in the calculation of the average (or median) used in demonstrating compliance with limitations set forth in this Order.

- 1.12. For all bacterial analyses, sample dilutions should be performed so the expected range of values is bracketed (for example, with multiple tube fermentation method or membrane filtration method, 2 to 16,000 per 100 mL for total and fecal coliforms, at a minimum; and 1 to 1000 per 100 mL for *Enterococcus*). The detection methods used for each analysis shall be reported with the results of the analyses.
 - 1.12.1. Detection methods used for coliforms (total and fecal) shall be those presented in Table 1A of 40 CFR § 136, unless alternate methods have been approved in advance by the USEPA pursuant to 40 CFR § 136.
 - 1.12.2. Detection methods for *Escherichia coli* and *Enterococcus* shall be those presented in Table 1A of 40 CFR § 136 or in the USEPA publication EPA 600/4-85/076, "Test Methods for *Escherichia coli* and *Enterococci* in Water By Membrane Filter Procedure," or any improved method determined by the Los Angeles Water Board to be appropriate.
- 1.13. All receiving and ambient water monitoring conducted in compliance with the MRP must be comparable with the Quality Assurance requirements of the Surface Water Ambient Monitoring Program (SWAMP).
- 1.14. NPDES compliance monitoring focuses on the effects of a specific point source discharge. Generally, it is not designed to assess impacts from other sources of pollution (e.g., nonpoint source runoff, aerial fallout) or to evaluate the status of important ecological resources in the water body. The scale of existing compliance monitoring programs does not match the spatial and, to some extent, temporal boundaries of the important physical and biological processes in the ocean. In addition, the spatial coverage provided by compliance monitoring programs is less than ten percent of the nearshore ocean environment. Better technical information is needed about status and trends in ocean waters to guide management and regulatory decisions, to verify the effectiveness of existing programs, and to shape policy on marine environmental protection.
- 1.15. The Los Angeles Water Board and USEPA, working with other groups, have developed a comprehensive basis for effluent and receiving water monitoring appropriate to large publicly owned treatment works (POTWs) discharging to waters of the Southern California Bight. This effort has culminated in the publication by the Southern California Coastal Water Research Project (SCCWRP) of the Model Monitoring Program guidance document (Schiff, K.C., J.S. Brown and S.B. Weisberg. 2001. *Model Monitoring Program for Large Ocean Dischargers in Southern California*. SCCWRP Tech. Rep. #357. Southern California Coastal Water Research Project, Westminster, CA. 101 pp.). This guidance provides the principles, framework and recommended design for effluent and receiving water monitoring elements that have guided development of the monitoring program described below.

- 1.16. The conceptual framework for the Model Monitoring Program has three components that comprise a range of spatial and temporal scales: (1) core monitoring; (2) regional monitoring; and (3) special studies.
 - 1.16.1. Core monitoring is local in nature and focused on monitoring trends in quality and effects of the point source discharge. This includes effluent monitoring as well as some aspects of receiving water monitoring. In the monitoring program described below, these core components are typically referred to as local monitoring.
 - 1.16.2. Regional monitoring is focused on questions that are best answered by a region-wide approach that incorporates coordinated survey design and sampling techniques. The major objective of regional monitoring is to collect information required to assess how safe it is to swim in the ocean, how safe it is to eat seafood from the ocean, and whether the marine ecosystem is being protected. Key components of regional monitoring include elements to address pollutant mass emission estimations, public health concerns, monitoring of trends in natural resources, assessment of regional impacts from all contaminant sources, and protection of beneficial uses. The final design of regional monitoring programs is developed by means of steering committees and technical committees comprised of participating agencies and organizations and is not specified in this Order. Instead, for each regional component, the degree and nature of participation of the Discharger is specified.
 - 1.16.3. Special studies are focused on refined questions regarding specific effects or development of monitoring techniques and are anticipated to be of short duration and/or small scale, although multiyear studies also may be needed. Questions regarding effluent or receiving water quality, discharge impacts, ocean processes around the discharge, or development of techniques for monitoring the same, arising out of the results of core or regional monitoring, may be pursued through special studies. These studies are by nature ad hoc and cannot be typically anticipated in advance of the five-year permit cycle.

The Discharger and the Los Angeles Water Board shall consult annually to determine the need for special studies. Each year, the Discharger shall submit proposals for any proposed special studies to the Los Angeles Water Board by December 31st for the following year's monitoring effort (July through June). The following year, detailed scopes of work for proposals, including reporting schedules, shall be presented by the Discharger at a Los Angeles Water Board meeting, to obtain the Los Angeles Water Board approval and to inform the public. Upon approval by the Los Angeles Water Board, the Discharger shall implement its special study or studies.
- 1.17. Discharger participation in regional monitoring programs is required as a condition of this Order.

- 1.17.1. The Central Region Kelp Survey Consortium was established with the support of the Los Angeles Water Board to conduct regional kelp bed monitoring. This program is designed to require ocean dischargers in the Los Angeles Water Board's and the Santa Ana Regional Water Board's jurisdiction to undertake a collaborative program to monitor kelp beds in the Southern California Bight, patterned after the successful program implemented by the San Diego Regional Water Board since 1985. Data collected in this regional survey is used to assess status and trends in kelp bed health and spatial extent. The regional nature of the survey allows the status of beds local to specific dischargers to be compared to regional trends. The regional kelp monitoring survey was initiated during 2003. The Discharger shall participate in the Central Region Kelp Consortium described in section 8.1.6. of this MRP.
- 1.17.2. Southern California Bight Studies – Every five years SCCWRP coordinates regional monitoring within the Southern California Bight and compiles monitoring data collected by the dischargers and other participating entities. The Discharger must participate in SCCWRP monitoring activities similar to the monitoring activities conducted by POTWs in the region. While participation in regional monitoring programs is required under this Order, revisions to the Discharger's monitoring program at the direction of the Los Angeles Water Board may be necessary to accomplish the goals of regional monitoring or to allow the performance of special studies to investigate regional or site-specific water issues of concern. These revisions may include a reduction or increase in the number of parameters to be monitored, the frequency of monitoring, or the number and size of samples to be collected. Such changes were and may be authorized by the Los Angeles Water Board Executive Officer after written notification from the Discharger.
- 1.18. The Discharger shall ensure that the results of the Discharge Monitoring Report-Quality Assurance (DMR-QA) Study or the most recent Water Pollution Performance Evaluation Study are submitted annually to the State Water Board via email at QualityAssurance@Waterboards.ca.gov or at the following address:
- State Water Resources Control Board
Quality Assurance Program Officer
Office of Information Management and Analysis
1001 I Street, Sacramento, CA 95814

2. MONITORING LOCATIONS

The Discharger shall establish the following monitoring locations to demonstrate compliance with the effluent limitations, discharge specifications, and other requirements in this Order. The North latitude and West longitude information in Table E-1 is approximate for administrative purposes.

Table E- 1. Influent, Effluent, and Receiving Water Monitoring Stations

Discharge Point Name	Monitoring Location Name	Monitoring Location Description
--	INF-001	The Influent Monitoring Station is located at the influent pump station located in the influent channel prior to the headworks and any process stream addbacks, adjacent to Harbor Boulevard. (34.24040°N, 119.25709°W)
002	EFF-002	The Ocean Outfall Monitoring Station is located downstream of where the disinfected tertiary treated effluent and reverse osmosis concentrate are mixed at the ocean outfall pump station. (34.241275°N, 119.257636°W)

Table E-2. Core Offshore Receiving Water Monitoring Stations (Figure E-1)

Monitoring Station Name	Station Depth (m)	Distance from Outfall (m)	Coordinates
A1 (Outfall)	13-18	0	34.253103°N, 119.29065°W
B1	13-18	500	34.25466°N, 119.28559°W
B2	13-18	500	34.25733°N, 119.28869°W
B3	13-18	500	34.25729°N, 119.29318°W
B4	13-18	500	34.25445°N, 119.29587°W
B5	13-18	500	34.25147°N, 119.29594°W
B6	13-18	500	34.24885°N, 119.29265°W
B7	13-18	500	34.24909°N, 119.28806°W
B8	13-18	500	34.25164°N, 119.28550°W
C1	13-18	1,000	34.25623°N, 119.28039°W
C2	13-18	1,000	34.26163°N, 119.28690°W
C3	13-18	1,000	34.26138°N, 119.29550°W

Monitoring Station Name	Station Depth (m)	Distance from Outfall (m)	Coordinates
C4	13-18	1,000	34.25590°N, 119.30108°W
C5	13-18	1,000	34.24979°N, 119.30116°W
C6	13-18	1,000	34.24461°N, 119.29464°W
C7	13-18	1,000	34.24492°N, 119.28536°W
C8	13-18	1,000	34.25031°N, 119.28021°W

Table E-3. Receiving Water Benthic Monitoring Stations (Figure E-2)

Monitoring Station Name	Station Depth (m)	Distance from Outfall/Transect Length (m)	Coordinates
BEN 01	16	500	34. 257508°N, 119.292384°W
BEN 02	16	200	34.254943°N, 119.291305°W
BEN 03	16	18	34.253374°N, 119.290521°W
BEN 04	16	18	34.253054°N, 119.290446°W
BEN 05	16	200	34.251405°N, 119.290233°W
BEN 06	16	500	34.248719°N, 119.289696°W

Table E-4. Receiving Water Trawl Stations (Figure E-3)

Monitoring Station Name	Station Depth (m)	Distance from Outfall/Transect Length (m)	Coordinates
TWL 01	16	500	34.248759°N, 119.289154°W
TWL 02	16	500	34.257479°N, 119.292385°W

Table E-5. Shoreline Bacteriological Monitoring Stations (Figure E-4)

Ventura County ID	Monitoring Location	Coordinates
19000	San Buenaventura State Beach (San Jon Rd)	34.27220°N, 119.28520°W
20000	San Buenaventura State Beach (Dover Lane)	34.26370°N, 119.27590°W
21000	San Buenaventura State Beach (Weymouth Lane)	34.25690°N, 119.27150°W
22000	Marina Park Beach	34.25380°N, 119.27010°W
23000	Peninsula Beach/Harbor Cove	34.24640°N, 119.26810°W
25000	Surfer's Knoll Beach	34.23970°N, 119.26680°W



Figure E-1 OFFSHORE RECEIVING WATER MONITORING STATIONS

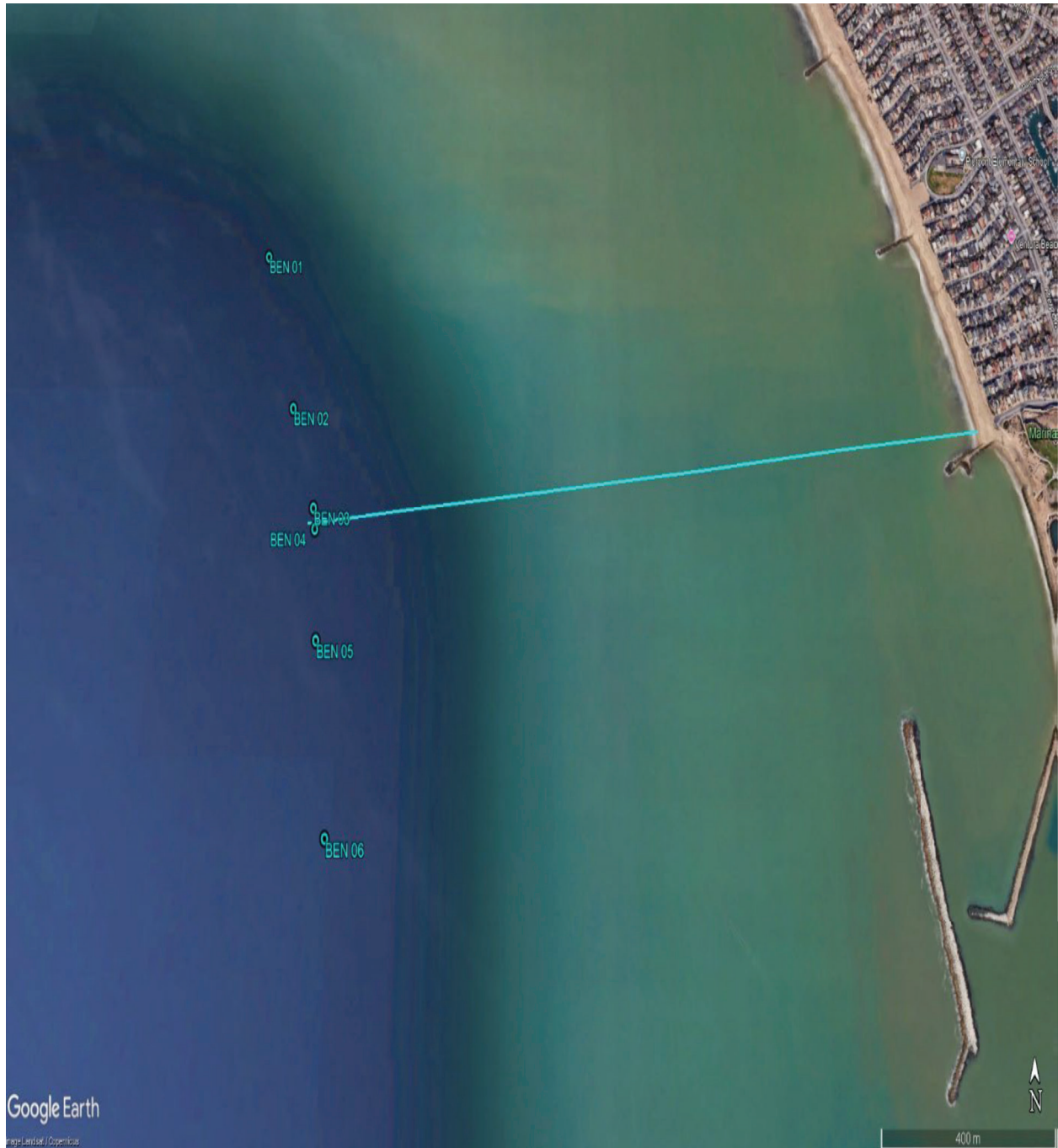


Figure E-2. RECEIVING WATER BENTHIC MONITORING STATIONS



FIGURE E-3. RECEIVING WATER TRAWL STATIONS



Figure E-4. Shoreline Bacteriological Monitoring Stations



Figure E-5. Seafood Safety/Bioaccumulation Monitoring Zone

3. INFLUENT MONITORING REQUIREMENTS

Influent monitoring is required to determine compliance with NPDES permit conditions, to assess treatment plant performance, and to assess the effectiveness of the Pretreatment Program.

3.1. Monitoring Location INF-001

The Discharger shall monitor influent to the facility at INF-001 as follows:

Table E-6. Influent Monitoring

Parameter	Units	Sample Type	Minimum Sampling Frequency	Notes
Flow	MGD	Recorder	Continuously	a
Biochemical Oxygen Demand (BOD ₅ 20°C)	mg/L	24-hr composite	Weekly	--
Total Suspended Solids (TSS)	mg/L	24-hr composite	Weekly	--
pH	pH units	grab	Weekly	--
Oil and grease	mg/L	grab	Quarterly	--
Temperature	°F	grab	Weekly	--
Nitrate	mg/L	24-hr composite	Monthly	--
Nitrite	mg/L	24-hr composite	Monthly	--
Nitrate plus nitrite	mg/L	24-hr composite	Monthly	
Organic Nitrogen	mg/L	calculation	Monthly	--
Ammonia	mg/L	24-hr composite	Monthly	--
Total Kjeldahl Nitrogen	mg/L	24-hr composite	Monthly	--
Total Nitrogen	mg/L	calculation	Monthly	h
Total Phosphorus	mg/L	24-hr composite	Quarterly	--
Cyanide	µg/L	grab	Semiannually	--
Copper	µg/L	24-hr composite	Monthly	b
Mercury	µg/L	24-hr composite or grab	Monthly	b, c
Nickel	µg/L	24-hr composite	Monthly	b
Selenium	µg/L	24-hr composite	Monthly	b
Silver	µg/L	24-hr composite	Semiannually	b
Zinc	µg/L	24-hr composite	Monthly	b
PCBs Aroclors	µg/L	24-hr composite	Annually	f
PCBs Congeners	pg/L	24-hr composite	Annually	f
TCDD Equivalents	pg/L	24-hour composite or grab	semiannually	e, g

Parameter	Units	Sample Type	Minimum Sampling Frequency	Notes
Bis(2-ethylhexyl) phthalate	µg/L	Grab or 24-hr composite	semiannually	e, g
Remaining priority pollutants in 40 CFR Part 131.36 and remaining pollutants in Ocean Plan Table 3 (excluding asbestos, residual chlorine, radioactivity, chronic toxicity, and acute toxicity)	µg/L	24-hour composite; grab for chromium, chromium VI, and VOCs; 24-hour composite or grab for phthalate esters	Semiannually	b, e

Footnotes for Table E-6

- a. Total daily flow, monthly average flow, and instantaneous peak daily flow (24-hour basis) shall be reported. The actual monitored flow shall be reported (not design capacity).
- b. Concentrations of metals shall be expressed as total recoverable.
- c. USEPA Method 1631E, with a quantification level of 0.5 ng/L, shall be used to analyze total mercury, unless another 40 CFR 136 method is sufficiently sensitive (e.g., influent concentrations exceed the quantification level in the approved method).
- d. Pesticides, for the purpose of this Order, shall mean the six constituents referred to in 40 CFR section 125.58(p) (methoxychlor, demeton, guthion, malathion, mirex, and parathion).
- e. The 40 CFR Part 136 method for phthalate esters, including bis(2-ethylhexyl) phthalate and TCDD equivalents, requires samples to be collected in glass sample containers to avoid interference, which can lead to artifacts and/or elevated baselines in gas chromatograms. Sample collection must be performed using glass sample containers for all phthalate esters, including bis(2-ethylhexyl) phthalate and TCDD equivalents, unless analytical methods for these pollutants in 40 CFR Part 136 specify that other means of sample collection are approved. Grab samples are recommended, but an automatic sampler (composite sample) can be used to collect samples for all phthalate esters, including bis(2-ethylhexyl) phthalate and TCDD equivalents, as long as the sample bottles are glass.
- f. PCBs as Aroclors shall be analyzed using USEPA method 608.3. PCBs as congeners shall be individually quantified (or quantified as mixtures of isomers of a single congener in co-elutions as appropriate) using USEPA proposed method 1668c, unless another method is promulgated under 40 CFR 136 and an ELAP-certified lab is available to conduct the analysis of the alternative method. Permittees should use for discharge monitoring reports/State monitoring reports: (1) USEPA method 608.3 for monitoring data, reported as Aroclor results, that will be used for assessing compliance with water quality-based effluent limitations (if applicable) and (2) USEPA method 1668c for monitoring data, reported as 41 congener results, that will be used

for informational purposes. If there are no detects of PCBs as congeners in the influent after one year of monitoring, no additional PCBs as congener analyses are required in the influent for the rest of the permit term.

- g. USEPA Method 1613 shall be used to analyze TCDD equivalents.
- h. See Attachment A for definition of terms.

End of footnotes for Table E-6

4. EFFLUENT MONITORING REQUIREMENTS

Effluent monitoring is required to determine compliance with NPDES permit conditions and water quality standards; assess and improve plant performance and identify operational problems; provide information on wastewater characteristics and flows for use in interpreting water quality and biological data; and to conduct reasonable potential analyses for toxic pollutants.

4.1 Monitoring Location EFF-002

The Discharger shall monitor the discharge of tertiary-treated effluent and/or reverse osmosis concentrate into the ocean at EFF-002. If more than one analytical test method is listed for a given parameter, the Permittee must select a sufficiently sensitive method as defined in 40 CFR 122.21(e)(3) and 122.44(i)(1)(iv). If no reverse osmosis concentrate is discharged, and the effluent discharged to Discharge Point 002 pursuant to this Order is representative (i.e. only tertiary-treated effluent) of the effluent discharged to the Santa Clara River Estuary pursuant to NPDES No. CA0053651 via Discharge Point 001, the monitoring data collected pursuant to NPDES No. CA0053651 at EFF-001 (except for flow) may be reported to comply with the monitoring requirements pursuant to this Order for EFF-002 to avoid duplicative monitoring. However, any pollutants required to be monitored at EFF-002 pursuant to this Order but not required to be monitored at EFF-001 pursuant to NPDES No. CA0053651 must still be monitored whenever there is discharge to Discharge Point 002 pursuant to this Order.

Table E-7. Effluent Monitoring at EFF-002

Parameter	Units	Sample Type	Minimum Sampling Frequency	Notes
Flow	MGD	Recorder/totalizer	Continuously	a
BOD ₅ 20°C	mg/L	24-hr composite	Weekly	b
TSS	mg/L	24-hr composite	Weekly	b
pH	pH units	Grab	Weekly	b
Oil and Grease	mg/L	Grab	Monthly	b, c
Temperature	°F	Grab	Weekly	b
Settleable Solids	mL/L	Grab	Weekly	b, c

Parameter	Units	Sample Type	Minimum Sampling Frequency	Notes
Turbidity	NTU	24-hr composite, grab, and recorder/totalizer	Weekly, Continuously	b
Total coliform	MPN/100 mL or CFU/100 mL	grab	Weekly	b
Fecal coliform	MPN/100 mL or CFU/100 mL	grab	Weekly	b
<i>Enterococci</i>	MPN/100 mL or CFU/100 mL	grab	Weekly	b
Dissolved oxygen	mg/L	grab	Weekly	b, m
Salinity	ppt	grab	Monthly	b
Ammonia (as N)	mg/L	24-hr composite	Monthly	b
Nitrate Nitrogen	mg/L	24-hr composite	Monthly	b
Nitrite Nitrogen	mg/L	24-hr composite	Monthly	b
Nitrate plus nitrite	mg/L	24-hr composite	Monthly	b
Total Organic Nitrogen	mg/L	Calculation	Monthly	b
Total Kjeldahl Nitrogen	mg/L	24-hr composite	Monthly	b
Total Nitrogen	mg/L	Calculation	Monthly	b, g
Orthophosphate-P	mg/L	24-hr composite	Quarterly	b
Total Phosphorus	mg/L	24-hr composite	Quarterly	b
Dissolved sulfides	mg/L	24-hr composite	Quarterly	--
Chlorine Residual	mg/L	grab and recorder/totalizer	Daily, Continuously	---
Toxicity, Chronic <i>Atherinops affinis</i> Larval Survival and Growth Test	TUc	24-hr composite	Monthly	e

Parameter	Units	Sample Type	Minimum Sampling Frequency	Notes
Radioactivity (including gross alpha, gross beta, combined radium-226 & radium-228, tritium, strontium-90 and uranium)	pCi/L	24-hr composite	Semiannually	f
PFAS	ng/L	Grab	Quarterly	g, h
PCBs as aroclors	µg/L	24-hour composite	Annually	k
PCBs as congeners	pg/L	24-hr composite	Annually	k
Remaining pollutants in Ocean Plan Table 3 (excluding acute toxicity)	µg/L	24-hour composite; grab for chromium VI, VOCs, and cyanide; 24-hour composite or grab for mercury	Semiannually	d, i, j, l

Footnotes for Table E-7:

- a. Total daily flow, monthly average flow, and instantaneous peak daily flow (24-hour basis) shall be reported. Actual monitored flow shall be reported (not design capacity).
- b. Weekly and monthly monitoring shall be arranged so that each day of the week, except Saturday and Sunday, is represented over a five-week or month period. The schedule shall be repeated every five months.
- c. Oil and grease, and settleable solids monitoring shall consist of a single grab sample at peak flow over a 24- hour period.
- d. Concentrations of metals shall be expressed as total recoverable.
- e. The Permittee shall conduct whole effluent toxicity monitoring using the most sensitive species as the test species, as outlined in section 5 of this MRP.
- f. Analyze these radiochemicals by the following USEPA methods: method 900.0 or 7110 (if TDS concentrations in the sample exceed 500 mg/L) for gross alpha and gross beta, method 903.0 or 903.1 for radium-226, method 904.0 for radium-228, method 906.0 for tritium, method 905.0 for strontium-90, and method 908.0 for uranium. Analysis for combined radium-226 & 228 shall be conducted only if gross alpha and gross beta results for the same sample exceed 15 pCi/L or 50 pCi/L, respectively. If radium-226 & 228 exceeds 5 pCi/L, then analyze for tritium, strontium-90, and uranium. Although there is currently no ELAP accreditation available for some of the radiochemical methods described above using wastewater, the Discharger shall use an ELAP-accredited laboratory once ELAP accreditation becomes available for the method. The Discharger is required to monitor for those radiochemicals with test methods that can be performed by any commercially

available laboratory. The lab report shall state whether naturally occurring potassium-40 was excluded from the reported gross beta results.

- g. See Attachment A for definition of terms.
- h. PFAS shall be analyzed using USEPA Method 1633. An alternative ELAP-accredited method for PFAS in wastewaters may be used if the Permittee submits a request to use an alternative method to the Los Angeles Water Board and the request is approved. The ELAP accredited method for each group of compounds will specify which specific analytes shall be measured. All analytes that can be measured using the selected ELAP-accredited method shall be analyzed.
- i. The 40 CFR Part 136 method for phthalate esters, including bis(2-ethylhexyl) phthalate and TCDD equivalents, requires samples to be collected in glass sample containers to avoid interference, which can lead to artifacts and/or elevated baselines in gas chromatograms. Sample collection must be performed using glass sample containers for all phthalate esters, including bis(2-ethylhexyl) phthalate and TCDD equivalents, unless analytical methods for these pollutants in 40 CFR Part 136 specify that other means of sample collection are approved. Grab samples are recommended, but an automatic sampler (composite sample) can be used to collect samples for all phthalate esters, including bis(2-ethylhexyl) phthalate and TCDD equivalents, as long as the sample bottles are glass.
- j. USEPA Method 1631E, with a quantification level of 0.5 ng/L, shall be used to analyze total mercury, unless another 40 CFR 136 method is sufficiently sensitive.
- k. PCBs as Aroclors shall be analyzed using USEPA method 608.3. PCBs as congeners shall be individually quantified (or quantified as mixtures of isomers of a single congener in co-elutions as appropriate) using USEPA proposed method 1668c, unless another method is promulgated under 40 CFR 136 and an ELAP-certified lab is available to conduct the analysis of the alternative method. USEPA recommends that until USEPA proposed method 1668c for PCBs is incorporated into 40 CFR § 136, Permittees should use for discharge monitoring reports/State monitoring reports: (1) USEPA method 608.3 for monitoring data, reported as Aroclor results, that will be used for assessing compliance with water quality-based effluent limitations (if applicable) and (2) USEPA method 1668c for monitoring data, reported as 41 congener results, that will be used for informational purposes to help assess concentrations in the receiving water.
- l. USEPA Method 1613 shall be used for TCDD equivalents.
- m. Dissolved oxygen single sample results shall be reported in the monthly reports and the annual average shall be reported in the annual report.

End of footnotes for Table E-7

5. WHOLE EFFLUENT TOXICITY (WET) TESTING REQUIREMENTS

5.1. Discharge In-stream Waste Concentration (IWC) for Chronic Toxicity

The chronic toxicity IWC is the concentration of a pollutant or the parameter toxicity in the receiving water after mixing. The chronic toxicity IWC for Discharge

Point 002 is based on 1 part effluent to 103 parts seawater or 0.96 percent effluent.

5.2. Sample Volume and Holding Time

The total sample volume shall be determined by the specific toxicity test method used. Sufficient sample volume shall be collected to perform the required toxicity test. All toxicity tests shall be conducted as soon as possible following sample collection. No more than 36 hours shall elapse before the conclusion of sample collection and test initiation.

5.3. Chronic Marine and Estuarine Species and Test Methods

If effluent samples are collected from outfalls discharging to receiving waters with salinity >1 ppt, the Permittee shall conduct the following chronic toxicity tests on effluent samples, at the in-stream waste concentration for the discharge, in accordance with species and test methods in *Short-term Methods for Estimating the Chronic Toxicity of Effluents and Receiving Waters to West Coast Marine and Estuarine Organisms* (EPA/600/R-95/136, 1995). Artificial sea salts or hypersaline brine shall be used to increase sample salinity if needed. In no case shall these species be substituted with another test species unless written authorization from the Los Angeles Water Board Executive Officer is received.

- a. A static renewal toxicity test with the topsmelt, *Atherinops affinis* (Larval Survival and Growth Test Method 1006.0).
- b. A static non-renewal toxicity test with the purple sea urchin, *Strongylocentrotus purpuratus*, or the sand dollar, *Dendraster excentricus* (Fertilization Test Method 1008.0), or a static non-renewal toxicity test with the red abalone, *Haliotis rufescens* (Larval Shell Development Test Method).
- c. A static non-renewal toxicity test with the giant kelp, *Macrocystis pyrifera* (Germination and Growth Test Method 1009.0).

5.4. Species Sensitivity Screening

The Permittee shall begin a species sensitivity screening for Discharge Point 002 at least 18 months prior to the expiration date of this Order. For continuous dischargers, species sensitivity screening includes four sets of valid tests completed in the span of one year, with one set collected in each of the four quarters. In each of the four sets, the Permittee shall collect a single effluent sample to initiate and concurrently conduct three toxicity tests using the fish, an invertebrate, and the alga species previously referenced. Alternatively, a renewal sample from the topsmelt test may be used to initiate the invertebrate and alga tests as long as all three species are tested concurrently using the same renewal sample. This sample shall also be analyzed for the parameters required on a monthly frequency for the discharge, during that given month. As required in the test method for *Atherinops affinis* for off-site tests, a minimum of three samples shall be collected preferably on days one, three, and five with a maximum holding time of 36 hours before the first use. To determine the most sensitive

species, the Discharger shall select the species associated with the test exhibiting the highest percent effect out of all 12 tests.

The most sensitive species determined based on the toxicity tests conducted during the previous permit cycle, topsmelt, *Atherinops affinis*, shall be used for the toxicity testing until a new species sensitivity screening is conducted. Any invertebrate specified in Section 5.3.b. may be used during the species sensitivity screening; however, the same invertebrate must be used for all screening tests.

5.5. Quality Assurance and Additional Requirements

Quality assurance measures, instructions, and other recommendations and requirements are found in the test methods manual previously referenced. Additional requirements are specified below:

- 5.5.1. The chronic toxicity of the effluent shall be expressed and reported in toxic units (TUC), where:

$$TUC = \frac{100}{NOEC}$$

The No Observable Effect Concentration (NOEC) is expressed as the maximum percent effluent concentration that causes no observable effect on test organisms, as determined by the results of a critical life stage toxicity test.

If the chronic toxicity of the effluent exceeds the maximum daily effluent limitation of 104 TUC, the Discharger shall immediately implement accelerated chronic toxicity testing according to section 5.7.

- 5.5.2. If the effluent toxicity test does not meet all test acceptability criteria (TAC) and all required test conditions specified in the referenced *Short-Term Methods for Estimating the Chronic Toxicity of Effluents and Receiving Waters to West Coast Marine and Estuarine Organisms* (See Table E-8 for TAC below), the Permittee must re-sample and re-test within 14 days. Deviations from recommended test conditions, specified in the referenced *Short-Term Methods for Estimating the Chronic Toxicity of Effluents and Receiving Waters to West Coast Marine and Estuarine Organisms*, must be evaluated on a case-by-case to determine the validity of test results. The Discharger shall consider the degree of the deviation and the potential or observed impact of the deviation on the test results in consultation with Los Angeles Water Board staff before rejecting or accepting a test result as valid and shall report the results of the validity determination with supporting evidence for that decision in their monthly report.

Table E-8. USEPA Test Methods and Test Acceptability Criteria

Species & USEPA Test Method Number	Test Acceptability Criteria (TAC)
Topsmelt, <i>Atherinops affinis</i> , Larval Survival and Growth Test Method 1006.0. (Table 3 of test method)	80% or greater survival in controls; average dry weight per surviving organism in control chambers equals or exceeds 0.85 mg. LC50 with copper must be $\leq 205 \mu\text{g/L}$, <25% MSD for survival and <50% MSD for growth. If the test starts with 9-day old larvae, the mean weight per larva must exceed 0.85 milligrams in the reference and brine controls; the mean weight of preserved larvae must exceed 0.72 milligrams. (required)
Purple Sea Urchin, <i>Strongylocentrotus purpuratus</i> , and the Sand Dollar, <i>Dendraster excentricus</i> , Fertilization Test Method 1008.0 (Table 7 of test method)	70% or greater egg fertilization in controls, must achieve an MSD of <25%, and appropriate sperm counts. (required)
Red Abalone, <i>Haliotis rufescens</i> , Larval Shell Development Test Method (Table 3 of test method)	80% or greater normal shell development in the controls; must have statistically significant effect at $56 \mu\text{g/L}$ zinc and achieve an MSD of <20%. (required)
Giant Kelp, <i>Macrocystis pyrifera</i> , Germination and Growth Test Method 1009.0 (Table 3 of test method)	70% or greater germination in controls, $\geq 10 \mu\text{m}$ germ-tube length in controls, No Observed Effect Concentration (NOEC) must be below $35 \mu\text{g/L}$ in the reference toxicant test, and must achieve an MSD of <20% for both germination and germ-tube length in the reference toxicant. (required)

5.5.3. Dilution water and control water, including brine controls, shall be 1- μm -filtered uncontaminated natural seawater, hypersaline brine prepared using uncontaminated natural seawater, or laboratory water prepared and used as specified in the test methods manual. If dilution water and control water is different from test organism culture water, then a second control using culture water shall also be used.

5.5.4. A series of at least five dilutions and a control shall be tested. The dilution series shall include the instream waste concentration (IWC), and two dilutions above and two below the IWC.

5.5.5. Monthly reference toxicant testing is sufficient. All reference toxicant test results should be reviewed and reported using EC25. EC25 is a point estimate of the toxicant concentration that would cause an observable

adverse effect (e.g., death, immobilization, or serious incapacitation) in 25 percent of the test organisms.

- 5.5.6. The Discharger shall review the concentration-response relationship for each multi-concentration test to ensure that calculated test results are interpreted appropriately. All WET test results should be reviewed and reported following Method Guidance and Recommendations for WET Testing (EPA/821/B-00-004, 2000).
- 5.5.7. Because this permit requires sublethal hypothesis testing endpoints from the 1995 West Coast marine and estuarine WET test methods manual and the 2002 East Coast marine and estuarine WET test methods manual, within test variability must be reviewed and variability criteria [e.g., Minimum Significance Difference (MSD) bound, Percent, Minimum Significance Difference (PMSD) bounds] must be applied, as specified in the test methods manuals. The calculated MSD (or PMSDs) for both reference toxicant test and effluent toxicity test results must meet the MSD bound (or PMSD bounds) variability criteria specified in the test methods manuals.
- 5.5.8. The Permittee shall perform toxicity tests on EFF-002 effluent samples. Chlorine and ammonia shall not be removed from the effluent sample prior to toxicity testing, unless explicitly authorized under this section of the Monitoring and Reporting Program and the rationale is explained in the Fact Sheet (Attachment F).

5.6. Preparation of Initial Investigation Toxicity Reduction Evaluation (TRE) Work Plan

The Permittee shall update and submit a copy of the Permittee's initial investigation TRE work plan to the Los Angeles Water Board Executive Officer for approval within 90 days of the effective date of this Order. If the Executive Officer does not disapprove the work plan within 60 days of being submitted, the work plan shall become effective. The Permittee shall use USEPA manual EPA/833B-99/002 (municipal) as guidance, or most current version, or USEPA manual *Generalized Methodology for Conducting Industrial Toxicity Reduction Evaluations* (EPA/600/2-88/070, April 1989). At a minimum, the TRE Work Plan must contain the provisions in Attachment G. This work plan shall describe the steps that the Permittee intends to follow if toxicity is detected in the discharge. At minimum, the work plan shall include:

- a. A description of the investigation and evaluation techniques that will be used to identify potential causes and sources of toxicity, effluent variability, and treatment system efficiency;
- b. A description of the Facility's methods of maximizing in-house treatment efficiency and good housekeeping practices, and a list of all chemicals used in the operation of the Facility; and

- c. If a TIE is necessary, an indication of the person who would conduct the TIEs (i.e., an in-house expert or an outside contractor).

5.7. Accelerated Monitoring Schedule for Maximum Daily Single Result: >104 TUC

The Maximum Daily single result shall be used to determine if accelerated testing needs to be conducted.

Once the Permittee becomes aware of this result, the Permittee shall implement an accelerated monitoring schedule within 5 calendar days of receipt of the result. However, if the sample is contracted out to a commercial laboratory, the Permittee shall ensure that the first of six accelerated monitoring tests is initiated within seven calendar days of the Permittee becoming aware of the result. The accelerated monitoring schedule shall consist of six toxicity tests (including the discharge IWC), conducted at approximately two-week intervals, over a 12-week period; in preparation for the TRE process and associated reporting, these results shall also be reported using the EC25. If each of the accelerated toxicity tests results does not exceed the MDEL of 104 TUC, the Permittee shall return to routine monitoring for the next monitoring period. If any one of the accelerated toxicity test results exceed the effluent limitation, the Permittee shall immediately implement the TRE process conditions set forth below.

5.8. Toxicity Reduction Evaluation (TRE) Process

A TRE is required when toxicity is persistent in the effluent, where the effluent exceeds the MDEL in the initial toxicity test and an additional exceedance in any of the six accelerated monitoring tests conducted over a 12-week period. In addition, if other information indicates toxicity (e.g., results of additional monitoring, results of monitoring at a higher concentration than the IWC, fish kills, intermittent recurring toxicity), then the Executive Officer of the Los Angeles Water Board may require a TRE. The Discharger shall conduct a TRE in accordance with a TRE Work Plan as approved by the Los Angeles Water Board. Routine monitoring shall continue during the TRE process and TUC results for chronic toxicity tests shall be reported as effluent compliance monitoring results for the chronic toxicity MDEL.

5.8.1. Preparation and Implementation of Detailed TRE Work Plan. The Permittee shall immediately initiate a TRE using, according to the type of treatment facility, USEPA manual *Toxicity Reduction Evaluation Guidance for Municipal Wastewater Treatment Plants* (EPA/833/B-99/002, 1999) or EPA manual *Generalized Methodology for Conducting Industrial Toxicity Reduction Evaluations* (EPA/600/2-88/070, April 1989) and, within 30 days of a toxicity event, submit to the Los Angeles Water Board Executive Officer a detailed TRE Work Plan which shall follow the initial investigation TRE Work Plan revised as appropriate for this toxicity event. It shall include the following information, and comply with additional conditions set by the Los Angeles Water Board Executive Officer:

- a. Further actions by the Permittee to investigate, identify, and correct the causes of toxicity;
 - b. Actions the Permittee will take to mitigate the effects of the discharge and prevent the recurrence of toxicity; and
 - c. A schedule for these actions, progress reports, and the final report.
- 5.8.2. **TIE Implementation.** The Permittee may initiate a TIE as part of a TRE to identify the causes of toxicity using the same species and test method and, as guidance, USEPA manuals: *Toxicity Identification Evaluation: Characterization of Chronically Toxic Effluents, Phase I* (EPA/600/6-91/005F, May 1992); Chronic TIE Manual: *Toxicity Identification Evaluation: Characterization of Chronically Toxic Effluents, Phase I* (EPA/600/6-91/005F, 1992); *Methods for Aquatic Toxicity Identification Evaluations, Phase II Toxicity Identification Procedures for Samples Exhibiting Acute and Chronic Toxicity* (EPA/600/R-92/080, 1993); *Methods for Aquatic Toxicity Identification Evaluations, Phase III Toxicity Confirmation Procedures for Samples Exhibiting Acute and Chronic Toxicity* (EPA/600/R-92/081, 1993); and *Marine Toxicity Identification Evaluation (TIE): Phase I Guidance Document* (EPA/600/R-96-054, 1996). The TIE should be conducted on the species demonstrating the most sensitive toxicity response.
- 5.8.3. Many recommended TRE elements parallel required or recommended efforts for source control, pollution prevention, and stormwater control programs. TRE efforts should be coordinated with such efforts. As toxic substances are identified or characterized, the Permittee shall continue the TRE by determining the sources and evaluating alternative strategies for reducing or eliminating the substances from the discharge. All reasonable steps shall be taken to reduce toxicity to levels consistent with toxicity evaluation parameters.
- 5.8.4. The Permittee shall continue to conduct routine effluent monitoring while the TIE and/or TRE process is taking place. Additional accelerated monitoring and TRE work plans are not required once a TRE has begun.
- 5.8.5. The Los Angeles Water Board recognizes that toxicity may be episodic and identification of causes and reduction of sources of toxicity may not be successful in all cases. However, TREs shall be carried out in accordance with the Executive Officer-approved TRE Work Plan.
- 5.8.6. The Los Angeles Water Board may consider the results of any TIE/TRE studies in an enforcement action.

5.9. Reporting

The Self-Monitoring Report (SMR) shall include a full laboratory report for each toxicity test. This report shall be prepared using the format and content of the test methods manual chapter called Report Preparation, including:

- 5.9.1. The valid toxicity test results reported as TUC at the chronic toxicity IWC for the discharge using the most sensitive species. All toxicity test results (whether identified as valid or otherwise) conducted during the calendar month shall be reported by the SMR due date specified in Table E-13.
- 5.9.2. NOEC and LOEC value(s), percent effect, IC/EC25 in percent effluent.
- 5.9.3. A summary of water quality measurements for each toxicity test (e.g., pH, dissolved oxygen, temperature, conductivity, total hardness, salinity, chlorine, and ammonia).
- 5.9.4. The statistical analysis used for the TUC results.
- 5.9.5. TRE/TIE results. The Los Angeles Water Board Executive Officer shall be notified no later than 30 days from completion of each aspect of TRE/TIE analyses. Prior to the completion of the final TIE/TRE report, the Permittee shall provide status updates in the next monitoring report due, indicating which TIE/TRE steps are underway and which steps have been completed.
- 5.9.6. Statistical program (e.g., CETIS, etc.) output results, including graphical plots, for each toxicity test.
- 5.9.7. Tabular data and graphical plots clearly showing the laboratory's performance for the reference toxicant, for each solution, for the previous 20 tests and the laboratory's performance for the control mean, control standard deviation, and control coefficient of variation, for each solution, for the previous 12-month period.
- 5.9.8. Any additional QA/QC documentation or any additional chronic toxicity-related information, upon request from the Los Angeles Water Board Chief Deputy Executive Officer/Executive Officer.

5.10. Ammonia Removal

- 5.10.1. Except with prior approval from the Executive Officer of the Los Angeles Water Board, ammonia shall not be removed from bioassay samples. The Permittee must demonstrate the effluent toxicity is caused by ammonia because of increasing test pH when conducting the toxicity test. It is important to distinguish the potential toxic effects of ammonia from other pH sensitive chemicals, such as certain heavy metals, sulfide, and cyanide. The following steps may be used to demonstrate that the toxicity is caused by ammonia and not by other toxicants before the Executive Officer would allow for control of pH in the test.
 - a. There is consistent toxicity in the effluent and the maximum pH in the toxicity test is in the range to cause toxicity due to increased pH.
 - b. Chronic ammonia concentrations in the effluent are greater than 4 mg/L total ammonia-N.

- c. Conduct graduated pH tests as specified in the toxicity identification evaluation methods. For example, mortality should be higher at pH 8 and lower at pH 6.
- d. Treat the effluent with a zeolite column to remove ammonia. Mortality in the zeolite treated effluent should be lower than the non-zeolite treated effluent. Then add ammonia back to the zeolite-treated samples to confirm toxicity due to ammonia.

5.10.2. When it has been demonstrated to the satisfaction of the Los Angeles Water Board Executive Officer that toxicity is due to ammonia because of increasing test pH, pH may be controlled using appropriate procedures which do not significantly alter the nature of the effluent.

5.11. Chlorine Removal

Except with prior approval from the Los Angeles Water Board Executive Officer, chlorine shall not be removed from bioassay samples.

6. LAND DISCHARGE MONITORING REQUIREMENTS (NOT APPLICABLE)

7. RECYCLING MONITORING REQUIREMENTS (NOT APPLICABLE)

8. RECEIVING WATER MONITORING REQUIREMENTS

8.1 Pacific Ocean Monitoring

All receiving water stations shall be located by state-of-the-art navigational methods (e.g. Differential Global Positioning System or DGPS); other means (e.g. visual triangulation, fathometer readings) may be used to improve the accuracy of locating stations. Water quality measurements are made with a Conductivity, Temperature and Depth Instrument (CTD), which also measures other parameters such as pH and light transmissivity.

8.1.1. Offshore/Shoreline Microbiological Monitoring

Water quality monitoring is designed to determine if Ocean Plan objectives for physical and chemical parameters and bacteria are being met. The data collected at shoreline stations will provide the means to determine whether bacteriological standards for water contact and shellfish harvesting are being met in the area of greatest potential for water contact and shellfish harvesting most proximal to the point of discharge. The data collected at the offshore sites will provide the means to determine whether bacteriological standards for water contact and shellfish harvesting are being met in the area around the discharge point. Sample collection for water quality monitoring shall follow protocols described in the most current edition of the *Field Operations Manual for Marine Water-Column, Benthic, and Trawl Monitoring in Southern California, SCCWRP*.

a. Offshore Monitoring

The Discharger shall conduct quarterly receiving water monitoring at the 17 core offshore receiving water monitoring stations from A1 to C8 (Table E-2) as shown in Table E-9 below:

Table E-9. Core Offshore Receiving Water Monitoring

Parameter	Units	Sample Type	Minimum Sampling Frequency	Required Analytical Test Method
Dissolved oxygen	mg/L	continuous profile	quarterly	a
Water temperature	°C	continuous profile	quarterly	a
Light transmittance	% transmittance	continuous profile	quarterly	a
Salinity	ppt	continuous profile	quarterly	a
pH	pH units	continuous profile	quarterly	a
Chlorophyll a	µg/L	continuous profile	quarterly	a
Visual observations	---	---	quarterly	b
Total coliform	MPN or CFU/100 mL	grab, surface, mid-depth, and near bottom	quarterly	a, c
Fecal coliform	MPN or CFU/100 mL	grab, surface, mid-depth, and near bottom	quarterly	a, c
<i>Enterococcus</i>	MPN or CFU/100 mL	grab, surface, mid-depth, and near bottom	quarterly	a, c
Ammonia nitrogen	mg/L	grab, surface, mid-depth and near bottom	quarterly	a, c
Total nitrogen	mg/L	grab, surface, mid-depth and near bottom	quarterly	a, c
Total Phosphorus	mg/L	grab, surface, mid-depth and near bottom	quarterly	a, c

Footnotes for Table E-9

- a. Depth profile measurements shall be obtained using multiple sensors to measure parameters through the entire water column (from the surface to as close to the bottom as practicable).
- b. Receiving water observations shall include a description of any discoloration, turbidity, odor, and unusual or abnormal amounts of floating or suspended matter in the water or on the beach, rocks, jetties, or beach structures, shall be made and recorded at stations. The dates, times, and depths of sampling and these observations shall also be reported. Recreational uses (ex. swimming, wading, water skiing, skin diving, surfing, fishing, etc.) at time of sampling and within a 100-meter radius of each sample location, shall also be recorded and submitted with results.
- c. Discrete sampling for ammonia, fecal coliform, total coliform, *Enterococcus*, total nitrogen, and total phosphorus shall be performed within 1 meter (3.1 feet) of the water's surface, at mid depth (15 meters (49.2 feet)), and near the bottom at 45 meters (147.6 feet, or as deep as practicable for those stations located in depths less than 45 meters).

End of footnotes for Table E-9

b. Shoreline Monitoring

The Discharger shall ensure receiving water quality monitoring is conducted at six Ventura County Shoreline Bacteriological Monitoring Stations (Table E-5) for indicator bacteria as shown in Table E-10 below. Ventura County currently conducts this monitoring, but if Ventura County reduces its monitoring effort to less than required in this section, the Discharger is responsible for conducting the monitoring. Visual observations shall be recorded when bacteriological samples are collected. Monitoring at these six stations is conducted to assess public health, to protect the public recreation beneficial uses of the coastal ocean waters, and to demonstrate that any bacteria from the outfall does not persist at the shoreline. Sampling shall be conducted weekly as required by the Ocean Plan (Appendix III, Section 4.1). In the event of stormy weather that makes sampling hazardous or impractical, these samples may be rescheduled.

Table E-10. Shoreline Bacteria Receiving Water Monitoring

Parameter	Units	Sample Type	Minimum Sampling Frequency
Total coliform	MPN or CFU/100 mL	grab	weekly
Fecal coliform	MPN or CFU/100 mL	grab	weekly
<i>Enterococcus</i>	MPN or CFU/100 mL	grab	weekly

8.1.2. Benthic Monitoring

a. Local Benthic and Sediment Chemistry Survey

This survey is designed to determine if the benthic conditions under the influence of the discharge are changing over time. The data collected are used for the regular assessment of trends in sediment contamination and biological response along a fixed grid of sites within the influence of the discharge.

The Discharger shall monitor infauna, sediment chemistry, and acute sediment toxicity at the six receiving water benthic monitoring stations (BEN 01 to BEN 06) in Table E-3 as shown in Table E-11 below. The Discharger shall compare the observed conditions to the conditions observed historically and to the conditions described in the most recent Southern California Bight Regional Monitoring Program surveys. Sediment chemistry monitoring shall be conducted annually as shown below.

Benthic monitoring stations BEN 01 to BEN 06 in Table E-3 shall be monitored for benthic infauna and sediment chemistry during late summer (August/ September). Bottom samples for benthic infaunal and sediment chemistry analyses shall be collected at each benthic station prior to trawl sampling.

Table E-11. Benthic Infauna and Sediment Chemistry Monitoring

Parameter	Units	Sample Type	Minimum Sampling Frequency	Notes
Benthic Infauna Community	--	0.1 square meter Van Veen grab	Year two of permit cycle	g, h
Total organic carbon	mg/kg dry wt	0.1 square meter Van Veen grab (upper 2 centimeters)	Annually	a
Grain Size	Phi size	0.1 square meter Van Veen grab (upper 2 centimeters)	Annually	a, b
Acid volatile sulfides	mg/kg	0.1 square meter Van Veen grab (upper 2 centimeters)	Annually	a

Parameter	Units	Sample Type	Minimum Sampling Frequency	Notes
Organophosphate pesticides	µg/kg dry wt	0.1 square meter Van Veen grab (upper 2 centimeters)	Annually	a, c
Total Chromium	µg/kg dry wt	0.1 square meter Van Veen grab (upper 2 centimeters)	Annually	a
Cyanide	µg/kg dry wt	0.1 square meter Van Veen grab (upper 2 centimeters)	Annually	a
Ammonia (as N)	µg/kg dry wt	0.1 square meter Van Veen grab (upper 2 centimeters)	Annually	a
Total Kjeldahl Nitrogen	µg/kg dry wt	0.1 square meter Van Veen grab (upper 2 centimeters)	Annually	a
PAHs	µg/kg dry wt	0.1 square meter Van Veen grab (upper 2 centimeters)	Annually	a, d
Chlorinated hydrocarbons	µg/kg dry wt	0.1 square meter Van Veen grab (upper 2 centimeters)	Annually	a, e
PCBs as Aroclors	µg/kg dry wt	0.1 square meter Van Veen grab (upper 2 centimeters)	Annually	a, d

Parameter	Units	Sample Type	Minimum Sampling Frequency	Notes
PCBs as Congeners	µg/kg dry wt	0.1 square meter Van Veen grab (upper 2 centimeters)	Annually	a, d
DDT	µg/kg dry wt	0.1 square meter Van Veen grab (upper 2 centimeters)	Annually	a, d
Acute Sediment Toxicity	% survival	0.1 square meter Van Veen grab (upper 2 centimeters)	Year two of permit cycle	i
All Metals in Table 3 of the Ocean Plan	µg/kg dry wt	0.1 square meter Van Veen grab (upper 2 centimeters)	Annually	a
Compounds on 303(d) list	µg/kg dry wt	0.1 square meter Van Veen grab (upper 2 centimeters)	Annually	a, f

Footnotes for Table E-11

- a. Pollutants shall be analyzed using the analytical methods appropriate for solid matrices such as ELAP-accredited methods from USEPA SW-846 or other methods approved by the Los Angeles Water Board, the State Water Board, and USEPA Region 9. For any pollutant whose effluent limitation is lower than all the minimum levels (MLs) specified in Appendix II of the Ocean Plan, the analytical method with the lowest ML must be selected.
- b. Sufficiently detailed to calculate percent weight in relation to phi size.
- c. The organophosphate pesticides required to be monitored include chlorpyrifos, demeton, guthion, malathion, parathion, and diazinon.
- d. See Attachment A for definition of terms.
- e. Chlorinated hydrocarbons shall include aldrin, dieldrin, chlordane, heptachlor, heptachlor epoxide, endosulfan I, endosulfan II, and endosulfan sulfate.

- f. Include compounds for 303(d) listing for these waterbodies: McGrath Lake, Ormond Beach, Point Mugu Beach, Surfers Point at Seaside, San Buenaventura Beach, McGrath Beach, Ventura Harbor: Ventura Keys, Ventura Marina Jetties.
- g. Community analysis of benthic infauna shall include the number of species, the number of individuals per species, the total numerical abundance per station, the benthic response index (BRI) and biological indices, plus the analysis shall utilize appropriate regression analyses, parametric and nonparametric statistics, and multivariate techniques or other appropriate analytical techniques.
- h. The entire contents of each sample shall be passed through a 1.0-millimeter screen to retrieve the benthic organisms. Sampling methods and protocols shall follow those described in the most current Bight Regional Monitoring Program. The following determinations shall be made at each station, where appropriate: Identification of all organisms to the lowest possible taxon based on morphological taxonomy and community analysis including the mean, range, standard deviation, and 95% confidence limits. The resulting data shall be used to describe community structure at each station.
- i. Monitored at BEN 03 and BEN 06 only.

End of footnotes for Table E-11

b. Acute Sediment Toxicity Survey

Sediment toxicity testing shall be conducted in August/September at the two receiving water sediment monitoring stations BEN 03 and BEN 06 (Table E-3). Three replicate samples shall be collected for testing at each station. Sub-samples (upper two centimeters) shall be collected from each sediment sample and tested for acute toxicity. Testing shall be conducted using one of the three amphipod species *Eohaustorius estuarius*, *Leptocheirus plumulosus*, and *Rhepoxynius abronius* in accordance with EPA 600/R-94/025 (USEPA, 1994), *Methods for Assessing the Toxicity of Sediment-associated Contaminants with Estuarine and Marine Amphipods*, and the *Southern California Bight Project Bight '23 Toxicology Laboratory Manual* (Bight '23 Toxicology Committee, 2023). Test results shall be reported in percent survival, assessed for the presence of persistent toxicity, and included in the applicable monitoring report. If persistent toxicity is observed at a sediment sampling location, a Phase I Toxicity Identification Evaluation (TIE) shall be conducted as defined in the *Sediment Toxicity Identification (TIE) Phase I, II, and III Guidance Document* (EPA/R-07/080). The Discharger shall update the Sediment Toxicity TIE Work Plan within 90 days of the effective date of this Order. The work plan shall define persistent toxicity and outline the procedures that will take place if persistent toxicity is observed.

c. Regional Benthic Monitoring

Southern California Bight Regional Monitoring Program is a regional survey designed to determine the extent, distribution, magnitude and trend of ecological change in soft-bottom benthic habitats within the Southern California Bight and the relationship between biological response and contaminant exposure. The data collected will be used to assess the condition of the sea-floor environment and the health of the biological resources within the Bight.

The Discharger shall support future benthic surveys by participating in or performing the following activities:

- i. Participation in the Steering Committee
- ii. Participation in the relevant Technical Committees
- iii. Field sampling at sea
- iv. Infaunal sample analysis
- v. Sediment chemistry analysis
- vi. Data management

8.1.3. Fish and Macroinvertebrate (Trawl Fishing) Monitoring

a. Local Demersal Fish and Macroinvertebrate Population Survey.

This survey is designed to determine how the health of demersal fish and epibenthic invertebrate communities near the discharge point are changing over time. The data collected will be used for regular assessment of temporal trends in community structure along an array of sites within the influence of the discharge. The Discharger shall monitor fish and macroinvertebrates at two receiving water trawling stations TWL 01 and TWL 02 (See Table E-4) annually for the first three years and then may be reduced to once per permit cycle upon approval of the Executive Officer of the Los Angeles Water Board. The monitoring requirements are as follows:

- i. Offshore trawling will occur annually during August/September for demersal fish and epibenthic macroinvertebrates at trawl stations in Table E-4.
- ii. Trawling methods shall follow the protocols described in the most current edition of the *Field Operations Manual for Marine Water-Column, Benthic, and Trawl Monitoring in Southern California, SCCWRP*.
- iii. Fish and macroinvertebrates collected by trawls shall be identified to the lowest taxon possible. At all stations and for each replicate, community structure analysis for fish and macroinvertebrates shall be conducted for each station. Community structure analysis of fish and macroinvertebrates shall include wet weight of fish and macroinvertebrate species (when combined weight of individuals of

one species exceeds 0.2 kg), standard length of each individual, number of species, number of individuals per species, total numerical abundance per station, number of individuals in each 1-cm size class for each species of fish, species abundance per trawl and per station, species richness, species diversity, species evenness, similarity analyses, cluster analyses (using unweighted pair-group method) or other appropriate multivariate statistical techniques approved by the Executive Officer.

- iv. Mean, range, standard deviation, and 95% confidence limits, if appropriate, shall be reported for the values determined in the community structure analysis. The Discharger may use other statistical tools to determine temporal and spatial trends in the fish and macroinvertebrate population in the marine environment.
- v. Abnormalities and disease symptoms shall be described and recorded (e.g., fin erosion, external lesions, tumors, ectoparasites, and color anomalies). The frequency of abnormalities and incidence of disease shall be compared between the Zone of Initial Dilution (ZID) boundary and the reference station, and trends in these values shall be measured over time. The results of this comparison shall be included in the monitoring report.

b. Regional Fish and Macroinvertebrate Survey

This regional survey is designed to determine the extent, distribution, magnitude and trend of ecological change in demersal fish and epibenthic invertebrate communities within the Southern California Bight and the relationship between biological response and contaminant exposure. The data collected will be used to assess the condition of the seafloor environment and health of biological resources within the Bight.

Sampling Design – The Discharger shall support future Bight surveys in the following ways:

- i. Participation in the Steering Committee;
- ii. Participation in the relevant Technical Committees (e.g., Information Management, Field Methods and Logistics, Fish and Invertebrates);
- iii. Field sampling at sea;
- iv. Trawl sample analysis; and,
- v. Data management

8.1.4. Bioaccumulation and Local Seafood Safety Monitoring

This survey is designed to determine 1) if tissue concentrations of contaminants exceed the Advisory Tissue Concentration (ATC) where seafood consumption advisories exist locally, and 2) tissue contaminant

trends relative to the ATC in other species and for other contaminants not currently subject to local consumption advisories. The data collected will be used to provide information necessary for the management of local seafood consumption advisories. This survey will also help determine if the concentration of pollutants in marine life bioaccumulate to levels that degrade marine communities.

One species from each of five groups of fish (rockfish, kelpbass, sandbass, surfperches and croakers) shall be sampled from the seafood safely/bioaccumulation monitoring zone. For rockfishes, scorpionfish (*Scorpaena guttata*) is the preferred species, followed by bocaccio (*Sebastes paucispinis*) and then by any other abundant and preferably benthic rockfish species. For surfperches, black surfperch (*Embiotoca jacksoni*) is the preferred species, followed by white surfperch (*Phanerodon furcatus*), and then by walleye surfperch (*Hyperprosopon argenteum*). For croakers, white croaker (*Genyonemus lineatus*) is the preferred species, followed by black croaker (*Cheilodactylus saturnum*), and then by white seabass (*Atractoscion nobilis*). If an insufficient number of croakers are collected and a significant effort has been made to collect the appropriate number of croakers, one of the following alternative species may be substituted: ocean whitefish (*Caulolatilus princeps*), opaleye (*Girella nigricans*), blacksmith (*Chromis punctipinnis*), or pacific mackerel (*Scomber japonicus*).

For fish tissue analysis, one composite sample of ten individuals of each target shall be collected. Sampling should take place in late summer/early fall and should focus upon a consistent size class of fish. The Discharger shall strive to collect the taxa specified in the permit; however, if the Discharger makes a good faith effort to collect the taxa specified above and is unable to collect a sufficient number of fish in those taxa, the sampling team may use their best professional judgement regarding the species available for collection at the time of sampling. All tissue samples shall be analyzed for:

Table E-12. Bioaccumulation and Local Seafood Safety Monitoring

Parameter	Units	Sample Type	Minimum Sampling Frequency
% moisture	%	composite of muscle tissue from 10 individuals of each of 5 species	once per permit cycle

Parameter	Units	Sample Type	Minimum Sampling Frequency
% lipid	%	composite of muscle tissue from 10 individuals of each of 5 species	once per permit cycle
Cyanide	µg/kg	composite of muscle tissue from 10 individuals of each of 5 species	once per permit cycle
Organophosphate pesticides	µg/kg	composite of muscle tissue from 10 individuals of each of 5 species	once per permit cycle
Chlordanes	µg/kg	composite of muscle tissue from 10 individuals of each of 5 species	once per permit cycle
Dieldrin	µg/kg	composite of muscle tissue from 10 individuals of each of 5 species	once per permit cycle
Toxaphene	µg/kg	composite of muscle tissue from 10 individuals of each of 5 species	once per permit cycle
PAHs	µg/kg	composite of muscle tissue from 10 individuals of each of 5 species	once per permit cycle
DDT	µg/kg	composite of muscle tissue from 10 individuals of each of 5 species	once per permit cycle

Parameter	Units	Sample Type	Minimum Sampling Frequency
PCBs as Aroclors	µg/kg	composite of muscle tissue from 10 individuals of each of 5 species	once per permit cycle
PCBs as congeners	µg/kg	composite of muscle tissue from 10 individuals of each of 5 species	once per permit cycle
Ocean Plan Table 3 metal parameters	µg/kg	composite of muscle tissue from 10 individuals of each of 5 species	once per permit cycle

8.1.5. Regional Seafood Safety Survey

This regional survey is designed to determine if seafood tissue levels within the Southern California Bight are below levels that ensure public safety. The data collected will be used to assess levels of contaminants in the edible tissue of commercial or recreationally important fish within the Bight relative to Advisory Tissue Concentrations.

Sampling Design - A regional survey of edible tissue contaminant levels in fish within the Southern California Bight shall be conducted at least once every ten years, encompassing a broader set of sampling sites and target species than those addressed in the local seafood survey. The objective is to determine whether any unexpected increases or decreases in contaminant levels have occurred in non-target species and/or at unsampled sites. The final survey design may be determined cooperatively by participants represented on a Regional Steering Committee or by the State of California's Office of Environmental Health and Hazard Assessment. The Discharger shall provide support to a Regional Seafood Safety Survey by participating in or performing the following activities:

- a. Participation in the Steering Committee;
- b. Participation in the relevant Technical Committees (e.g., Information Management, Field Methods and Logistics, Fish and Invertebrates, Chemistry);
- c. Tissue chemical analysis; and,
- d. Data management

8.1.6. Kelp Bed Monitoring

This regional survey is designed to determine if the extent of kelp beds in the Southern California Bight is changing over time and if some beds are changing at rates different than others. The data collected in this regional survey will be used to assess the status and trends in kelp bed health and spatial extent. The regional nature of the survey will allow the status of beds local to the discharge to be compared to regional trends.

The Discharger shall participate in the Central Region Kelp Survey Consortium (CRKSC) to conduct regional kelp bed monitoring in Southern California coastal waters. The CRKSC design is based upon measures of kelp canopy using aerial imagery, satellite imagery, or other appropriate remote sensing method as determined appropriate by the CRKSC. The Discharger shall provide up to \$10,000 per year in financial support to the CRKSC (annual level of support will depend on the number of participants in the program). The Discharger shall participate in the regional management and technical committee's responsible for the development of the survey design and implementation of the assessment of kelp bed resources in the Bight. The information gained through participation in this survey may be used to evaluate whether the discharge impacts kelp beds near the outfall.

9. OTHER MONITORING REQUIREMENTS

9.1. Tertiary Filter Treatment Bypasses

9.1.1. During any day that filters are bypassed, the Permittee shall monitor the effluent daily for BOD, suspended solids, settleable solids, and oil and grease until it is demonstrated that the filter "bypass" has not caused an adverse impact on the receiving water.

9.1.2. The Permittee shall maintain a chronological log of tertiary filter treatment process bypasses, to include the following:

- a. Date and time of bypass start and end;
- b. Total duration time; and,
- c. Estimated total volume bypassed

9.1.3. The Permittee shall submit a written report to the Los Angeles Water Board, according to the corresponding monthly self-monitoring report schedule. The report shall include, at a minimum, the information from the chronological log. Results from the daily effluent monitoring, required by 9.2.a. above, shall be verbally reported to the Los Angeles Water Board as the results become available and submitted as part of the monthly SMR.

9.2. Outfall and Diffuser Inspection

This survey is designed to ensure that the outfall structures are in serviceable condition and that they can continue to be operated safely. The data collected will be used for a periodic assessment of the integrity of the outfall pipe and ballasting system.

The ocean outfall (Discharge Point 002) shall be inspected externally a minimum of once per year. Inspections shall include general observations and photographic/videographic records of the outfall pipe and adjacent ballast ocean bottom. The pipe shall be visually inspected by a diver, manned submarine, or remotely operated vehicle. A summary report of the inspection findings shall be submitted by August 1 of the year following the inspection. This written report, augmented with videographic and/or photographic images, will provide a description of the observed condition of the outfall structure from shallow water to its respective terminus. If the inspection shows that the outfall is not performing as designed and needs repairs, the report shall also include a schedule to restore the outfall to proper operation.

9.3. Biosolids and Sludge Management

The Permittee must comply with all Clean Water Act and regulatory requirements of 40 CFR § 257, 258, 501, and 503, including all applicable monitoring, record keeping, and reporting requirements. The Permittee must comply with the requirements in Attachment H of this Order.

9.4. Monitoring of Volumetric Data for Wastewater and Recycled Water

The Discharger shall monitor the following:

- 9.4.1. **Influent:** The monthly total volume of wastewater collected and treated by the wastewater treatment plant.
- 9.4.2. **Production:** The monthly volume of wastewater treated, specifying the level of treatment.
- 9.4.3. **Discharge:** The monthly volume of treated wastewater discharged to specific water bodies as categorized in the section 3.2.3 of the Recycled Water Policy. The level of treatment shall also be specified.
- 9.4.4. **Reuse:** The monthly volume of recycled water distributed, and the annual volume of treated wastewater distributed for beneficial use in compliance with California Code of Regulations, Title 22 in each of the use categories specified in section 3.2.4 of the Recycled Water Policy.

10. REPORTING REQUIREMENTS

10.1. General Monitoring and Reporting Requirements

- 10.1.1. The Permittee shall comply with all Standard Provisions (Attachment D) related to monitoring, reporting, and recordkeeping.

- 10.1.2. If there is no discharge during any reporting period, the report shall so state.
- 10.1.3. Each monitoring report shall contain a separate section titled Summary of Noncompliance, which discusses the compliance record and the corrective actions taken or planned that may be needed to bring the discharge into full compliance with WDRs. This section shall clearly list all noncompliance with discharge requirements, all excursions of effluent limitations, and other noncompliance issues, including, but not limited to a report of any unresolved odor complaints that demonstrate noncompliance with odor prohibitions (section 6.1.2.a of the Order), a report of any power outage or use or failure of alternate power source (section 6.3.4.b of the Order), and the resolution of any noncompliance.
- 10.1.4. The Permittee shall inform the Los Angeles Water Board well in advance of any proposed construction or maintenance activity, or modification to the POTW that could potentially affect compliance with applicable requirements (including any modification to the POTW or outfall ports). This notification shall be provided to the Los Angeles Water Board with sufficient time to identify control measures that may be implemented to prevent noncompliance during the activity.
- 10.1.5. The date and time of sampling (as appropriate) shall be reported with the analytical values determined.
- 10.1.6. Upon request by the Permittee, the Los Angeles Water Board, in consultation with the State Water Board's Quality Assurance Program and/or USEPA, may establish an ML that is not contained in Appendix II of the Ocean Plan, to be included in the Permittee's NPDES permit, in any of the following situations:
 - a. When the pollutant under consideration is not included in Appendix II;
 - b. When the Permittee agrees to use a test method that is more sensitive than those specified in 40 CFR § 136 (most recent revision);
 - c. When the Permittee agrees to use an ML lower than those listed in Appendix II;
 - d. When the Permittee demonstrates that the calibration standard matrix is sufficiently different from that used to establish the ML in Appendix II and proposes an appropriate ML for their matrix; or
 - e. When the Permittee uses a method whose quantification practices are not consistent with the definition of an ML. Examples of such methods are the USEPA-approved method 1613 for dioxins and furans, method 1624 for volatile organic substances, and method 1625 for semi-volatile organic substances. In such cases, the Discharger, Los Angeles Water Board, State Water Board and USEPA shall agree on

a lowest quantifiable limit, and that limit will substitute for the ML for reporting and compliance determination purposes.

10.1.7. Records and reports of marine monitoring surveys conducted to meet receiving water monitoring requirements shall include, at a minimum, the following information:

- a. A description of climatic and receiving water characteristics at the time of sampling (weather observations, unusual or abnormal amounts of floating debris, discoloration, wind speed and direction, swell or wave action, time of sampling or measurements, tidal stage and height, etc.).
- b. The date, exact place, and description of sampling stations, including differences unique to each station (e.g., date, time, station location, depth, and sample type).
- c. A list of the individuals participating in field collection of samples or data and description of the sample collection and preservation procedures used in the various surveys.
- d. A description of the specific method used for laboratory analysis, the date(s) the analyses were performed and the individuals participating in these analyses.
- e. An in-depth discussion of the results of the survey. All tabulations and computations shall be explained.

10.1.8. The Permittee shall attach a cover letter to the monitoring reports. The information contained in the cover letter shall clearly identify violations of the Order; discuss corrective actions taken or planned; and the proposed time schedule for corrective actions. Identified violations must include a description of the requirement that was violated and a description of the violation.

10.2. Self-Monitoring Reports (SMRs)

10.2.1. The Permittee shall electronically submit SMRs using the State Water Board's California Integrated Water Quality System Project ([CIWQS website](http://www.waterboards.ca.gov/water_issues/programs/ciwqs/) (http://www.waterboards.ca.gov/water_issues/programs/ciwqs/)). The CIWQS website will provide additional information for SMR submittal when there are planned service interruptions for electronic submittals.

10.2.2. The Permittee shall report in the SMR the results for all monitoring specified in this MRP under sections 3 through 9. The Discharger shall submit monthly, quarterly, semiannual, and annual SMRs including the results of all required monitoring using USEPA-approved test methods or other test methods specified in this Order. SMRs must include all new monitoring results obtained since the last SMR was submitted. If the

Discharger monitors any pollutant more frequently than required by this Order, the results of this monitoring shall be included in the calculations and reporting of the data submitted in the SMR.

- 10.2.3. Monitoring periods and reporting for all required monitoring shall be completed according to the following schedule, except where specific monitoring periods and reporting dates are required elsewhere in the Order:

Table E- 13. Monitoring Periods and Reporting Schedule

Sampling Frequency	Monitoring Period Begins on	Monitoring Period	SMR Due Date
Continuously	Order effective date	All	Submit with monthly SMR
Daily	Order effective date	(Midnight through 11:59 PM) or any 24-hour period that reasonably represents a calendar day for purposes of sampling.	Submit with monthly SMR
Weekly	Sunday following Permit effective date or on Permit effective date if on a Sunday	Sunday through Saturday	Submit with monthly SMR
Monthly	First day of calendar month following permit effective date or on Order effective date if that date is first day of the month	1 st day of calendar month through last day of calendar month	By the 15 th day of the third month after the month of sampling
Quarterly	Closest of January 1, April 1, July 1, or October 1 following (or on) Order effective date	January 1 to March 31 April 1 to June 30 July 1 to September 30 October 1 to December 31	June 15 September 15 December 15 March 15
Semiannually	Closest of January 1 or July 1 following (or on) Order effective date	January 1 to June 30 July 1 to December 31	September 15 March 15
Annually	January 1 following (or on) permit effective date	January 1 through December 31	April 30

Sampling Frequency	Monitoring Period Begins on	Monitoring Period	SMR Due Date
Annually (Volumetric Reporting)	Order effective date	January 1 through December 31	April 30
Annually (Pretreatment Program)	Order effective date	January 1 through December 31	April 30
Receiving Water Summary Report	Order effective date	January 1 through December 31	August 1
Receiving Water Biennial Report	Order effective date	January 1 through December 31 of the following year	August 1
Outfall Inspection Report	Order effective date	January 1 through December 31	August 1

10.2.4. **Reporting Protocols.** The Permittee shall report with each sample result the applicable RML (also known as the RL) and the current MDL, as determined by the procedure in 40 CFR part 136.

The Permittee shall report the results of analytical determinations for the presence of chemical constituents in a sample using the following reporting protocols:

- a. Sample results greater than or equal to the reported ML (RML) shall be reported as measured by the laboratory (i.e., the measured chemical concentration in the sample).
- b. Sample results less than the RML, but greater than or equal to the laboratory's MDL, shall be reported as "Detected, but Not Quantified," or DNQ. The estimated chemical concentration of the sample shall also be reported. For the purposes of data collection, the laboratory shall write the estimated chemical concentration next to DNQ. The laboratory may, if such information is available, include numerical estimates of the data quality for the reported result. Numerical estimates of data quality may be percent accuracy ($\pm$ a percentage of the reported value), numerical ranges (low to high), or any other means considered appropriate by the laboratory.
- c. Sample results less than the laboratory's MDL shall be reported as "Not Detected," or ND.

d. Dischargers are to instruct laboratories to establish calibration standards so that the RML value (or its equivalent if there is differential treatment of samples relative to calibration standards) is the lowest calibration standard. At no time is the Discharger to use analytical data derived from extrapolation beyond the lowest point of the calibration curve.

10.2.5. **Compliance Determination.** Compliance with effluent limitations for reportable pollutants shall be determined using sample reporting protocols defined above and Attachment A and section 7 of this Order. For purposes of reporting and administrative enforcement by the Los Angeles Water Board and State Water Board, the Discharger shall be deemed out of compliance with effluent limitations if the concentration of the reportable pollutant in the monitoring sample is greater than the effluent limitation and greater than or equal to the RML.

10.2.6. The Permittee shall arrange all reported data in a tabular format. The data shall be summarized to clearly illustrate whether the facility is operating in compliance with interim and/or final effluent limitations. The Discharger is not required to duplicate the submittal of data that is entered in a tabular format within CIWQS. When electronic submittal of data is required and CIWQS does not provide for entry into a tabular format within the system, the Discharger shall electronically submit the data in a tabular format as an attachment.

10.3. Discharge Monitoring Reports (DMRs)

DMRs are USEPA reporting requirements. The Discharger shall electronically certify and submit DMRs together with SMRs using Electronic Self-Monitoring Reports module eSMR 2.5 or any upgraded version. Electronic DMR submittal shall be in addition to electronic SMR submittal. Information about electronic DMR submittal is available at the [DMR website](http://www.waterboards.ca.gov/water_issues/programs/discharge_monitoring): (http://www.waterboards.ca.gov/water_issues/programs/discharge_monitoring).

10.4. Other Reports

10.4.1. Annual Pretreatment Report

The Discharger shall electronically submit annual pretreatment reports via CIWQS to the Los Angeles Water Board and to USEPA Region 9 via email (r9pretreatment@epa.gov) by April 30 of each year, covering data collected during the previous calendar year, in accordance with Pretreatment Reporting Requirements (Attachment I).

10.4.2. The Permittee shall report the results of any special studies, chronic toxicity testing, TRE/TIE, PMP, and Pollution Prevention Plan required by Special Provisions – section 6.3. of this Order. The Discharger shall submit reports in compliance with the SMR reporting requirements described in MRP subsection 10.2 above.

10.4.3. Hauling Reports

- a. If wastes are transported to a different disposal site during the reporting period, the following shall be reported:
 - i. Types of wastes and quantity of each type;
 - ii. Name and either the address or the State registration number for each hauler of wastes (or the method of transport if other than by hauling); and
- b. If no wastes are transported off site during the reporting period, a statement to that effect shall be submitted.

10.4.4. Annual Summary Reports

- a. By April 30th of each year, the Permittee shall submit an annual report containing a discussion of the previous year's influent/effluent analytical results (including the average and peak flow for the year), the date of the outfall inspection, and a recycled water progress report describing any updates to the development of increased recycled water production. The annual report shall contain an overview of any plans for upgrades to the treatment plant's collection system, the treatment processes, the outfall system, or any changes that may affect the quality of the final effluent. The Permittee shall submit annual reports to the Los Angeles Water Board in accordance with the requirements described in MRP subsection 10.2.6 above.

Each annual monitoring report shall contain a separate section titled "Reasonable Potential Analysis" which discusses whether reasonable potential was triggered for pollutants which do not have a final effluent limitation in the NPDES permit. This section shall contain the following statement: "The analytical results for this sampling period did/ did not trigger reasonable potential." If reasonable potential was triggered, then the following information shall also be provided:

- i. A list of the pollutant(s) that triggered reasonable potential;
 - ii. The Ocean Plan criteria that was exceeded for each given pollutant;
 - iii. The concentration of the pollutant(s);
 - iv. The test method used to analyze the sample; and
 - v. The date and time of sample collection.
- b. An annual summary of the receiving water monitoring data collected during each sampling year (January - December) shall be prepared and submitted to the Los Angeles Water Board by August 1st of the following year. The annual summary shall include a compliance summary and discussion of plant performance over the year as well as a brief discussion of the monitoring results.

10.4.6. Marine Biennial Assessment Report

A detailed Receiving Water Monitoring Biennial Assessment Report of the ocean monitoring data collected during the two previous calendar sampling years (January - December) shall be prepared and submitted to the Los Angeles Water Board by August 1st of every other year. Any effluent compliance issues during that period shall also be discussed. This report shall include a description of the nearfield zone and an in-depth analysis of the biological and chemical data following recommendations in the *Design of 301(h) Monitoring Programs for Municipal Wastewater Discharges to Marine Water* (USEPA, November 1982; 430/982-010; pages 74-91) and the *Model Monitoring Program Guidance Document* (Schiff, K.C., J.S. Brown and S.B. Weisberg, 2001. *Model Monitoring Program for Large Ocean Dischargers in Southern California*. SCCWRP Tech. Rep #357. Southern California Coastal Water Research Project, Westminster, CA. 101 pp.). Data shall be tabulated, summarized, graphed where appropriate, analyzed, interpreted, and generally presented in such a way as to facilitate ready understanding of its significance. Spatial and temporal trends shall be examined and compared. Water quality data shall be analyzed to estimate spatial extent and movement of the wastewater plume over time. The relationship of physical and chemical parameters shall be evaluated. See also Section 8.2 of this MRP. All receiving water monitoring data (including bioassessment/taxonomic data, continuous data, etc) shall be submitted in a format compatible with the California Environmental Data Exchange Network (CEDEN), when feasible.

The first assessment report shall be due August 1, 2028, and cover the sampling periods of January-December 2026 and January-December 2027. Subsequent reports shall be due August 1, 2030, and August 1, 2032, to cover sampling periods from January 2028 to December 2029, and January 2030 to December 2031, respectively.

10.4.7. The Permittee shall submit to the Los Angeles Water Board, together with the first monitoring report required by this permit, a list of all chemicals and proprietary additives which could affect this waste discharge, including quantities of each. Any subsequent changes in types and/or quantities shall be reported promptly.

10.4.8. Outfall Inspection Report

By August 1 of each year, a summary report of the outfall inspection findings for the previous calendar year shall be prepared and submitted to the Los Angeles Water Board. This written report, augmented with videographic and/or photographic images, shall provide a description of the observed external condition of the discharge pipe from shallow water to its respective terminus.

The first summary report shall be due August 1, 2027, covering the monitoring period from January 2026 – December 2026.

10.4.9. Technical Report on Preventive and Contingency Plans

The Los Angeles Water Board requires the Permittee to file with the Los Angeles Water Board, within 90 days after the effective date of this Order, a technical report on its preventive (failsafe) and contingency (cleanup) plans for controlling accidental discharges, and for minimizing the effect of such events. The technical report shall:

- a. Identify the possible sources of accidental loss, untreated waste bypass, and contaminated drainage. Loading and storage areas, power outage, waste treatment unit outage, and failure of process equipment, tanks, and pipes should be considered.
- b. Evaluate the effectiveness of present facilities and procedures and state when they become operational.
- c. Describe facilities and procedures needed for effective preventive and contingency plans.
- d. Predict the effectiveness of the proposed facilities and procedures and provide an implementation schedule contingent interim and final dates when they will be constructed, implemented, or operational.

10.4.10. Climate Change Effects Vulnerability Assessment and Mitigation Plan:

The Permittee shall submit a revised Climate Change Effects Vulnerability Assessment and Mitigation Plan (Climate Change Plan), as specified in section 6.3.4.c. of the Order.

10.4.11. Initial Investigation TRE Work Plan

The Permittee shall update and submit a copy of the Permittee's initial investigation TRE work plan to the Executive Officer of the Los Angeles Water Board for approval within 90 days of the effective date of this permit. If the Executive Officer does not disapprove the work plan within 60 days, the work plan shall become effective. The Permittee shall use USEPA manual EPA/833B-99/002 (municipal) as guidance, or most current version, or EPA manual *Generalized Methodology for Conducting Industrial Toxicity Reduction Evaluations* (EPA/600/2-88/070, April 1989). At a minimum, the TRE Work Plan must contain the provisions in Attachment G. This work plan shall describe the steps that the Permittee intends to follow if toxicity is detected. Refer to MRP section 5.6 for detailed requirements.

10.4.12. Sediment Toxicity TIE Work Plan

The Permittee shall conduct sediment toxicity monitoring. If persistent toxicity is observed at a sediment sampling location, a Phase I TIE shall be conducted as defined in the Sediment Toxicity Identification (TIE) Phase I, II, and III Guidance Document (EPA/R-07/080). The Permittee shall submit a Sediment Toxicity TIE Work Plan within 90 days of the effective date of this Order. Refer to MRP section 8.1.2.b. for detailed requirements.

10.4.13. Annual Volumetric Reporting of Wastewater and Recycled Water

The Discharger shall electronically submit annual volumetric reports to the State Water Board by April 30th each year covering data collected during the previous calendar year using the [State Water Board's GeoTracker website](https://geotracker.waterboards.ca.gov) (geotracker.waterboards.ca.gov) under a site-specific global identification number WDR100000656. The annual volumetric report shall include information specified in section 9.4, above. A report upload confirmation from the GeoTracker data system, or other indication of completed submittals, shall be included in the annual summary report and submitted to CIWQS. Two separate permits regulate discharges from the Facility and have volumetric reporting requirements (this Order and the Estuary Discharge Permit). State Water Board Order WQ 2019-0037-EXEC amended the MRP for the Estuary Discharge Permit to include volumetric reporting requirements and these requirements remain in effect. To avoid double counting the recycled water produced at the Facility by reporting under both permits, the Discharger shall only submit the volumetric reports to Geotracker once annually. However, the Discharger shall submit the report upload confirmation from Geotracker in the annual report for both permits.

10.4.14. State Water Board Resolution 2009-0011, *Adoption of a Policy for Water Quality Control for Recycled Water* (Revised January 22, 2013, effective April 25, 2013.), directs the Los Angeles Water Board to encourage recycling. Consistent with the Policy, the Permittee shall submit an update to the feasibility investigation in section 4.3 of the Order as part of the submittal of the Report of Waste Discharge (ROWD) for the next order cycle.

ATTACHMENT F – FACT SHEET
TABLE OF CONTENTS

1. PERMIT INFORMATION.....	F-3
2. FACILITY DESCRIPTION	F-6
2.1. Description of Wastewater and Biosolids Treatment and Controls.....	F-6
2.2. Discharge Points and Receiving Waters	F-8
2.3. Summary of Existing Requirements and Self-Monitoring Report (SMR) Data – NOT APPLICABLE.....	F-9
2.4. Compliance Summary – NOT APPLICABLE.....	F-9
2.5. Planned Changes.....	F-9
3. APPLICABLE PLANS, POLICIES, AND REGULATIONS	F-10
3.1. Legal Authorities	F-10
3.2. California Environmental Quality Act (CEQA)	F-10
3.3. State and Federal Laws, Regulations, Policies, and Plans	F-10
3.4. Impaired Water Bodies on CWA 303(d) List.....	F-14
3.5. Other Plans, Policies and Regulations.....	F-15
4. RATIONALE FOR EFFLUENT LIMITATIONS AND DISCHARGE SPECIFICATIONS	F-19
4.1. Discharge Prohibitions	F-19
4.2. Technology-Based Effluent Limitations (TBELs).....	F-19
4.3. Water Quality-Based Effluent Limitations (WQBELs).....	F-23
4.4. Final Effluent Limitation Considerations	F-33
4.5. Interim Effluent Limitations - Not Applicable.....	F-39
4.6. Land Discharge Specifications - Not Applicable.....	F-39
4.7. Recycling Specifications.....	F-39
5. PERFORMANCE GOALS	F-39
5.1. Determination of Performance Goals (Detectable Rate $\geq 20\%$).....	F-40
5.2. Determination of Performance Goals (Detectable Rate $< 20\%$).....	F-44
6. RATIONALE FOR RECEIVING WATER LIMITATIONS – NOT APPLICABLE	F-47
7. RATIONALE FOR PROVISIONS	F-47
7.1. Standard Provisions	F-47
7.2. Special Provisions.....	F-47
8. RATIONALE FOR MONITORING AND REPORTING REQUIREMENTS.....	F-51
8.1. Influent Monitoring.....	F-51
8.2. Effluent Monitoring	F-51
8.3. Whole Effluent Toxicity Testing Requirements.....	F-55
8.4. Receiving Water Monitoring	F-55
8.5. Other Monitoring Requirements	F-55
9. CONSIDERATION OF NEED TO PREVENT NUISANCE AND WATER CODE SECTION 13241 FACTORS.....	F-56
10. PUBLIC PARTICIPATION.....	F-58
10.1. Notification of Interested Persons	F-58
10.2. Written Comments.....	F-59

10.3. Public Hearing.....	F-59
10.4. Review of Waste Discharge Requirements.....	F-60
10.5. Information and Copying	F-60
10.6. Register of Interested Persons.....	F-60
10.7. Additional Information.....	F-60

TABLE OF TABLES

TABLE F- 1. FACILITY INFORMATION.....	F-3
TABLE F- 2. BASIN PLAN BENEFICIAL USES.....	F-10
TABLE F- 3. OCEAN PLAN BENEFICIAL USES.....	F-11
TABLE F-4. SUMMARY OF TBELS IN 40 CFR § 133.102	F-21
TABLE F- 5. SUMMARY OF TBELS FOR POTWS ESTABLISHED BY THE OCEAN PLAN.....	F-22
TABLE F-6. SUMMARY OF TBELS FOR DISCHARGE POINT 002	F-22
TABLE F-7. BACKGROUND SEAWATER CONCENTRATIONS (C_s)	F-30
TABLE F-8. FINAL EFFLUENT LIMITATIONS FOR DISCHARGE POINT 002.....	F-37
TABLE F-9. PERFORMANCE GOALS FOR DISCHARGE POINT 002 (DETECTABLE RATE > 20%).....	F-42
TABLE F-10. PERFORMANCE GOALS FOR DISCHARGE POINT 002 (DETECTABLE RATE < 20%).....	F-44
TABLE F- 11. EFFLUENT MONITORING FREQUENCY	F-53

ATTACHMENT F – FACT SHEET

As described in section 2.2 of this Order, the Los Angeles Water Quality Control Board (Los Angeles Water Board) incorporates this Fact Sheet as findings of the Los Angeles Water Board supporting the issuance of this Order. This Fact Sheet includes the legal requirements and technical rationale that serve as the basis for the requirements of this Order.

This Order has been prepared under a standardized format to accommodate a broad range of discharge requirements for dischargers in California. Only those sections or subsections of this Order that are specifically identified as “not applicable” have been determined not to apply to this Permittee. Sections or subsections of this Order not specifically identified as “not applicable” are fully applicable to this Permittee.

1. PERMIT INFORMATION

The following table summarizes administrative information related to the facility.

Table F- 1. Facility Information

WDID	4A560107001
Discharger	City of Ventura
Name of Facility	Ventura Water Reclamation Facility including its associated wastewater collection system and its ocean outfall
Facility Address	1400 Spinnaker Drive Ventura, CA 93001, Ventura County
Facility Contact, Title and Phone	Vince Ines, Wastewater Utility Manager (805) 677-4133
Authorized Person to Sign and Submit Reports	Vince Ines
Mailing Address	501 Poli Street, Ventura, CA 93001
Billing Address	Same as Mailing Address
Type of Facility	Publicly Owned Treatment Works
Major or Minor Facility	Major
Threat to Water Quality	1
Complexity	A
Pretreatment Program	Yes
Reclamation Requirements	Producer
Facility Permitted Flow to Ocean	10 MGD
Facility Design Flow	14 MGD
Watershed	Ventura Coastal Stream Watershed Management Area
Receiving Water	Pacific Ocean
Receiving Water Type	Ocean waters

- 1.1. The City of Ventura (City, Permittee or Discharger) is the owner and operator of the Ventura Water Reclamation Facility (Ventura WRF or Facility), a Publicly-Owned Treatment Works (POTW), and its associated wastewater collection system and outfalls. For the purposes of this Order, references to the “Discharger” or “Permittee” in applicable federal and state laws, regulations, plans, or policy are held to be equivalent to references to the Discharger herein.
- 1.2. The Facility discharges wastewater to the Pacific Ocean and to the Santa Clara River Estuary (Estuary), both waters of the United States. The City is required to reduce wastewater discharges to the Estuary in a phased manner pursuant to a Consent Decree between the City and environmental groups (the Wishtoyo Foundation/Ventura Coastkeeper, and Heal the Bay) (Tertiary Treated Flows Consent Decree and Stipulated Dismissal with the Wishtoyo Foundation Ventura Coastkeeper, Heal the Bay, filed with the U.S. Central California District Court February 13, 2012).
 - Phase 1a requires a reduction of wastewater discharges to the Estuary to an average annual continued discharge level of 1.9 million gallons per day during closed-berm conditions and,
 - Phase 1b requires a reduction of wastewater discharges to the Estuary to an average annual continued discharge level of 0 to 0.5 million gallons per day during closed-berm conditions).
 - These reductions must be implemented as soon as feasible, but no later than 2025 for Phase 1a and by 2030 for Phase 1b unless an extension is granted consistent with the terms of the Consent Decree.
- 1.3 This Order only covers the discharge from the Ventura WRF to the Pacific Ocean. NPDES No. CA0053651 regulates discharge from the Ventura WRF to the Santa Clara River Estuary (Discharge Point 001), pursuant to Order No. R4-2020-0024 (Estuary Discharge Permit).
- 1.4. On October 2, 2024, the Permittee filed a report of waste discharge for Ventura WRF’s ocean discharge as part of its application for reissuance of the Estuary Discharge Permit. Supplemental information was requested on October 22, 2024, and received on November 22, 2024. The application was deemed complete on January 16, 2025. A site visit was conducted on January 22, 2025, to observe operations and to collect additional data to develop permit limitations and conditions. On August 5, 2025, the 5th district Court of Appeal issued a published decision in *Camarillo Sanitary District et al., v. State Water Resources Control Board* (113 Cal. App. 5th 407). This decision set aside the State Policy for Water Quality Control: Toxicity Provisions (Toxicity Provisions) to the extent these provisions mandate use of the Test of Significant Toxicity (TST) to determine compliance with NPDES permitting requirements for toxicity in inland surface waters, enclosed bays and estuaries; (113 Cal. App. 5th 407 (“*Camarillo v. State Board*”).). The State Water Board is appealing this decision to the California

Supreme Court. On September 5, 2025, Los Angeles Water Board and City of Ventura staff discussed the schedule for the revision and reissuance of the Estuary Discharge Permit to authorize discharges from the Facility to the ocean as well as any impact of the *Camarillo v. State Board* decision on this schedule. The Estuary Discharge Permit currently implements the TST to determine compliance with chronic toxicity effluent limitations. In light of the pending appeal of *Camarillo v. State Board*, it was agreed that the Los Angeles Water Board should issue a separate NPDES permit for the ocean outfall instead of consolidating the two outfalls into a single permit at this time. As a result, this Order only regulates the discharge from the Ventura WRF to the Pacific Ocean. The Estuary Discharge Permit will continue to remain in effect unless and until it is revised and/or terminated. Attachment B1 provides a map of the area around the Facility. Attachment C provides a flow schematic of the Facility. Any references relating to the estuary discharge in these attachments are for informational purposes only.

- 1.5. Regulations at 40 CFR section 122.46 limit the duration of NPDES permits to a fixed term not to exceed five years. Accordingly, Table 3 of this Order limits the duration of the discharge authorization. However, pursuant to California Code of Regulations, title 23, section 2235.4, the terms and conditions of an expired permit are automatically continued pending reissuance of the permit if the Discharger complies with all federal NPDES requirements for continuation of expired permits.
- 1.6. **Ocean Outfall Dilution Credits.** The Los Angeles Water Board received a dilution study, *Modeling the Ventura Water Supply Project Ocean Outfall Final Report* (Dilution Study), dated February 22, 2023, from the City on April 5, 2023, to support establishment of a dilution credit for the new ocean outfall. The Dilution Study used the mathematical model UM3 of the modeling suite Visual Plumes to calculate initial dilutions for the ocean outfall based on three factors for dilution estimates set forth in Chapter III.C.4.d of the Ocean Plan: waste flow characteristics, receiving water density structure, and the assumption that no currents are present during discharge (Ocean Plan, p. 17.) Five discharge scenarios were modeled based on the outfall design flow rate, projected typical flow scenarios during different phases of construction, flow during pipeline maintenance flushing, and peak wet weather flow. As discussed in more detail in section 1.2 of this Fact Sheet, the Permittee entered into a Consent Decree with Wishtoyo, Ventura Coastkeeper, and Heal the Bay that requires the Permittee to reduce or eliminate discharges from the Ventura WRF to the Santa Clara River Estuary in distinct phases. The diverted discharge will be conveyed to the Pacific Ocean through the ocean outfall (Discharge Point 002), which has the capacity to discharge up to 10 MGD to the ocean. Model simulations were run using receiving water density stratification data collected from the outfall location from October 2021 through September 2022. Initial simulations were based on a discharge temperature of 68°F. The Los Angeles Water Board requested

additional simulations to be run at historical effluent temperatures to determine the impact of effluent temperature on the estimated dilution. These additional simulations used the minimum, maximum, and average historical effluent temperatures (63°F, 85°F, and 74°F, respectively) from the Ventura WRF. The Permittee provided results in a letter dated October 12, 2023. Simulations showed a slight decrease in the dilution ratio when using the minimum historical effluent temperature.

Simulations were also run using 2018 receiving water data used for the Calleguas Salinity Management Pipeline Outfall and 2005-2012 data from the nearest California Cooperative Oceanic Fisheries Investigations (CalCOFI) station. However, the Los Angeles Water Board based the dilution credit on the site-specific receiving water data since the site-specific data are most representative of conditions at the outfall and are the most recent. Simulations showed the most limiting factor influencing dilution to be the flow rate. As a result, the Los Angeles Water Board determined the minimum probable initial dilution to be 103:1 based on the discharge scenario with the highest flow rate of 10 MGD (Scenario V – Phase 1A peak wet weather flow) and adjusted the dilution to reflect the impact of effluent temperature. The minimum initial dilution determined by the model for all other scenarios, including the brine-only scenario, were all greater than 103:1. Use of the 103:1 dilution ratio therefore ensures the minimum initial dilution included in this Order will be protective of all anticipated discharge scenarios. The Los Angeles Water Board notified the Permittee of their determination in a letter dated May 15, 2024.

If discharge conditions change such that the Permittee believes a higher dilution credit is needed, the Permittee may conduct a tracer study to confirm the results of the modeling once the new ocean outfall is in operation. The Permittee must provide the Los Angeles Water Board with data to support the need for a higher dilution credit. Any modifications to the dilution credit would require reopening the permit.

2. FACILITY DESCRIPTION

2.1. Description of Wastewater and Biosolids Treatment and Controls

2.1.1. The Discharger owns and operates the Ventura WRF, a tertiary wastewater treatment plant, with a design capacity of 14 MGD, located at 1400 Spinnaker Road, Ventura, California. The Facility receives domestic, commercial, and industrial wastewater generated in the city of Ventura by an estimated population of 109,600. The wastewater from industrial sources is pretreated pursuant to 40 CFR 403, regulated under the City of Ventura's approved pretreatment program. The Los Angeles Water Board approved a substantial modification to the City's Pretreatment Program on July 26, 2023, after the Permittee submitted a local limits evaluation report, dated April 2023. More stringent limits were applied for metals and new limits applied for

ammonia (as N), biochemical oxygen demand (BOD), hydrogen sulfide, and TSS. Treatment at the Facility consists of wastewater processing and biosolids processing.

The design flow of the treatment facility is 14 MGD and the new ocean outfall has a design capacity of 10 MGD. The ocean outfall is sized such that together with storage/equalization facilities onsite and the outfall to the Estuary, the Facility will be able to accommodate peak flows during a 5-year, 24-hour storm event. The ocean outfall is an interim discharge point for tertiary-treated wastewater diverted from the Estuary until construction of the Advanced Water Purification Facility (AWPF) is complete. During the Phase 1A discharge reduction period to the Estuary, tertiary-treated wastewater will be discharged through both, the Estuary and ocean outfall. Discharge to the Estuary is regulated under the Estuary Discharge Permit. During Phase 1A effluent discharge to the estuary will be reduced to an annual average flow of 1.9 MGD under closed berm conditions by the end of 2025. During Phase 1B, discharge will be reduced to 0.0 – 0.5 MGD to the Estuary and after the AWPF is operational, it is expected that any remaining tertiary-treated wastewater will be completely diverted to the AWPF, and reverse osmosis concentrate will be discharged to the ocean outfall. The ocean outfall will also be used for discharges when there are periods of heavier flows during wet weather events, periods of low recycled water demand, or for maintenance and emergencies. The Ventura WRF wet-weather capacity is 23.4 MGD, 10 MGD of which can be discharged to the ocean and the rest of which can be discharged to the estuary during wet weather when the berm is open. The City has provided capacity during normal operations to contain a 5-year-24-hour storm using the ocean outfall and storage regardless of whether the berm is open or closed.

2.1.2. Following is a description of the treatment processes:

- a. **Primary Treatment:** The primary treatment consists of screening, grit removal, primary sedimentation and flow equalization. Ferrous chloride is injected into the primary sedimentation sludge to control hydrogen sulfide production and to aid in primary settling. Settled solids are removed from the primary clarifier for biosolids processing.
- b. **Biological Nutrient Removal (BNR):** Biological treatment consists of bio-augmentation at a biologically activated reaeration (BAR) tank, feeding into two parallel anoxic tanks and four parallel aeration tanks for full nitrification and denitrification (NDN). Activated sludge and mixed liquor recycling is utilized to balance load demands within the system.
- c. **Secondary and Tertiary Treatment:** Mixed liquor is transferred to six parallel rectangular secondary final sedimentation tanks for secondary settling. Return activated sludge is collected from the clarifiers and returned to the BAR process, while waste activated sludge is sent to the

biosolids treatment processes. The secondary treated effluent is sent to the horizontal pressurized mixed media filtration process.

- d. **Effluent Disinfection:** The tertiary-treated effluent is disinfected using gaseous chlorine and ammonia to create chloramines with contact time through the chlorine contact chambers. Most of the disinfected tertiary-treated effluent is dechlorinated using gaseous sulfur dioxide and conveyed to the ocean outfall pump station. Effluent that is not conveyed to the ocean outfall is conveyed through the effluent transfer stations to a series of 'wildlife/water quality polishing' ponds before discharging to the Santa Clara River Estuary. A portion of the disinfected effluent, averaging 0.48 MGD annually, is distributed for beneficial reuse for landscape irrigation or dust control.
- e. **Biosolids Handling:** The biosolids system consists of dissolved air flotation thickening, anaerobic digestion, and centrifuge dewatering. The primary settled sludge is sent directly to anaerobic digesters for thickening. Waste activated sludge is removed from the secondary final sedimentation tanks and thickened in the dissolved air flotation unit.

Thickened primary and secondary sludge is sent to three anaerobic digesters operated in parallel for stabilization to achieve Class B biosolids. Utilizing the methane gas produced by anaerobic digestion, a co-generation system fuels an engine that keeps the digester heated through a series of heat exchangers. Anaerobically digested sludge is dewatered through one of two centrifuges to produce a cake of 18 to 23 percent solids. Sludge cake is conveyed to tractor trailers and hauled off-site for disposal. Centrate waste streams flow back to the BAR tank for treatment. Centrate flows can be equalized by entering the filtrate equalization tank prior to the BAR tank so that the BAR tank receives constant flow. All the Class B anaerobically digested sludge is dewatered and sent to an offsite contracted composting facility.

2.2. Discharge Points and Receiving Waters

- 2.2.1. **Discharge Point 001 – Santa Clara River Estuary** (separately regulated under the Estuary Discharge Permit (Order No. R4-2020-0024/NPDES No. CA0053651))

The Ventura WRF discharges tertiary-treated municipal wastewater to the Estuary via unlined wildlife ponds. Treated effluent is discharged from the plant to surface waters at the following coordinates:

Latitude: 34.23937°, Longitude: -119.25870°

- 2.2.2. **Discharge Point 002 – Pacific Ocean**

The Ventura WRF discharges tertiary-treated wastewater to the Pacific Ocean through a new outfall that extends approximately 6,600 feet off the

Marina Park coastline. This outfall will also discharge reverse osmosis concentrate from an AWPf that has not yet been constructed. The discharge location coordinates are:

Latitude: 34.253103°, Longitude: -119.290653°

2.2.3. Receiving Waters

- a. **Santa Clara River Estuary** (separately regulated under the Estuary Discharge Permit (Order No. R4-2020-0024/NPDES No. CA0053651))

Treated wastewater is discharged from the chlorine contact chambers to the wildlife ponds, and finally to the Estuary. The treatment plant discharges to the lowest point in the Santa Clara River Watershed to the Estuary pursuant to NPDES No. CA0053651, where the freshwater enters the Pacific Ocean.

- b. **Pacific Ocean**

The Ventura WRF ocean discharge is near Marina Park Beach, San Buenaventura Beach, and Pierpoint State Beach. The Ventura Marina Jetties, South Jetty Beach, Surfers Knoll, and McGrath State Beach are also within two miles of the outfall.

2.3. Summary of Existing Requirements and Self-Monitoring Report (SMR) Data – NOT APPLICABLE

2.4. Compliance Summary – NOT APPLICABLE

2.5. Planned Changes

Plant upgrades are planned for the existing wastewater treatment plant in addition to new facilities planned to protect the estuary ecology, develop additional water supply sources to meet water demands for planned future growth, and enhance supply reliability even in drought years.

1. Aeration, Filtration, and Chlorination Process Replacement with Membrane Bioreactor and Ultraviolet Light Disinfection (MBR/UV)

New BNR tanks, MBR, and UV will replace the secondary, tertiary, and chlorination systems currently used at the Ventura WRF. The new equipment will replace aging, structurally deficient equipment; provide improved nutrient and pathogen removal; and provide a safer disinfection process. Construction is expected to be completed by 2030.

2. The Discharger is also planning for construction of an AWPf located near the Ventura WRF on an undeveloped parcel on the corner of Harbor Boulevard and Olivas Park Drive. Tertiary-treated wastewater from the Ventura WRF will be diverted to the AWPf for further treatment for indirect potable reuse. Construction of the AWPf is expected to be completed by the end of 2030.

3. APPLICABLE PLANS, POLICIES, AND REGULATIONS

The requirements contained in this Order are based on the requirements and authorities described in this section.

3.1. Legal Authorities

This Order serves as WDRs pursuant to article 4, chapter 4, division 7 of the California Water Code (commencing with section 13260). This Order is also issued pursuant to section 402 of the federal Clean Water Act (CWA) and implementing regulations adopted by the USEPA and chapter 5.5, division 7 of the Water Code (commencing with section 13370). It shall serve as an NPDES permit authorizing the Discharger to discharge into waters of the United States at the discharge location described in Table 2 subject to the WDRs in this Order.

3.2. California Environmental Quality Act (CEQA)

Under Water Code section 13389, this action to adopt an NPDES permit is exempt from the provisions of Chapter 3 of CEQA, (commencing with section 21100) of division 13 of the Public Resources Code. To the extent the Los Angeles Water Board is requiring a Recycled Water Feasibility Investigation under its state law authority, this action is exempt from CEQA pursuant to 14 Cal. Code Reg. § 15262 - Feasibility and Planning Studies. Note, the Discharger also prepared a Final Environmental Impact Report for the Ventura Water Supply Projects which includes the ocean outfall in September 2019 for compliance with discretionary approval that are subject to CEQA (Case No. EIR-9-19-52130, Project No. PROJ-1383313707, SCH No. 2017111004).

3.3. State and Federal Laws, Regulations, Policies, and Plans

3.3.1. **Water Quality Control Plan.** The Water Quality Control Plan for the Los Angeles Region (Basin Plan) designates beneficial uses, establishes water quality objectives, and contains implementation programs and policies to achieve those objectives for all waters addressed through the Basin Plan. Requirements in this Order implement the Basin Plan.

Beneficial uses applicable to the ocean outfall are as follows:

Table F- 2. Basin Plan Beneficial Uses

Water Body Designation	Receiving Water Name	Beneficial Use(s)
--	Pacific Ocean Nearshore Zone	<u>Existing:</u> Industrial water supply (IND), NAV, REC-1, REC-2, COMM, MAR, WILD, preservation of biological habitats (BIOL), RARE, MIGR, SPWN, and shellfish harvesting (SHELL).

Water Body Designation	Receiving Water Name	Beneficial Use(s)
--	Pacific Ocean Offshore Zone	<u>Existing:</u> NAV, REC-1, REC-2, COMM, MAR, WILD, RARE, MIGR, SPWN, and SHELL.
180701020904 (Formerly Hydro. Unit Number 403.11)	Ventura Marina	<u>Existing:</u> IND, NAV, COMM, MAR, WILD, SHELL, REC-1, and REC-2.

- 3.3.2. **California Ocean Plan.** The State Water Board adopted the *Water Quality Control Plan for Ocean Waters of California*, (Ocean Plan) in 1972. The State Water Board adopted the latest amendment on August 7, 2018, and it became effective on February 4, 2019. The Ocean Plan is applicable, in its entirety, to point source discharges to the ocean waters of the State. The Ocean Plan identifies the protected beneficial uses of ocean waters of the State as summarized below:

Table F- 3. Ocean Plan Beneficial Uses

Discharge Point	Receiving Water	Beneficial Uses
002	Pacific Ocean	Industrial water supply; water contact and non-contact recreation, including aesthetic enjoyment; navigation; commercial and sport fishing; mariculture; preservation and enhancement of designated Areas of Special Biological Significance (ASBS); rare and endangered species; fish migration; marine habitat; fish spawning and shellfish harvesting

To protect the beneficial uses, the Ocean Plan establishes water quality objectives and a program of implementation. Requirements of this Order implement the Ocean Plan.

- 3.3.3. **Thermal Plan.** The State Water Board adopted the *Water Quality Control Plan for Control of Temperature in the Coastal and Interstate Waters and Enclosed Bays and Estuaries of California* (Thermal Plan) on January 7, 1971, and amended this plan on September 18, 1975. This plan contains temperature objectives for coastal and inland surface waters. Requirements of this Order implement the Thermal Plan.
- 3.3.4. **Alaska Rule.** On March 30, 2000, USEPA revised its regulation that specifies when new and revised state and tribal water quality standards become effective for CWA purposes (40 CFR section 131.21, 65 Federal

Register 24641 (April 27, 2000)). Under the revised regulation (also known as the Alaska Rule), new and revised standards submitted to USEPA after May 30, 2000, must be approved by USEPA before being used for CWA purposes. The final rule also provides that standards already in effect and submitted to USEPA by May 30, 2000, may be used for CWA purposes, whether or not approved by USEPA. This Order implements this rule by implementing standards developed after May 30, 2000, that have been approved by USEPA and/or implementing standards were in effect and submitted to USEPA by May 30, 2000.

- 3.3.5. **Stringency of Requirements for Individual Pollutants.** This Order contains both technology-based effluent limitations (TBELs) and water quality-based effluent limitations (WQBELs) for individual pollutants. The TBELs consist of restrictions on BOD, Total Suspended Solids (TSS), and percent removal of BOD and TSS, which implement the minimum applicable federal technology-based requirements for POTWs. Restrictions on BOD and TSS are discussed in section 4.2.2. of the Fact Sheet. For Discharge Point 002, effluent limitations more stringent than federal technology-based requirements consisting of restrictions on oil and grease, settleable solids, turbidity, and pH are necessary to implement State treatment standards in Table 4 of the Ocean Plan. This Order's technology-based pollutant restrictions implement the minimum, applicable federal technology-based requirements.

WQBELs have been scientifically derived to implement WQOs that protect beneficial uses. Both the beneficial uses and the WQOs have been approved pursuant to federal law and are the applicable federal water quality standards. Collectively, this Order's restrictions on individual pollutants are no more stringent than required to implement the requirements of the CWA and the applicable water quality standards for purposes of the CWA. The effluent limitations for these pollutants are described in additional detail in section 4.3.2 of the Fact Sheet.

- 3.3.6. **Antidegradation Policy.** Federal regulations at 40 CFR section 131.12 require that the state water quality standards include an antidegradation policy consistent with the federal policy. The State Water Board established California's antidegradation policy in the State Water Board's *Statement of Policy with Respect to Maintaining High Quality of Waters in California* (Resolution No. 68-16). Resolution No. 68-16 is deemed to incorporate the federal antidegradation policy where the federal policy applies under federal law. Resolution No. 68-16 requires that existing water quality be maintained unless degradation is justified based on specific findings. The Los Angeles Water Board's Basin Plan implements, and incorporates by reference, both the state and federal antidegradation policies. The permitted discharge must be consistent with the

antidegradation provisions at 40 CFR section 131.12 and State Water Board Resolution No. 68-16. Antidegradation as it relates to this Order is further described in section 4.4.2. of this Fact Sheet.

3.3.7. Anti-Backsliding Requirements – NOT APPLICABLE

3.3.8. Endangered Species Act (ESA) Requirements. This Order does not authorize any act that results in the taking of a threatened or endangered species or any act that is now prohibited, or becomes prohibited in the future, under either the California Endangered Species Act (Fish and Game Code, §§ 2050 to 2097) or the federal Endangered Species Act (16 USCA §§ 1531 to 1544). This Order requires compliance with effluent limits and other requirements to protect the beneficial uses of waters of the state, including protecting rare and endangered species. The Permittee is responsible for meeting all requirements of the applicable Endangered Species Act.

3.3.9. Sewage Sludge and Biosolids. Section 405 of the CWA and implementing regulations at 40 CFR part 503 require that producers of sewage sludge/biosolids meet certain reporting, handling, and use or disposal requirements. The state has not been delegated the authority by USEPA to implement this program. The Permittee is responsible for meeting all applicable requirements of 40 CFR part 503 that are under USEPA's enforcement authority.

3.3.10. Monitoring and Reporting. 40 CFR § 122.48 requires that all NPDES permits specify requirements for recording and reporting monitoring results. CWC section 13383 authorizes the Los Angeles Water Board to require technical and monitoring reports. The Monitoring and Reporting Program (MRP) establishes monitoring and reporting requirements to implement federal and state requirements. This MRP is provided in Attachment E.

3.3.11. Domestic Water Quality. In compliance with Water Code section 106.3, it is the policy of the State of California that every human being has the right to safe, clean, affordable, and accessible water adequate for human consumption, cooking, and sanitary purposes. The ocean outfall regulated under this Order is a critical component of the Permittee's proposed AWPf which will divert treated wastewater from the Facility for further treatment to produce safe and clean drinking water.

3.3.12. Pretreatment Requirements. The Discharger has developed and is implementing a Pretreatment Program that was previously approved by USEPA. This Order requires continued implementation of the approved Pretreatment Program. Description of the pretreatment program is included in section 2.1.1. and 7.2.5.b. of this Fact Sheet. Any change to the Pretreatment Program shall be reported to the Los Angeles Water

Board in writing and shall be approved in accordance with procedures established in 40 CFR § 403.18. The Discharger shall comply with requirements contained in Attachment I – Pretreatment Reporting Requirements.

3.3.13. **Standard and Special Provisions.** Standard Provisions, which apply to all NPDES permits in accordance with 40 CFR § 122.41, and additional conditions applicable to POTWs in accordance with 40 CFR § 122.42, are provided in Attachment D. The Los Angeles Water Board has also included in this Order Special Provisions applicable to the Permittee. The rationale for the Special Provisions contained in this Order is provided in section 7.2 in this Fact Sheet.

3.3.14. **Water Recycling.** In accordance with statewide policies concerning water reclamation (See, e.g., CWC sections 13000 and 13550-13557, State Water Board Resolution Number 77-1 (*Policy with Respect to Water Reclamation in California*), and State Water Board Resolution Numbers 2009-0011, 2013-0003, and 2018-0057 (*Water Quality Control Policy for Recycled Water* (Recycled Water Policy))), the Los Angeles Water Board strongly encourages, wherever practicable, water recycling, water conservation, and use of stormwater and dry-weather urban runoff. The State Water Board adopted the Recycled Water Policy on February 3, 2009, and amended it most recently on December 11, 2018. The most recent amendments became effective on April 8, 2019. This Order implements the Recycled Water Policy by requiring annual reports of influent, wastewater produced, and effluent volumes, including treatment level, discharge type, and categories of reuse. These requirements are described in section 4.7.2 of this Fact Sheet.

This permit also requires the Permittee to investigate the feasibility of recycling, conservation, and/or alternative disposal methods for wastewater (such as groundwater injection), and/or capture and treatment of dry-weather urban runoff and stormwater. This requirement is described in section 4.7.1. of this Fact Sheet.

3.4. Impaired Water Bodies on CWA 303(d) List.

On February 6, 2024, the State Water Board adopted the CWA Section 303(d) List of the State's 2024 California Integrated Report (State Water Board Resolution No. 2024-0007) based on a compilation of the regional water boards' Integrated Reports. These Integrated Reports contain both the Clean Water Act (CWA) section 305(b) water quality assessment and section 303(d) list of impaired waters. In developing the Integrated Reports, the water boards solicit data, information, and comments from the public and other interested persons. On December 13, 2024, USEPA partially approved the 2024 California Integrated Report, with the exception of 53 waterbody-pollutant combinations. The portions of the Integrated Report that have not been approved by the

USEPA are not applicable to the Santa Clara River Watershed or to the Pacific Ocean. The CWA section [303\(d\) list](https://www.waterboards.ca.gov/water_issues/programs/water_quality_assessment/2024-integrated-report.html) can be found at the following link: https://www.waterboards.ca.gov/water_issues/programs/water_quality_assessment/2024-integrated-report.html.

Surfers Point at Seaside, San Buenaventura Beach, and McGrath Beach are listed as impaired for indicator bacteria, but there is currently no TMDL for Surfers Point at Seaside or San Buenaventura Beach, and the McGrath Beach Indicator Bacteria TMDL is not applicable to POTWs. The bay and harbor at Ventura Harbor/Ventura Keys are listed for arsenic, coliform and indicator bacteria, and dieldrin, there are currently no TMDLs for these pollutants in this waterbody. The Ventura Marina Jetties, coastal bay and shoreline, are listed for DDT and PCBs, but there are currently no TMDLs for these pollutants in this waterbody. McGrath lake is listed as impaired for dieldrin in the sediment, indicator bacteria, DDT, PCBs, chlordane, and toxicity. The Los Angeles Water Board has adopted a TMDL to monitor legacy pesticides in McGrath Lake, which can drain into the Ocean south of the outfall under high groundwater conditions.

3.5. Other Plans, Policies and Regulations

3.5.1. **Climate Change Adaptation and Mitigation.** On March 7, 2017, the State Water Board adopted a resolution in recognition of the challenges posed by climate change that requires a proactive approach to climate change in all State Water Board actions, including drinking water regulation, water quality protection, and financial assistance (Resolution Number 2017-0012). The resolution lays the foundation for a response to climate change that is integrated into all State Water Board actions, by giving direction to the State Water Board divisions and encouraging coordination with regional water quality control boards. The Los Angeles Water Board also adopted *A Resolution to Prioritize Actions to Adapt to and Mitigate the Impacts of Climate Change on the Los Angeles Region's Water Resources and Associated Beneficial Uses* (Resolution Number R18-004) on May 10, 2018. The resolution summarizes the steps taken so far to address the impacts of climate change within the Los Angeles Water Board's programs and lists a series of steps, including the identification of potential regulatory adaptation and mitigation measures that could be implemented on a short-term and long-term basis by each of the Los Angeles Water Board's programs to mitigate the effects of climate change on water resources and associated beneficial uses where possible. Incorporation of studies relating to climate change management and response is an important part of planning for the future, as "[m]unicipalities across the country are facing the challenging obligation to manage their aging sewer and stormwater systems at a time of urban population growth, more stringent water quality protection requirements, and increased exposure to climate change-related risks." (USEPA, *Asset Management:*

Incorporating Asset Management Planning Provisions into NPDES Permits (December 2014)). Climate change research also indicates the overarching driver of climate change is increased atmospheric carbon dioxide from human activity. The increased carbon dioxide emissions trigger changes to climatic patterns, which increase the intensity of sea level rise and coastal storm surges, lead to more erratic rainfall and local weather patterns, trigger a gradual warming of freshwater and ocean temperatures, and trigger changes to ocean water chemistry. This Order contains provisions to require planning and actions to address climate change impacts as contemplated in both the State and Los Angeles Water Board's resolutions, including a requirement to submit an updated Climate Change Effects Vulnerability Assessment and Management Plan (Climate Change Plan).

This requirement is consistent with 40 CFR section 122.41(e), requiring permittees to ensure compliance through proper operation and maintenance of facilities, including installation and operation of appropriate auxiliary and backup facilities; and they are authorized pursuant to Water Code section 13383. (*In re the City of Oceanside, Fallbrook Public Utilities Dist. And the Southern California Alliance of Publicly Owned Treatment Works*, State Water Board Order WQ 2021-0005, February 12, 2021, at p. 26-27.) The Los Angeles Water Board understands that the cost of preparing such a plan could be significant, but "the costs of ensuring resilient infrastructure to protect water quality against the effects of climate change is warranted." (*Fallbrook*, at p. 27.). The Los Angeles Water Board approved the Climate Change Plan for the Ventura WRF submitted under Order No. R4-2020-0024 on March 1, 2022. This Order requires submittal of a revised Climate Change Plan that includes the ocean outfall and associated structures.

- 3.5.2. **Secondary Treatment Regulations.** 40 CFR part 133 establishes the minimum levels of effluent quality to be achieved by secondary treatment. These limitations, established by USEPA, are implemented in this Order, except where more stringent limitations are required by other applicable plans, policies, or regulations or to prevent backsliding.
- 3.5.3. **Stormwater.** CWA section 402(p), as amended by the Water Quality Act of 1987, requires NPDES permits for stormwater discharges. Pursuant to this requirement, in 1990, USEPA promulgated 40 CFR part 122.26 that established requirements for stormwater discharges under an NPDES program. To facilitate compliance with federal regulations, the State Water Board issued a statewide general permit, *General Permit for Storm Water Discharges Associated with Industrial Activities*, NPDES No. CAS000001, Order 2014-0057-DWQ, as amended by Order 2015-0122-DWQ and

Order 2018-0028-DWQ (Industrial General Permit). The latest amendment became effective on July 1, 2020.

Stormwater discharges from Ventura WRF are not regulated under this Order. The Discharger submitted a Notice of Intent (WDID 4 56I021734) to comply with the requirements of the Industrial General Permit on June 11, 2015. The Discharger developed and currently implements a Storm Water Pollution Prevention Plan (SWPPP) to comply with the requirements of the Industrial General Permit.

- 3.5.4. **Sanitary Sewer Overflows (SSOs).** On December 6, 2022, the State Water Board issued the Statewide General Waste Discharge Requirements for Sanitary Sewer Systems, (SSS WDRs, State Water Board Order No. WQ 2022-0103-DWQ). Order No. WQ 2022-0103-DWQ supersedes the previous SSS WDRs (Order 2006-0003-DWQ and its subsequent amendments). The SSS WDRs require public agencies that own or operate sanitary sewer systems with greater than one mile of sewer lines to enroll for coverage, comply with requirements to develop and implement sewer system management plans, and report all SSOs to the State Water Board's online SSO database. The Permittee certified continuation coverage on May 10, 2023 (WDID: 4SSO11367).

Regardless of the coverage obtained under the SSS WDRs, the Discharger's collection system is part of the POTW that is subject to this NPDES permit. As such, pursuant to federal regulations, the Discharger must properly operate and maintain its collection system (40 CFR section 122.41 (e)), report any non-compliance (40 CFR section 122.41(1)(6) and (7)), and mitigate any discharge from the collection system in violation of this NPDES permit (40 CFR section 122.41(d)).

The requirements contained in this Order in sections 6.3.3.b (Spill Cleanup Contingency Plan section), 6.3.4 (Construction, Operation and Maintenance Specifications section), and 6.3.6 (Spill Reporting Requirements section) are consistent with the requirements of the SSS WDRs. The Los Angeles Water Board recognizes that there may be some overlap between these NPDES permit provisions and SSS WDRs requirements, related to the collection systems. The requirements of the SSS WDRs are considered the minimum thresholds. To encourage efficiency, the Los Angeles Water Board will accept the documentation prepared by the Dischargers under the SSS WDRs for compliance purposes as satisfying the requirements in sections 6.3.3.b, 6.3.4, and 6.3.6, provided the more stringent provisions contained in this NPDES permit are also addressed in the SSS WDRs submission. Pursuant to the SSS WDRs, Order No. WQ 2022-0103-DWQ section 6.2, the provisions of this NPDES permit supersede the SSS WDRs, for all purposes, including enforcement, to the extent the requirements may be deemed duplicative.

The requirements of this Order are more stringent than the SSS WDRs because in addition to the SSS WDRs requirements, this NPDES permit requires water quality monitoring of the receiving water when a spill reaches the surface water.

- 3.5.5. **Watershed Management.** The Los Angeles Water Board has been implementing a Watershed Management Approach (WMA) to address water quality protection in the Los Angeles Region, as detailed in the Watershed Management Initiative (WMI). The WMI is designed to integrate various surface and ground water regulatory programs while promoting cooperative, collaborative efforts within a watershed. It is also designed to focus limited resources on key issues and use sound science. Information about watersheds in the region can be obtained at the [Los Angeles Water Board's website](http://www.waterboards.ca.gov/losangeles/water_issues/programs/regional_program/watershed/index.shtml) at http://www.waterboards.ca.gov/losangeles/water_issues/programs/regional_program/watershed/index.shtml. The WMA emphasizes cooperative relationships between regulatory agencies, the regulated community, environmental groups, and other stakeholders in the watershed to achieve the greatest environmental improvements with the resources available.

This Order fosters implementation of the WMA by protecting beneficial uses in the watershed and requiring the Discharger to participate with other stakeholders in the development and implementation of a watershed-wide monitoring program. The Monitoring and Reporting Program of this Order requires the discharger to participate in regional monitoring programs in the Southern California Bight.

- 3.5.6. **Environmental Justice and Advancing Racial Equity.** Water Code section 13149.2 requires the Los Angeles Water Board to make findings on potential environmental justice, tribal impacts, and racial equity considerations when issuing or reissuing individual waste discharge requirements that regulate an activity or a facility that may have water quality impacts on disadvantaged or tribal communities, and that includes a time schedule, alternative compliance path or water quality variance to allow a discharger more time to come into compliance with an applicable water quality objective. Water Code section 189.7 requires the Los Angeles Water Board to conduct outreach in disadvantaged and/or tribal communities when considering proposed discharges of waste that may have disproportionate impacts on water quality in those communities. This Order does not include a time schedule, alternative compliance path, or variance and will not have disproportionate impacts on water quality in disadvantaged or tribal communities. Therefore, the requirements in Water Code sections 13149.2 and 189.7 do not apply. Nevertheless, in accordance with the Water Boards' efforts to advance racial equity and

environmental justice, the Order requires the Permittee to meet water quality standards that protect public health and the environment, thereby benefiting all persons and communities within the Region. The Los Angeles Water Board is committed to developing and implementing policies and programs to advance racial equity and environmental justice so that race can no longer be used to predict life outcomes, and outcomes for all groups are improved.

4. RATIONALE FOR EFFLUENT LIMITATIONS AND DISCHARGE SPECIFICATIONS

The CWA requires point source dischargers to control the amount of conventional, non-conventional, and toxic pollutants that are discharged into the waters of the United States. The control of pollutants discharged is established through effluent limitations and other requirements in NPDES permits. There are two principal bases for effluent limitations in the Code of Federal Regulations: 40 CFR section 122.44(a) requires that permits include applicable technology-based limitations and standards (TBELs); and 40 CFR section 122.44(d) requires that permits include water quality-based effluent limitations (WQBELs) to attain and maintain applicable numeric and narrative water quality criteria to protect the beneficial uses of the receiving water. Where numeric water quality objectives have not been established, 40 CFR § 122.44(d) specifies that WQBELs may be established using USEPA criteria guidance under CWA section 304(a); proposed State criteria or a State policy interpreting narrative criteria supplemented with other relevant information may be used; or an indicator parameter may be established.

4.1. Discharge Prohibitions

The discharge prohibitions in this Order are based on the CWA, Ocean Plan section III.I, State Water Board's plans and policies, USEPA guidance and regulations, and best practicable waste treatment technology. This Order authorizes the discharge of tertiary-treated wastewater from Discharge Point 002 (Pacific Ocean). This Order also authorizes the discharge of reverse osmosis concentrate from Discharge Point 002 (Pacific Ocean). It does not authorize any other types of discharges.

4.2. Technology-Based Effluent Limitations (TBELs)

4.2.1. Scope and Authority

Technology-based effluent limitations require a minimum level of treatment for industrial/municipal point sources based on currently available treatment technologies while allowing the Discharger to use any available control techniques to meet the effluent limits. The 1972 CWA requires POTWs to meet performance requirements based on available wastewater treatment technology. Section 301 of the CWA establishes a required performance level (referred to as "secondary treatment") that all POTWs were required to meet by July 1, 1977. More specifically, section 301(b)(1)(B) of the CWA requires that USEPA develop secondary

treatment standards for POTWs as defined in section 304(d)(1). Based on this statutory requirement, USEPA developed national secondary treatment regulations which are specified in 40 CFR part 133. These technology-based regulations apply to all POTWs and identify the minimum level of effluent quality to be attained by secondary treatment in terms of BOD₅20°C, TSS, and pH.

4.2.2. Applicable TBELs

This Facility is subject to the technology-based regulations for the minimum level of effluent quality attainable by secondary treatment in terms of BOD₅20°C and TSS. The principal design parameters for wastewater treatment plants are the daily BOD and TSS loading rates and the corresponding removal rate of the system.

BOD₅20°C is a measure of the quantity of the organic matter in the water and, therefore, the water's potential for becoming depleted in dissolved oxygen. As organic degradation occurs, bacteria and other decomposers use the oxygen in the water for respiration. Unless there is a steady resupply of oxygen to the system, the water will quickly become depleted of oxygen. Adequate dissolved oxygen levels are required to support aquatic life. Depressions of dissolved oxygen can lead to anaerobic conditions resulting in odors, or, in extreme cases, fish kills. Total Suspended Solids is a measure of the weight of solids remaining after a well-mixed sample is filtered through a standard glass filter and the suspended portion is dried. Suspended solids reduce light penetration, thereby limiting the growth of aquatic plants and algae. High suspended solids may also clog fish gills and cause the surface water to increase in temperature, causing additional stress to aquatic organisms.

40 CFR 133.102 provides the minimum level of effluent quality attainable by secondary treatment, for BOD, TSS, and pH:

- The 30-day average shall not exceed 30 mg/L, and
- The 7-day average shall not exceed 45 mg/L.
- The effluent values for pH shall be maintained within the limits of 6.0 to 9.0.

The Ventura WRF provides tertiary treatment, which removes additional solids and results in lower levels of BOD and TSS in the effluent than is required by the secondary treatment standards. Tertiary-treated wastewater and reverse osmosis concentrate is discharged to the Pacific Ocean via Discharge Point 002.

The same treatment processes are used to produce tertiary-treated effluent conveyed to the Estuary and the Pacific Ocean. Since the effluent has been able to meet the effluent limits and efficiency standards for BOD and

TSS in the Estuary Discharge Permit (NPDES No. CA0053651), the same effluent limitations and efficiency standards for BOD and TSS have been applied to Discharge Point 002 when only tertiary-treated effluent is discharged. Since Discharge Point 002 will discharge tertiary-treated wastewater and reverse osmosis concentrate when the AWPf is operational and the effluent monitoring location for Discharge Point 002 is located downstream of where reverse osmosis concentrate will mix with the tertiary-treated effluent, the discharge may not be able to meet the concentration-based effluent limitations for TSS or the efficiency requirement in the Ocean Plan since the reverse osmosis concentrate elevates the TSS concentration. In cases where reverse osmosis concentrate is discharged to Discharge Point 002, the effluent TSS must meet the Ocean Plan objective of 60 mg/L in lieu of the more stringent concentration-based effluent limitations in Table F-6 and the percent removal requirements. The mass-based effluent limitations for TSS continue to apply regardless of whether reverse osmosis concentrate is discharged. The tertiary-treated effluent produced at the Ventura WRF is still regulated for discharges to the Estuary pursuant to the Estuary Discharge Permit (NPDES No. CA0053651), so the tertiary-treated effluent prior to mixing with the reverse osmosis concentrate will continue to be required to meet the more stringent concentration-based effluent limitations for TSS. All TBELs are independent of the dilution ratio for the discharge outfall. In addition to the concentration-based effluent limitations, mass-based effluent limitations based on the design flow rate of the outfall (10 MGD) are also included in this Order.

The following table summarizes the technology-based requirements for secondary treatment, which are applicable to the Facility:

Table F-4. Summary of TBELs in 40 CFR § 133.102

Parameter	Units	30-day Average	7-day Average	Instan. Min	Instan. Max
BOD ₅ 20°C	mg/L	30	45	--	--
TSS	mg/L	30	45	--	--
Removal Efficiency for BOD and TSS	%	≥ 85	--	--	--
pH	pH unit	--	--	6.0	9.0

Also, Table 4 of the Ocean Plan establishes the following TBELs, which are applicable to the Facility:

Table F- 5. Summary of TBELs for POTWs Established by the Ocean Plan

Parameter	Units	AMEL	AWEL	Instan. Min	Instan. Max	Note
Oil & Grease	mg/L	25	40	--	75	--
Removal Efficiency for TSS	%	75	--	--	--	a
Settleable Solids	mL/L	1.0	1.5	--	3.0	--
Turbidity	NTU	75	100	--	225	--
pH	pH unit	--	--	6.0	9.0	--

Footnote for Table F-5:

- a. Dischargers shall, as a 30-day average, remove 75% of suspended solids from the influent stream before discharging wastewaters to the ocean, and that the effluent limitation to be met shall not be lower than 60 mg/L.

End of Footnote for Table F-5

The following table summarizes the TBELs for the ocean outfall (Discharge Point 002):

Table F-6. Summary of TBELs for Discharge Point 002

Parameter	Units	AMEL	AWEL	MDEL	Instan. Min.	Instan. Max.	Note
BOD ₅ 20°C	mg/L	20	30	45	--	--	--
BOD ₅ 20°C	lbs/day	1,670	2,500	3,750	--	--	a
BOD ₅ 20°C	% removal	≥85	--	--	--	--	--
TSS	mg/L	15	40	45	--	--	b
TSS	lbs/day	1,250	3,340	3,750	--	--	a
TSS	% removal	≥85	--	--	--	--	b
Oil & Grease	mg/L	25	40	--	--	75	--
Oil & Grease	lbs/day	2,090	3,340	--	--	6,260	--

Parameter	Units	AMEL	AWEL	MDEL	Instan. Min.	Instan. Max.	Note
Settleable Solids	mL/L	1.0	1.5	--	--	3.0	--
Turbidity	NTU	75	100	--	--	225	--
pH	pH unit	--	--	--	6.0	9.0	--

Footnotes for Table F-6:

- The mass emission rates are calculated using 10 MGD: $\text{lbs/day} = 8.34 \times C_e$ (effluent concentration, mg/L) $\times Q$ (flow rate, MGD).
- For discharges of reverse osmosis concentrate and tertiary-treated wastewater combined with reverse osmosis concentrate, the effluent must meet an average monthly effluent limitation of 60 mg/L in lieu of the concentration-based effluent limitations and percent removal requirements specified for TSS. The mass-based effluent limitations for TSS continue to apply regardless of whether reverse osmosis concentrate is discharged. The 85% removal limit for TSS only applies to tertiary-treated wastewater discharges.

End of footnotes for Table F-6

4.3. Water Quality-Based Effluent Limitations (WQBELs)

4.3.1. Scope and Authority

CWA Section 301(b) and 40 CFR section 122.44(d) require that permits include limitations more stringent than applicable federal technology-based requirements where necessary to achieve applicable water quality standards. This Order contains more stringent requirements than technology-based requirements, including secondary-treatment requirements, which are necessary to meet applicable water quality standards. The rationale for these requirements is discussed beginning in section 4.3.2. of this Fact Sheet.

40 CFR section 122.44(d)(1)(i) requires that permits include effluent limitations for all pollutants that are or may be discharged at levels that have the reasonable potential to cause or contribute to an exceedance of a water quality standard, including numeric and narrative objectives within a standard. Where reasonable potential has been established for a pollutant, but there is no numeric criterion or objective for the pollutant, water quality-based effluent limitations (WQBELs) must be established using: (1) USEPA criteria guidance under CWA section 304(a), supplemented where necessary by other relevant information; (2) an indicator parameter for the pollutant of concern; or (3) a calculated numeric water quality criterion, such as a proposed state criterion or policy interpreting the state's narrative criterion, supplemented with other relevant information, as provided in 40 CFR section 122.44(d)(1)(vi). WQBELs must also be

consistent with the assumptions and requirements of applicable TMDL WLAs approved by USEPA (33 USC § 1313(d); 40 CFR §§ 122.44(d)(vii)(B) and 130.7.).

The process for determining reasonable potential and calculating WQBELs when necessary is intended to protect the designated uses of the receiving water as specified in the Basin Plan and Ocean Plan and achieve applicable WQOs and criteria that are contained in other state plans and policies, or any applicable water quality criteria contained in the Ocean Plan.

4.3.2. Applicable Beneficial Uses and Water Quality Criteria and Objectives

The Basin Plan and Ocean Plan establish beneficial uses for surface water bodies in the Los Angeles region and ocean waters of the State. The beneficial uses of the receiving waters affected by the discharge have been described previously in this Fact Sheet. The Basin Plan contains water quality objectives for bacteria for water bodies designated for water contact recreation, and the Ocean Plan contains water quality objectives for bacterial, physical, chemical, and biological characteristics, and radioactivity. The following includes a description of the water quality objectives that have been translated into effluent limitations in this Order:

a. Indicator Bacteria

The indicator bacteria water quality objectives specified in the Ocean Plan are as follows:

Within a zone bounded by the shoreline and a distance of 1,000 feet from the shoreline or the 30-foot depth contour, whichever is further from the shoreline, and in areas outside this zone used for water contact sports, as determined by the Regional Water Board (i.e., waters designated as REC-1), but including all kelp beds, the following water quality objectives shall be maintained throughout the water column.

- i. Fecal coliform: A 30-day geometric mean (GM) of fecal coliform density not to exceed 200 per 100 milliliters (mL), calculated based on the five most recent samples from each site, and a single sample maximum (SSM) not to exceed 400 per 100 mL.
- ii. *Enterococci*: A six-week rolling GM of *Enterococci* not to exceed 30 colony forming units (cfu) or most probable number (MPN) per 100 mL, calculated weekly, and a statistical threshold value (STV) of 110 cfu/100 mL not to be exceeded by more than 10 percent of the samples collected in a calendar month, calculated in a static manner. USEPA recommends using USEPA Method 1600 or other equivalent method to measure culturable *Enterococci*.

In addition, at all areas where shellfish may be harvested for human consumption, the median total coliform density shall not exceed 70 per 100 mL, and not more than 10 percent of the samples shall exceed 230 per 100 mL.

The water quality objectives in the Ocean Plan for *Enterococcus*, fecal coliform, and total coliform are included in this Order as effluent limitations for Discharge Point 002.

b. Temperature

The Thermal Plan contains temperature objectives for estuaries, coastal lagoons, and coastal waters. The requirements of this Order implement the Thermal Plan. The following water quality objectives apply to Discharge Point 002 and were considered in establishing the effluent limit:

New elevated temperature waste discharges to the ocean shall comply with the following:

1. Elevated temperature wastes shall be discharged to the open ocean away from the shoreline to achieve dispersion through the vertical water column.
2. Elevated temperature wastes shall be discharged a sufficient distance from areas of special biological significance to assure the maintenance of natural temperature in these areas.
3. The discharge of elevated temperature wastes shall not result in increases in the natural water temperature exceeding 4°F at (a) the shoreline, (b) the surface of any ocean substrate, or (c) the ocean surface beyond 1,000 feet from the discharge system. The surface temperature limitation shall be maintained at least 50 percent of the duration of any complete tidal cycle.
4. Additional limitations shall be imposed when necessary to assure protection of beneficial uses.

Temperature data was collected near the ocean surface and ocean floor at the site of the ocean outfall from October 2021 to September 2022 as part of the Dilution Study discussed in section 1.6 of this Fact Sheet. The difference in temperature between the Ventura WRF effluent and ocean temperatures ranged from 11.7°F to 27.96°F depending on location and time of year. Because the diffuser is designed to create high dilution of the effluent with the ocean water, the ocean discharge isn't expected to increase ocean temperatures by more than the objective of 4°F. Since this is a new discharge and there is limited data, the effluent limitation for temperature in this Order is 100°F for Discharge Point 002 to align with the current limitation in

other ocean discharge permits. The temperature effluent limitation may be reevaluated once sufficient receiving water temperature data is collected under the MRP in Attachment E.

4.3.3. Determining the Need for WQBELs

The ocean outfall at Discharge Point 002 is a new outfall. In addition to tertiary-treated water, the Discharger plans to discharge reverse osmosis concentrate through Discharge Point 002 once the AWPf is constructed and operational. Since the reverse osmosis concentrate is expected to have higher concentrations of pollutants compared to tertiary-treated wastewater, the RPA focuses on estimated water quality of the reverse osmosis concentrate. The reverse osmosis concentrate that will discharge through Discharge Point 002 has not yet been produced and no historical data is available. However, the Discharger conducted a demonstration study that estimated water quality data for reverse osmosis concentrate.

The need for effluent limitations based on water quality objectives in Table 3 of the Ocean Plan was evaluated in accordance with the Reasonable Potential Analysis (RPA) procedures contained in Appendix VI of the Ocean Plan. This statistical RPA method (RPcalc version 2.2) accounts for the averaging period of the water quality objective, accounts for and captures the long-term variability of the pollutant in the effluent, accounts for limitations associated with sparse data sets, accounts for uncertainty associated with censored data sets, and assumes a lognormal distribution of the facility-specific effluent data. RPcalc calculates the upper confidence bound (UCB) of an effluent population percentile after complete mixing. In the evaluation employed in this Order, the UCB is calculated as the one-sided, upper 95 percent confidence bound for the 95th percentile of the effluent distribution after complete mixing. The calculated UCB95/95 is then compared to the appropriate objective to determine the potential for an exceedance of that objective and the need for an effluent limitation. For constituents that have an insufficient amount of monitoring data or a substantial number of non-detected data with a reporting limit higher than the respective water quality objective, the RPA result is likely to be inconclusive. The Ocean Plan requires that the existing effluent limitations for these constituents be retained in the new Order, otherwise the permit shall include a reopener clause to allow for subsequent modification of the permit to include an effluent limitation if monitoring establishes that the discharge causes, has the reasonable potential to cause, or contributes to an excursion above a WQO.

The Los Angeles Water Board staff used RPcalc v2.2 to calculate reasonable potential using the procedure described above. The

analysis for Discharge Point 002 included effluent data provided by the Discharger in Table 7.2 of *Ventura Water Pure Direct Potable Water Reuse Demonstration Project*, Carollo, January 2018, with samples collected from July 2015 through March 2016 and used the minimum dilution ratio of 103:1. Constituents that were not detected in the tertiary-treated wastewater were assumed to also not be detected in the reverse osmosis concentrate. Estimated concentrations were provided for constituents that were not reported in Table 7.2 of the study but were detected in the Ventura WRF's most recent historical effluent data. The estimated concentrations were derived by applying a multiplication factor of 5, representing the expected efficiency of the reverse osmosis treatment process. The Discharger also provided estimated effluent data for the MBR/UV treatment systems that will be added to the Facility but after comparing data with current tertiary-treated wastewater data, the MBR/UV water quality was determined to be similar or better than the effluent from the current treatment system. Therefore, to conduct the most conservative analysis, the RPA was based on estimated data for the reverse osmosis concentrate. Considering the estimated reverse osmosis concentrate data, historical effluent data, and the dilution ratio of 103:1, staff determined that the reverse osmosis concentrate does not have reasonable potential to cause or contribute to an excursion of water quality objectives for the pollutants evaluated, except for chronic toxicity, temperature, and bacteria indicators (see section 4.3.5 below for RP discussion).

In general, for those constituents that have no reasonable potential to cause, or contribute to excursions of the water quality objectives, no numeric limits are prescribed, however, the Permittee is required to monitor for these constituents to gather data for use in future RPAs. The permit also includes a reopener to incorporate new effluent limits based on any updated reasonable potential analysis conducted during the permit term. The Ocean Plan also includes narrative receiving water objectives. Based on staff's best professional judgement, the effluent has reasonable potential to cause or contribute to an exceedance of the water quality objectives for indicator bacteria and temperature (see section 4.3.3.a. for this Fact Sheet). The effluent does not have reasonable potential to cause or contribute to any other narrative water quality objectives in the Ocean Plan. The effluent limitations, performance goals, and monitoring requirements included in this Order are sufficient to ensure protection of the beneficial uses and to ensure the receiving water does not exceed the narrative water quality objectives in the Ocean Plan.

a. Reasonable Potential for Other Pollutants

The USEPA NPDES Permit Writer's Manual also specifies that reasonable potential analyses may be conducted through a qualitative assessment process by considering similar facility operational or discharge characteristics, such as type of industry, POTW treatment system, compliance history, species sensitivity data, in-stream data, adopted water quality criteria, designated uses, dilution information, or critical receiving water flows, such as establishing WQBELS for pathogens in POTW permits that discharge to contact recreation waters. When effluent data is unavailable or insufficient, Appendix VI of the Ocean Plan Step 13 also lists the type of information that can be used to determine whether a water quality-based effluent limit is required to protect beneficial uses. Step 13 of the Ocean Plan states, "Information that may be used includes: the facility type, the discharge type, solids loading analysis, lack of dilution, history of compliance problems, potential toxic impact of discharge, fish tissue residue data, water quality and beneficial uses of the receiving water, CWA 303(d) listing for the pollutant, the presence of endangered or threatened species or critical habitat, and other information." The reasonable potential analysis for the following pollutants was conducted using this qualitative approach for Discharge Point 002:

i. **Temperature** - Temperature can adversely affect beneficial uses. The USEPA document, Quality Criteria for Water 1986 [EPA 440/5-86-001, May 1, 1986], also referred to as the Gold Book, discusses temperature and its effects on beneficial uses, such as recreation and aquatic life.

- The Federal Water Pollution Control Administration in 1967 called temperature "a catalyst, a depressant, an activator, a restrictor, a stimulator, a controller, a killer, and one of the most important water quality characteristics to life in water." The suitability of water for total body immersion is greatly affected by temperature. Depending on the amount of activity by the swimmer, comfortable temperatures range from 20°C to 30°C (68°F to 86°F).
- Temperature also affects the self-purification phenomenon in water bodies and therefore the aesthetic and sanitary qualities that exist. Increased temperatures accelerate the biodegradation of organic material both in the overlying water and in bottom deposits which makes increased demands on the dissolved oxygen resources of a given system. The typical situation is exacerbated by the fact that oxygen becomes less soluble as water temperature increases. Thus, greater demands are exerted on an increasingly scarce resource which may lead to total

oxygen depletion and obnoxious septic conditions. Increased temperature may increase the odor of water because of the increased volatility of odor-causing compounds. Odor problems associated with plankton may also be aggravated.

- Temperature changes in water bodies can alter the existing aquatic community. Coutant (1972) has reviewed the effects of temperature on aquatic life reproduction and development. Reproductive elements are noted as perhaps the most thermally restricted of all life phases assuming other factors are at or near optimum levels. Natural short-term temperature fluctuations appear to cause reduced reproduction of fish and invertebrates.

Pumps and other machinery at the POTW can emit heat from the daily operation and environmental conditions can transfer that heat to the effluent as it flows through the various treatment processes, elevating the temperature of the water during treatment. Since effluent temperature can impact the environment and the Facility discharges elevated temperature waste, the Facility has reasonable potential to exceed the water quality objective for temperature.

- ii. **Indicator Bacteria** - Total and fecal coliform bacteria and *Enterococcus* are used to indicate the likelihood of pathogenic bacteria in surface waters. Given the nature of the Facility, a wastewater treatment plant, pathogens are likely to be present in the effluent if the disinfection process is not operating adequately. Therefore, effluent limitations are included in this Order for indicator bacteria to ensure the water quality objectives for bacteria are met.

4.3.4. WQBEL Calculations

From the Table 3 water quality objectives in the Ocean Plan, effluent limitations are calculated according to the following equation for all pollutants, except for acute toxicity and radioactivity (if applicable):

$$C_e = C_o + D_m(C_o - C_s)$$

Where

C_e is the effluent limitation ($\mu\text{g/L}$);

C_o is the WQO to be met at the completion of initial dilution ($\mu\text{g/L}$);

C_s is the background seawater concentration ($\mu\text{g/L}$) (see Table F-9 below); and

D_m is the minimum probable initial dilution expressed as parts seawater per part wastewater.

The D_m is based on observed waste flow characteristics, receiving water density structure, and the assumption that there are no currents of sufficient strength to influence the initial dilution process flow across the discharge structure. In this Order, the dilution ratio of 103:1 has been applied to Discharge Point 002.

Initial dilution is the process that results in the rapid and irreversible turbulent mixing of wastewater with ocean water around the point of discharge. For a submerged buoyant discharge, characteristic of most municipal and industrial wastes that are released from the submarine outfalls, the momentum of the discharge and its initial buoyancy act together to produce turbulent mixing. Initial dilution in this case is completed when the diluting wastewater ceases to rise in the water column and first begins to spread horizontally. As site-specific water quality data is not available for pollutants without TMDLs, in accordance with Ocean Plan Table 3 implementing procedures, C_s equals zero for all pollutants, except the following:

Table F-7. Background Seawater Concentrations (C_s)

Waste Constituent	C_s (µg/L)
Arsenic	3
Copper	2
Mercury	0.0005
Silver	0.16
Zinc	8

Since no effluent has been discharged to the ocean prior to the adoption of this permit, there is no historical effluent data to determine reasonable potential. Instead, data generated during a demonstration project and estimated data were used to determine reasonable potential of the reverse osmosis concentrate that is considered to have the highest reasonable potential to cause or contribute to an excursion of Ocean Plan water quality objectives. The RPCalc analysis did not indicate that any parameters have reasonable potential therefore, the permit does not include limits for Table 3 pollutants in the Ocean Plan, except for chronic toxicity. Monitoring is required so that data will be available to conduct a reasonable potential analysis during the next permit renewal.

- a. **Impracticability Analysis.** Federal NPDES regulations contained in 40 CFR § 122.45 (continuous discharges) state that for POTWs, all permit limitations, standards, and prohibitions, including those to achieve water quality standards, shall unless impracticable be stated as average weekly and average monthly discharge limitations.

As stated by USEPA in its long-standing guidance for developing WQBELs, average limitations alone are not practical for limiting acute, chronic, and human health toxic effects. (See, Section 5.2.3 of USEPA's *Technical Support Document for Water Quality-based Toxics Control* (EPA/505/2-90-001, March 1991)). It is impracticable to include only average weekly and average monthly effluent limitations in the Order because a single daily discharge of certain pollutants, in excess amounts, can cause violations of water quality objectives. The effects of pollutants on aquatic organisms are often rapid. For many pollutants, an average weekly or average monthly effluent limitation alone is not sufficiently protective of beneficial uses.

For example, a POTW sampling for a toxicant to evaluate compliance with a 7-day average limitation could fully comply with this average limit, but still be discharging toxic effluent on one, two, three, or up to four of these seven days and not be meeting 1-hour average acute criteria or 4-day average chronic criteria. Similarly, a 7-day average alone would not protect one, two, three, or four days of discharging pollutants in excess of the acute and chronic criteria.

For these reasons, USEPA recommends daily maximum and 30-day average limits for regulating toxics in all NPDES discharges. For the purposes of protecting the acute effects of discharges containing toxicants, daily maximum effluent limitations have been established in this NPDES permit for certain priority pollutants. Thirty-day (or monthly) average effluent limitations have been established for priority pollutants that cause chronic or long-term impacts because they are carcinogenic, bioaccumulative, and/or endocrine disruptors. As a result, maximum daily effluent limitations, as referenced in 40 CFR § 122.45(d), are included in the Order for certain constituents.

- b. Mass-based limits.** 40 CFR § 122.45(f)(1) requires that, except under certain conditions, or for certain pollutants, all permit limits, standards, or prohibitions be expressed in terms of mass units. 40 CFR § 122.45(f)(2) allows the permit writer, at their discretion, to express limits in additional units (e.g., concentration units). The regulations mandate that, where limits are expressed in more than one unit, the permittee must comply with both.

Generally, mass-based limits ensure that proper treatment, and not dilution, is employed to comply with the final effluent concentration limits. Concentration-based effluent limits, on the other hand, discourage reduction in treatment efficiency during low-flow periods and require proper operation of the treatment units at all times. In the absence of concentration-based effluent limits, a permittee would be able to increase its effluent concentration (i.e., reduce its level of

treatment) during low-flow periods and still meet its mass-based limits. To account for this, this permit includes mass and concentration-based effluent limits for some constituents. The mass-based limits are based on the design capacity.

4.3.5. Whole Effluent Toxicity (WET)

Whole effluent toxicity (WET) testing protects the receiving water quality from the aggregate toxic effect of a mixture of pollutants in the effluent or pollutants that are not typically monitored. An acute toxicity test is conducted over a short time period and measures mortality. A chronic toxicity test is conducted over a longer time period and may measure mortality, reproduction, and growth. Chronic toxicity is a more stringent requirement than acute toxicity. A constituent present at low concentrations may exhibit a chronic effect; however, a higher concentration of the same pollutant may be required to produce an acute effect. The rationale for whole effluent toxicity effluent limitations is described below:

The Ocean Plan addresses the application of chronic and acute toxicity requirements based on minimum probable dilutions (Dm) for ocean discharges. Following the Ocean Plan, dischargers are required to conduct chronic toxicity monitoring for ocean discharges with Dm factors ranging from 99 to 349 and the Los Angeles Water Board may require acute toxicity monitoring in addition to chronic toxicity monitoring. Dischargers with Dm factors below 99 are required to conduct only chronic toxicity testing. The Dm for Discharge Point 002 is 103, so chronic toxicity monitoring is required for this discharge consistent with the Ocean Plan. In addition, the discharge exhibits reasonable potential to cause or contribute to an exceedance of the water quality objectives for chronic toxicity because of the nature of discharges (industrial, commercial, and residential) into the POTW sewershed. Based on the types of waste accepted by the Facility, toxic constituents are expected to be present in the Facility influent that may have synergistic or additive toxic effects. A chronic toxicity final effluent limitation is therefore included in this Order for Discharge Point 002. No acute toxicity final effluent limitations have been assigned to the discharge consistent with 40 CFR section 122.44(d)(1)(v), and because the chronic toxicity final effluent limitation is protective of both chronic and acute toxicity.

The Ocean Plan establishes a daily maximum chronic toxicity objective of 1.0 TU_c (TU_c=100/(No Observed Effect Concentration (NOEC))), using a five-concentration hypothesis test, and a daily maximum acute toxicity objective of 0.3 TU_a (TU_a = 100/LC50), using a point estimate model. This Order includes final effluent limitations in chronic toxicity units accounting

for dilution based on the following calculation: $C_e = C_o + D_m (C_o - C_s) = 1.0 \text{ TUc} + 103(1.0 \text{ TUc} - 0) = 104 \text{ TUc}$.

Compliance with the chronic toxicity requirements contained in this Order shall be determined in accordance with section 7.10 of this Order.

Nevertheless, this Order contains a reopener to allow the Los Angeles Water Board to modify the permit in the future, if necessary, to make it consistent with any new policy, plan, law, or regulation.

4.4. Final Effluent Limitation Considerations

4.4.1. Anti-Backsliding Requirements

Section 402(o) and 303(d)(4) of the CWA and federal regulations at 40 CFR section 122.44(l) prohibit backsliding in NPDES permits. These antibacksliding provisions require effluent limitations in a reissued permit to be as stringent as those in the previous permit, with some exceptions where limitations may be relaxed. Since the ocean outfall is new, anti-backsliding requirements are not applicable to this Order.

4.4.2. Antidegradation Policies

40 CFR § 131.12 requires that state water quality standards include an antidegradation policy consistent with the federal antidegradation policy. On October 28, 1968, the State Water Board established California's antidegradation policy when it adopted Resolution No. 68-16, *Statement of Policy with Respect to Maintaining the Quality of the Waters of the State*. Resolution No. 68-16 requires that existing water quality be maintained unless degradation is justified based on specific findings. Similarly, CWA section 303(d)(4)(B) and 40 CFR section 131.12 require that all permitting actions be consistent with the federal antidegradation policy. Together, the state and federal antidegradation policies are designed to ensure that a water body will not be degraded resulting from the permitted discharge.

The Los Angeles Water Board has considered antidegradation pursuant to 40 CFR 131.12 and State Board Resolution No. 68-16 and finds that the permitted discharge is consistent with those provisions and with the intent and purpose of the State and federal antidegradation policies. Since Discharge Point 002 is a new outfall, an increased volume and concentration of waste will be discharged to the ocean once this Order goes into effect. The discharge authorized under this Order is consistent with the state and federal antidegradation policies because through this Order the discharge will be required to meet waste discharge requirements which will result in the best practicable treatment or control to ensure that 1) any increase in pollutants is not expected to lower water quality in the Pacific Ocean 2) pollution and nuisance will not occur as a result of this discharge and 3) the highest water quality consistent with the maximum benefit of the people will be maintained as explained below. Based on

available data and information used during the reasonable potential analysis, the permitted discharge is not expected to exceed water quality objectives specified in the Ocean Plan. Any lowering of water quality will be confined to the zone of initial dilution. The permit also requires the Discharger to maintain best management practices to control pollution and nuisance from the Facility.

The Order authorizes the discharge of tertiary-treated wastewater and reverse osmosis concentrate to the Pacific Ocean. To the extent this Order authorizes limited degradation in the zone of initial dilution, the State Water Board has determined that the minimal degradation permitted by the Ocean Plan in the zone of initial dilution is consistent with the antidegradation policy. Additionally, the treatment required by this Order is the best practicable treatment or control of the discharge necessary to ensure that a condition of pollution or nuisance will not occur and the highest water quality consistent with maximum benefit to the people of the State will be maintained. The discharge of tertiary-treated wastewater is expected to attain a level of water quality that exceeds secondary treatment standards, which includes the applicable TBELs for POTWs. The reasonable potential analysis included assessing both the historical tertiary-treated wastewater data and the projected reverse osmosis concentrate data. The available information that was evaluated during the development of this Order indicates that the discharge of reverse osmosis concentrate does not have reasonable potential to cause or contribute to a violation of water quality standards for the applicable water quality objectives—except with respect to chronic toxicity, temperature, and bacteria indicators. Chronic toxicity effluent limitations are included in this Order to ensure the discharge meets the toxicity water quality objectives. It was also determined qualitatively that the discharge has reasonable potential to cause or contribute to a violation of the temperature and bacteria water quality objectives. Effluent limitations for temperature and bacteria are included in this Order to ensure the discharge meets water quality objectives. The bacteria effluent limitations are set equal to the water quality objectives at the end-of-pipe so the objectives are met upon discharge, including within the zone of initial dilution. Historical data shows that the tertiary treated wastewater consistently meets the temperature and bacteria effluent limitations included in this Order. As stated previously in this Fact Sheet, the AWPf is expected to be completed in 2030. Therefore, the discharge of reverse osmosis concentrate, which is expected to have the highest concentration of pollutants, is unlikely to be discharged during this permit term. Receiving water data will be collected per the MRP and staff will be able to assess receiving water quality and make adjustments to permit requirements as necessary. This Order also includes both narrative and numeric final effluent limitations and

performance goals (PGs) to maintain the chemical, physical, and biological characteristics, and to protect the beneficial uses of the receiving water. Together, these requirements ensure that all water quality objectives will be met outside the zone of initial dilution, thereby maintaining the beneficial uses and ensuring that a condition of pollution or nuisance does not occur.

This Order also includes a reopener provision that permits the Los Angeles Water Board to reopen the Order if the effluent exhibits reasonable potential to exceed the objectives during the Order cycle. The Los Angeles Water Board may modify the terms of this Order to prevent degradation of high-quality waters based on any change in the concentration of these constituents in the effluent or receiving water that indicates that degradation of receiving water quality may occur.

Finally, although additional pollutants will be discharged to the ocean under this Order, the discharge is to the maximum benefit of the people of the State because it will help improve water quality in the Santa Clara River Estuary and help maximize water resiliency for Ventura through increased reuse of tertiary-treated wastewater. These benefits are described in more detail in the Discharger's environmental impact report (EIR) for the Ventura Water Supply Projects, which includes the ocean outfall. Benefits include, but are not limited to 1) development of a reliable and drought-resistant water supply which would supplement the City's water supply at the lowest fiscal and environmental cost, and 2) an improvement in groundwater quality which will improve the City's water supply system. The City of Ventura also projects that new water sources will be needed to meet future dry-year demands to prevent significant water rationing and restrictions on economic growth.

4.4.3. Stringency of Requirements for Individual Pollutants

This Order contains both technology-based and water quality-based effluent limitations for individual pollutants

The technology-based effluent limitations consist of restrictions on BOD, TSS, pH, oil and grease, settleable solids, and turbidity. Restrictions on these technology-based effluent limits are discussed in section 4.2.2 of this Fact Sheet. This Order's technology-based pollutant restrictions implement the minimum applicable federal technology-based requirements for the tertiary-treated wastewater. The effluent limitations for TSS are based on tertiary treatment when the effluent consists of solely tertiary-treated wastewater, since the tertiary-treated discharge is the same discharge that otherwise would have been discharged to the Estuary. These effluent limitations ensure the treatment efficiency of the Ventura WRF does not decline. When reverse osmosis concentrate is discharged via Discharge Point 002, the discharge is subject to an alternative effluent limitation

established in the Ocean Plan, since reverse osmosis concentrate may not be able to meet the same TSS concentrations feasible with tertiary-treated wastewater alone.

A WQBEL for chronic toxicity, indicator bacteria, and temperature have been prescribed to implement water quality objectives that protect beneficial uses. Both the beneficial uses and water quality objectives have been approved pursuant to federal law and are the applicable federal water quality standards. The scientific procedures for calculating individual water quality-based effluent limitations for priority pollutants are based on the Ocean Plan. All beneficial uses and water quality objectives contained in the Basin Plan were approved under State law and approved by USEPA. Collectively, this Order's restrictions on individual pollutants for Discharge Point 002 are no more stringent than required to implement the requirements of the CWA and applicable water quality standards.

Table F-8. Final Effluent Limitations for Discharge Point 002

Parameter	Units	AMEL	AWEL	MDEL	Instan. Min.	Instan. Max.	Annual Avg.	Performance Goal	Basis	Notes
BOD ₅ 20°C	mg/L	20	30	45	--	--	--	--	Tertiary treatment	a
BOD ₅ 20°C	lbs/day	1,670	2,500	3,750	--	--	--	--	Tertiary treatment	a, b
BOD ₅ 20°C	% removal	≥85	--	--	--	--	--	--	Tertiary treatment	--
TSS	mg/L	15	40	45	--	--	--	--	Tertiary treatment	a, d
TSS	lbs/ day	1,250	3,340	3,750	--	--	--	--	Tertiary treatment	a, b
TSS	% removal	≥85	--	--	--	--	--	--	Tertiary treatment	d
pH	pH Unit	--	--	--	6.0	9.0	--	--	Ocean Plan	c
Temperature	°F	--	--	--	--	100	--	--	Thermal Plan	c
Oil and Grease	mg/L	25	40	--	--	75	--	--	Ocean Plan	a, c
Oil and Grease	lbs/ day	2,090	3,340	--	--	6,260	--	--	Ocean Plan	a, b, c
Settleable Solids	mL/L	1.0	1.5	--	--	3.0	--	--	Ocean Plan	a, c
Turbidity	NTU	75	100	--	--	225	--	--	Ocean Plan	a, c
Enterococcus	MPN or CFU/100 mL	--	30	110	--	--	--	--	Ocean Plan	e
Fecal coliform	MPN or CFU/100 mL	200	--	--	--	400	--	--	Ocean Plan	c, e

Parameter	Units	AMEL	AWEL	MDEL	Instan. Min.	Instan. Max.	Annual Avg.	Performance Goal	Basis	Notes
Total Coliform	MPN or CFU/100 mL	70	--	230	--	--	--	--	Ocean Plan	--
Chronic toxicity <i>Atherinops affinis</i>	TUc	--	--	104	--	--	--	--	RP, Ocean Plan	a

Footnotes for Table F-8

- The maximum daily, average weekly, and average monthly effluent limitations shall apply to flow weighted 24-hour composite samples. These limitations may apply to grab samples if the collection of composite samples for those constituents is not appropriate because of the instability of the constituents.
- The mass emission rate is calculated using 10 MGD , the annual average flow limitation: $\text{lbs/day} = 8.34 \times \text{Ce}$ (effluent concentration in mg/L) $\times Q$ (flow rate in MGD).
- The instantaneous maximum effluent limitations shall apply to grab samples.
- For discharges of reverse osmosis concentrate and tertiary-treated effluent combined with reverse osmosis concentrate, the effluent must meet an average monthly effluent limitation of 60 mg/L in lieu of the concentration-based effluent limitations and percent removal requirements specified for TSS. The mass-based effluent limitations continue to apply for TSS regardless of whether reverse osmosis concentrate is discharged. The 85% removal limit for TSS only applies to tertiary-treated wastewater discharges. If only tertiary-treated wastewater is discharged, all TSS limits shown in this table apply.
- Consistent with section II.B. of the Ocean Plan, the average weekly effluent limitation shall be determined based on a rolling 6-week geometric mean for *Enterococcus*, calculated weekly. The maximum daily effluent limitation for *Enterococcus* shall be determined as a statistical threshold value (STV) not to be exceeded in more than 10% of the samples in a calendar month. The AMEL for fecal coliform is a 30-day geometric mean, calculated based on the five most recent fecal coliform samples.

End of Footnotes for Table F-8

4.5. Interim Effluent Limitations - Not Applicable

4.6. Land Discharge Specifications - Not Applicable

4.7. Recycling Specifications

4.7.1. Recycled Water Feasibility Investigation

In accordance with statewide statutes and policies concerning water reclamation, (e.g., CWC sections 13000 and 13550-13557, State Water Board Resolution Number 77-1 (*Policy with Respect to Water Reclamation in California*), and the Recycled Water Policy), the Los Angeles Water Board strongly encourages, wherever practicable, water recycling, water conservation, and use of stormwater and dry-weather urban runoff. This Order requires the Discharger to investigate the feasibility of recycling, conservation, and/or alternative disposal methods of wastewater (such as groundwater injection), and /or the use of stormwater and dry weather runoff.

4.7.2. Volumetric Reporting

The Recycled Water Policy requires wastewater and recycled water dischargers to annually report monthly volumes of influent, wastewater produced, and effluent, including treatment level and discharge type. As applicable, dischargers are additionally required to annually report recycled water use by volume and the category of reuse. On July 24, 2019, the State Water Board issued Order No. WQ 2019-0037-EXEC, amending the MRPs for all permits of NPDES, WDRs, WRRs, Master Recycling, and General WDRs for wastewater and recycled water dischargers. Consistent with the intent of Order No. WQ 2019-0037-EXEC, the City has been submitting annual reports related to volumetric reporting to Geotracker since 2020. This Order implements the Recycled Water Policy and the intent of Order No. WQ 2019-0037-EXEC as amended by incorporating the volumetric monitoring and reporting requirements in accordance with section 3 of the [Recycled Water Policy \(https://www.waterboards.ca.gov/board_decisions/adopted_orders/resolutions/2018/121118_7_final_amendment_oal.pdf\)](https://www.waterboards.ca.gov/board_decisions/adopted_orders/resolutions/2018/121118_7_final_amendment_oal.pdf) in Section 9.5 and 10.4.13. of the MRP in this Order. As such, this is not a new requirement. Order No. WQ 2019-0037-EXEC will have no further force and effect once this Order becomes effective.

5. PERFORMANCE GOALS

Section III.F.1, of the Ocean Plan allows the Los Angeles Water Board to establish more restrictive water quality objectives and effluent limitations than those set forth in the Ocean Plan as necessary for the protection of the beneficial uses of ocean waters.

Pursuant to this provision and to implement the recommendation of the Water Quality Advisory Task Force (*Working Together for an Affordable Clean Water Environment*,

A final report presented to the California Water Quality Control Board, Los Angeles Region by Water Quality Advisory Task Force, September 30, 1993) that was adopted by the Los Angeles Water Board on November 1, 1993, performance goals that are more stringent than those based on Ocean Plan objectives are prescribed in this Order. This approach is consistent with the antidegradation policy in that it requires the Discharger to maintain its treatment level and effluent quality, recognizing normal variations in treatment efficiency and sampling and analytical techniques. However, this approach does not address substantial changes in treatment plant operations that could significantly affect the quality of the treated effluent.

While performance goals were previously placed in many POTW permits in the region, they have been discontinued for inland surface water discharges. For inland surface waters, the California Toxics Rule (40 CFR § 131.38) has resulted in effluent limitations as stringent as many performance goals. However, the Ocean Plan allows for significant dilution, and the continued use of performance goals serves to maintain existing treatment levels and effluent quality and supports State and federal antidegradation policies.

The performance goals in this Order are based upon the actual performance of the Ventura WRF and are specified only as an indication of the treatment efficiency of the Facility. Performance goals are intended to minimize pollutant loading (primarily for toxics), while maintaining the incentive for future voluntary improvement of water quality whenever feasible, without the imposition of more stringent limits based on improved performance. They are not considered enforceable limitations or standards for the regulation of the discharge from the treatment facility. The Order requires the Discharger to maintain, if not improve, its treatment efficiency. Any two consecutive exceedances of the performance goals shall trigger an investigation into the cause of the exceedance. If the exceedance persists in three successive monitoring periods, the Order requires the Discharger to submit a written report to the Los Angeles Water Board on the nature of the exceedance, the results of the investigation as to the cause of the exceedance, and the corrective actions taken or proposed corrective measures with timetable for implementation, if necessary.

5.1. Determination of Performance Goals (Detectable Rate $\geq 20\%$)

For constituents that have been routinely detected in the effluent (at least 20 percent detectable data), performance goals are based on the one-sided, upper 95 percent confidence bound for the 95th percentile of the effluent performance data (UCB95/95) from April 2018 through July 2024 under the Estuary Discharge Permit (Order No. R4-2020-0024) using the RPA protocol contained in the Ocean Plan. Effluent data are assumed log normally distributed. Performance goals are calculated according to the equation $C_{PG} = C_o + Dm (C_o - C_s)$ and setting $C_o = UCB_{95/95}$.

- 5.1.1. If the maximum detected effluent concentration (MEC) is greater than the calculated performance goal, then the calculated performance goal is used as the performance goal;

- 5.1.2. If the MEC is less than the calculated performance goal, then the MEC is used as the performance goal, or;
- 5.1.3. If the performance goal determined in section 5.1.1 or 5.1.2 is greater than the WQO in the Ocean Plan after considering dilution, then the WQO is used as the performance goal; and
- 5.1.4. For constituents with effluent limitations, if the performance goal of a constituent determined in section 5.1.1, 5.1.2, and 5.1.3 is equal or above the most stringent effluent limitation, the performance goal is not prescribed for that constituent.

Table F-9 summarizes the performance goal determinations for Discharge Point 002, based on criteria section 5.1.1 to 5.1.4. specified above.

Table F-9. Performance Goals for Discharge Point 002 (Detectable Rate $\geq 20\%$)

Pollutant	Detected Rate	UCB _{95/95}	C _s	WQO (µg/L)	MEC (µg/L)	Calculated PG (µg/L)	MEC > Calculated PG	MEC or Calculated PG > WQO	PG > Effluent Limit	Final PG (µg/L)
Arsenic	78%	2.984	3	8	1.1	1.3	No	No	--	1.1
Total Chromium	59%	0.0129	0	2	1.9	1.3	Yes	No	--	1.3
Copper	79%	2.0004	2	3	2.1	2.0	Yes	No	--	2.0
Mercury	30%	0.0006	0	2	0.02	0.01	Yes	No	--	0.01
Nickel	100%	0.0341	0	5	5.06	3.5	Yes	Yes	--	3.5
Selenium	65%	0.0506	0	15	5.2	5.3	No	No	--	5.2
Zinc	100%	8.297	8	20	40.2	38.9	Yes	Yes	--	38.9
Cyanide	80%	0.0935	0	1	10	9.7	Yes	Yes	--	9.7
Chlorine Residual	27%	0.0007	0	2	130	0.07	Yes	Yes	--	0.07
Ammonia-N	100%	0.0273	0	600	3.934	2.8	Yes	No	--	2.8
Antimony	33%	0.0067	0	1200	0.6	0.70	No	No	--	0.6
Chromium III	82%	0.006	0	190,000	0.42	0.62	No	No	--	0.42
Chlorodibromomethane	100%	0.1259	0	33,000	8.9	13.1	No	No	--	8.9
Chloroform	100%	0.1367	0	130	10	14.2	No	No	--	10

CITY OF VENTURA
VENTURA WATER RECLAMATION FACILITY

ORDER NO. R4-2025-0272
NPDES NO. CA0064726

Pollutant	Detected Rate	UCB _{95/95}	C _s	WQO (µg/L)	MEC (µg/L)	Calculated PG (µg/L)	MEC > Calculated PG	MEC or Calculated PG > WQO	PG > Effluent Limit	Final PG (µg/L)
Bromodichloromethane	100%	0.1495	0	0.29	13	15.5	No	Yes	--	13
Halomethanes	77%	0.0594	0	130	3.9	6.2	No	No	--	3.9

5.2. Determination of Performance Goals (Detectable Rate < 20%)

For constituents where monitoring data have consistently shown nondetectable levels (less than 20 percent detectable data), performance goals are set at five times the Minimum Levels (MLs) listed in the Ocean Plan (or listed in the laboratory report for those pollutants without MLs listed in the Ocean Plan). If the MEC is less than the calculated value based on the ML, then the MEC is used as the performance goal. For constituents with effluent limitations, if the performance goal of a constituent is equal or above the most stringent effluent limitation, the performance goal is not prescribed for that constituent.

Table F-10 summarizes the performance goal determinations for Discharge Point 002, based on criteria section 5.2.

Table F-10. Performance Goals for Discharge Point 002 (Detectable Rate < 20%)

Pollutant	Non-Detected Rate	MEC (µg/L)	ML (µg/L)	5 x ML (µg/L)	Final PG (µg/L)	Notes
Cadmium	100%	--	0.2	1	1	--
Lead	81%	0.37	0.5	2.5	0.37	--
Silver	95%	0.82	0.2	1	0.82	--
Phenols (non-chlorinated)	100%	--	1	5	5	--
Phenols (chlorinated)	100%	--	1	5	5	--
Endosulfan	100%	--	0.01	0.05	0.05	--
HCH	100%	--	0.005	0.025	0.025	a
Endrin	100%	--	0.01	0.05	0.05	--
Acrolein	100%	--	2	10	10	--
Bis(2-chloroethoxy)methane	100%	--	5	25	25	--
Bis(2-chloroisopropyl)ether	100%	--	2	10	10	--
Chlorobenzene	100%	--	0.5	2.5	2.5	--
Di-n-butyl phthalate	100%	--	10	50	50	--
Dichlorobenzene	100%	--	0.5	2.5	2.5	--

Pollutant	Non-Detected Rate	MEC (µg/L)	ML (µg/L)	5 x ML (µg/L)	Final PG (µg/L)	Notes
Diethyl Phthalate	100%	--	2	10	10	--
Dimethyl Phthalate	100%	--	2	10	10	--
2-methyl-4,6-dinitrophenol	100%	--	5	25	25	--
2,4-dinitrophenol	100%	--	5	25	25	--
Ethyl Benzene	100%	--	0.5	2.5	2.5	--
Fluoranthene	100%	--	0.05	0.25	0.25	--
Hexachlorocyclopentadiene	100%	--	5	25	25	--
Nitrobenzene	100%	--	1	5	5	--
Thallium	100%	--	1	5	5	--
Toluene	100%	--	0.5	2.5	2.5	--
1,1,1-trichloroethane	100%	--	0.5	2.5	2.5	--
Acrylonitrile	100%	--	2	10	10	--
Aldrin	100%	--	0.005	0.025	0.025	--
Benzene	100%	--	0.5	2.5	2.5	--
Benzidine	100%	--	5	25	25	--
Beryllium	100%	--	0.5	2.5	2.5	--
Bis(2-chloroethyl)ether	100%	--	1	5	5	--
Bis(2-ethylhexyl)phthalate	100%	--	5	25	25	--
Carbon Tetrachloride	100%	--	0.5	2.5	2.5	--
Chlordane	100%	--	0.1	0.5	0.5	--
DDT	100%	--	0.05	0.25	0.25	a
1,4-dichlorobenzene	100%	--	0.5	2.5	2.5	--

Pollutant	Non-Detected Rate	MEC (µg/L)	ML (µg/L)	5 x ML (µg/L)	Final PG (µg/L)	Notes
3,3-dichlorobenzidine	100%	--	5	25	25	--
1,2-dichloroethane	100%	--	0.5	2.5	2.5	--
1,1-dichloroethylene	100%	--	0.5	2.5	2.5	--
Dichloromethane	100%	--	0.5	2.5	2.5	--
1,3-dichloropropene	100%	--	5	25	25	--
Dieldrin	100%	--	0.01	0.05	0.05	--
2,4-dinitrotoluene	100%	--	5	25	25	--
1,2-diphenylhydrazine	100%	--	1	5	5	--
Heptachlor	100%	--	0.01	0.05	0.05	--
Heptachlor Epoxide	100%	--	0.01	0.05	0.05	--
Hexachlorobenzene	100%	--	1	5	5	--
Hexachlorobutadiene	100%	--	1	5	5	--
Hexachloroethane	100%	--	1	5	5	--
Isophorone	100%	--	1	5	5	--
n-nitrosodimethylamine (NDMA)	100%	--	5	25	25	--
n-nitrosodi-n-propylamine	100%	--	5	25	25	--
n-nitrosodiphenylamine	100%	--	1	5	5	--
PAHs	100%	--	2	10	10	b
PCBs as aroclors	100%	--	0.5	2.5	2.5	--
TCDD Equivalents	100%	--	0.0001	0.0005	0.0005	b
1,1,2,2 tetrachloroethane	100%	--	0.5	2.5	2.5	--

Pollutant	Non-Detected Rate	MEC (µg/L)	ML (µg/L)	5 x ML (µg/L)	Final PG (µg/L)	Notes
Tetrachloroethylene	100%	--	0.5	2.5	2.5	--
Toxaphene	100%	--	0.5	2.5	2.5	--
Trichloroethylene	100%	--	0.5	2.5	2.5	--
1,1,2-trichloroethane	100%	--	0.5	2.5	2.5	--
2,4,6-trichlorophenol	100%	--	10	50	50	--
Vinyl Chloride	100%	--	0.5	2.5	2.5	--

Footnotes for Table F-10

- For pollutants that are defined as sums, the highest ML shown in the Ocean Plan for that category of pollutants is used for the ML in this table.
- ML comes from the lab report.

End of Footnotes for Table F-10

6. RATIONALE FOR RECEIVING WATER LIMITATIONS – NOT APPLICABLE

7. RATIONALE FOR PROVISIONS

7.1. Standard Provisions

Standard Provisions, which apply to all NPDES permits in accordance with 40 CFR § 122.41, and additional conditions applicable to specified categories of NPDES permits in accordance with 40 CFR § 122.42, are provided in Attachment D of the Order. Sections 122.41(a)(1) and (b) through (n) of 40 CFR establish conditions that apply to all State-issued NPDES permits. These conditions must be incorporated into the permits either expressly or by reference. If incorporated by reference, a specific citation to the regulations must be included in the Order. Section 123.25(a)(12) allows the state to omit or modify conditions to impose more stringent requirements. In accordance with 40 CFR § 123.25, this Order omits federal conditions that address enforcement authority specified in 40 CFR § 122.41(j)(5) and (k)(2) because the enforcement authority under the Water Code is more stringent. In lieu of these conditions, this Order incorporates by reference Water Code section 13387(e).

7.2. Special Provisions

7.2.1. Reopener Provisions

These provisions are based on 40 CFR § 122.62. The Los Angeles Water Board may reopen the Order to modify conditions and requirements.

Causes for modifications can include, but are not limited to, the promulgation of new regulations, modification in sludge use or disposal practices, or adoption of new regulations by the State Water Board or Los Angeles Water Board, including revisions to the Ocean Plan and Basin Plan.

7.2.2. Special Studies and Additional Monitoring Requirements

- a. **Antidegradation Analysis and Engineering Report for Proposed Plant Expansion.** This provision is based on the State Water Board Resolution No. 68-16, which requires the Los Angeles Water Board to regulate the discharge of waste to maintain high quality waters of the state. The Permittee must demonstrate that it has implemented adequate controls (e.g., adequate treatment capacity) to ensure that high quality waters will be maintained. If the Permittee increases plant capacity, this provision requires the Permittee to demonstrate that treatment systems are effective in preventing violations of effluent limitations. This provision requires the Permittee to report specific time schedules for the plant's projects. This provision requires the Permittee to submit a report including the information described in this section to the Los Angeles Water Board for approval.
- b. **Operations Plan for Proposed Expansion.** This provision is based on section 13385(j)(1)(D) of the CWC and allows for a time period not to exceed 90 days in which the Permittee may adjust and test the treatment system(s). This provision requires the Permittee to submit an Operations Plan describing the actions the Permittee will take during the period of adjusting and testing to prevent violations.
- c. **Treatment Plant Capacity.** The treatment plant capacity study required by this Order shall serve as an indicator for the Los Angeles Water Board regarding the Facility's increasing hydraulic capacity and growth in the service area.
- d. **Toxicity Reduction Evaluation (TRE) Requirements.** If the discharge consistently exceeds an effluent limitation for toxicity as specified in this Order, the Permittee shall conduct a TRE as detailed in section 5 of the MRP (Attachment E). The TRE will help the Permittee identify the possible source(s) of toxicity. The Permittee shall take all reasonable steps to reduce toxicity to the required level.

7.2.3. Best Management Practices and Pollution Prevention

- a. **Storm Water Pollution Prevention Plan (SWPPP).** The Ventura WRF is regulated under the State Water Board Water Quality Order No. 2014-0057-DWQ, amended by Order 2015-0122-DWQ and Order 2018-0028-DWQ, NPDES General Permit No. CAS000001, *General Permit for Storm Water Discharges Associated with Industrial Activities* (Industrial General Permit). Since a SWPPP is required under the

Industrial General Permit, no SWPPP is required under the NPDES permit (NPDES No. CA0064726).

- b. **Spill Clean-up Contingency Plan (SCCP).** Since spills or overflows are a common event at the POTW, this Order requires the Discharger to review and update, if necessary, its SCCP after each incident. The Discharger shall ensure that the up-to-date SCCP is readily available to the sewage system personnel at all times and that the sewage personnel are familiar with it.
- c. **Pollutant Minimization Program (PMP).** This provision is based on the requirements of section III.C.9 of the Ocean Plan.

7.2.4. Construction, Operation and Maintenance Specifications

This provision is based on the requirements of 40 CFR §122.41(e) and the previous Order. 40 CFR section 122.41(e) also requires the operation of back-up or auxiliary facilities or similar systems when the operation is necessary to achieve compliance with the conditions of the Order. For proper and effective operation of such facilities or systems, routine maintenance and the operational testing of emergency infrastructure/equipment is necessary. Major sewage spills can cause harm to residents of the Los Angeles region, such as the closure of beaches, and harm to wildlife and benthic life. The impact of any such incident to the receiving waters can be minimized or prevented if the operation of emergency infrastructure occurs unimpeded by operational challenges and in a timely fashion. Thus, this Order contains requirements for routine maintenance and operational testing of emergency infrastructure/equipment in section 6.3.4.d.

7.2.5. Special Provisions for Municipal Facilities (POTWs Only)

- a. **Biosolids Requirements.** To implement CWA section 405(d), on February 19, 1993, USEPA promulgated 40 CFR part 503 to regulate the use and disposal of municipal sewage sludge. This regulation was amended on September 3, 1999. The regulation requires that producers of sewage sludge meet certain reporting, handling, and disposal requirements. It is the responsibility of the Permittee to comply with said regulations that are enforceable by USEPA, because California has not been delegated the authority to implement this program. The Permittee is also responsible for compliance with any relevant permits for the generation, transport, and application of biosolids issued by the State Water Board, other regional water boards, another State, or USEPA, to whose jurisdiction the Facility's biosolids will be transported and applied.
- b. **Pretreatment Requirements.** This Order contains pretreatment requirements consistent with applicable effluent limitations, national standards of performance, and toxic and performance effluent standards established pursuant to sections 208(b), 301, 302, 303(d),

304, 306, 307, 403, 404, 405, and 501 of the CWA, and amendments thereto. This permit contains requirements for the implementation of an effective pretreatment program pursuant to section 307 of the CWA; 40 CFR parts 35 and 403; and/or Title 23, CCR section 2233.

- c. **Filter Bypass Requirements.** Conditions pertaining to bypass are contained in Attachment D, Section I. Standard Provisions – Permit Compliance, subsection G. The bypass or overflow of untreated or partially treated wastewater to waters of the State is prohibited, except as allowed under conditions stated in 40 CFR section 122.41(m) and (n). During periods of elevated, wet weather flows, an overflow basin is used to store the excess flow before returning it to the Primary Flow Equalization Basin. In the event that the overflow basin is not able to accommodate any additional wet weather flow, the excess secondary treated wastewater is diverted around the tertiary filters as a necessary means to avoid loss of life, personal injury, or severe property damage. There are no feasible alternatives to this diversion. These anticipated discharges are approved under the bypass conditions when all storage is utilized and the resulting combined discharge of fully treated (tertiary), partially treated (secondary) wastewater, and/or reverse osmosis concentrate complies with the effluent limitations in this Order. (Refer to Standard Provisions I.G.3). The ROWD and additional information submitted constitutes notice of these anticipated bypasses.
- d. **Spill Reporting Requirements.** This Order establishes a reporting protocol for how different types of spills, overflow or bypasses of raw or partially treated sewage from its collection system or treatment plant covered by this Order shall be reported to regulatory agencies. Although State and Los Angeles Water Board staff do not have duties as first responders, this requirement is an appropriate mechanism to ensure that the agencies that do have first responder duties are notified in a timely manner to protect public health and beneficial uses.

As discussed in section 3.5.6. of the Fact Sheet, the Permittee is required to comply with the SSS WDRs. The SSS WDRs require public agencies that own or operate sanitary sewer systems with greater than one mile of pipes or sewer lines to enroll for coverage under the SSS WDRs. The SSS WDRs require agencies to develop sanitary sewer management plans (SSMPs) and report all sanitary sewer overflows (SSOs), among other requirements and prohibitions.

Furthermore, the SSS WDRs contain requirements for operation and maintenance of collection systems and for reporting and mitigating sanitary sewer overflows. Inasmuch as the Discharger's collection system is part of the system that is subject to this Order, certain standard provisions are applicable as specified in Provisions, section 7.3.5. For instance, the 24-hour reporting requirements in this

Order are not included in the SSS WDRs. The Discharger must comply with both the SSS WDRs and this Order.

In the past, the Los Angeles Water Board has experienced loss of recreational use in coastal beaches and in recreational areas as a result of major sewage spills. The SSS WDRs requirements are intended to prevent or minimize impacts to receiving waters as a result of spills.

The requirements of this Order are more stringent than the SSS WDRs because in addition to the SSS WDRs requirements, this NPDES permit requires water quality monitoring of the receiving water when the spill reaches the surface water.

8. RATIONALE FOR MONITORING AND REPORTING REQUIREMENTS

Section 308(a) of the federal Clean Water Act and sections 122.41(h), (j)-(l), 122.44(i), and 122.48 of Title 40 of the Code of Federal Regulations (40 CFR) require that all NPDES permits specify monitoring and reporting requirements. CWC section 13383 also authorizes the Los Angeles Water Board to establish monitoring, reporting, and recordkeeping requirements. The MRP establishes monitoring, reporting, and recordkeeping requirements that implement federal and state requirements to demonstrate compliance with the conditions of the NPDES permit, ensure compliance with State water quality standards, and mandate participation in regional monitoring and/or area-wide studies. The following provides the rationale for the monitoring and reporting requirements in the MRP for this facility.

8.1. Influent Monitoring

Influent monitoring is required:

- To determine compliance with the permit conditions for BOD₅ 20°C and suspended solids removal rates.
- To assess treatment plant performance.
- To assess effectiveness of the Pretreatment Program.
- As a requirement of the PMP.

8.2. Effluent Monitoring

The Permittee is required to conduct monitoring of the permitted discharge to evaluate compliance with permit limitations and conditions. Monitoring requirements are specified in the Monitoring and Reporting Program (Attachment E). This provision requires compliance with the Monitoring and Reporting Program, and is based on 40 CFR § 122.48, 122.44(i), 122.41(j), 122.62, 122.63, and 124.5. Monitoring and reporting are requirements in all NPDES permits (including this Order) issued by the Los Angeles Water Board. In addition to containing definitions of terms, the Monitoring and Reporting Program specifies general sampling/analytical protocols and the requirements of reporting spills, violations, and routine monitoring data in accordance with NPDES regulations, the California Water Code, and Los Angeles Water Board

policies. The Monitoring and Reporting Program also contains a sampling program specific to the Permittee's wastewater treatment plant. It defines the sampling stations and frequency, pollutants to be monitored, and additional reporting requirements. Pollutants to be monitored include all pollutants for which effluent limitations are specified.

Monitoring for those pollutants expected to be present in the discharge from the Facility and as required in the Ocean Plan is included in the Monitoring and Reporting Program (Attachment E).

The monitoring requirements for PFAS compounds are consistent with [EPA's PFAS Action Plan](#) (dated February 2019, [PFAS Strategic Roadmap](#) (October 2021) that describe that EPA's goals of reducing PFAS discharges to waterways, and [USEPA's memo dated December 5, 2022](#) updating guidance for addressing PFAS discharges in NPDES permits and/or in pretreatment programs.

The monitoring requirements for PCBs includes monitoring for PCBs as Aroclors and PCBs as congeners. The monitoring for PCBs as Aroclors is being used for comparison with performance goals specified in Table 4 of the Order. This Order requires the monitoring for PCBs as Aroclors to be conducted using [Method 608.3](#), which is currently the only approved analytical method in 40 CFR Part 136 for monitoring PCBs in wastewater. However, Aroclor only analysis may underestimate the PCB concentrations in wastewater because PCBs are subject to weathering and often does not resemble the Aroclor mixtures. Monitoring for individual congeners provides a more accurate measure of the presence and extent of PCBs present in the discharge and/or the receiving water. Therefore, this Order also requires informational monitoring for PCBs as individual congeners using US EPA method 1668c.

There are currently no approved methods for monitoring PCBs as congeners in Part 136. As such, this Order requires congener monitoring using US EPA Method 1668c for consistency with other permits and monitoring programs in the region. On December 6, 2024, US EPA proposed a draft rule that would promulgate US EPA method 1628 as a new US EPA method for congener monitoring in Part 136. This rule is not final. If US EPA Method 1628, or any other congener based analytical method, is incorporated into Part 136, the Order authorizes use of this method in lieu of US EPA Method 1668c.

Accelerated chronic toxicity monitoring, which serves as an indicator of persistent toxicity, is also included in this Order consistent with section 7.1 in Appendix III of the Ocean Plan.

Monitoring frequency for the constituents is based on historic monitoring frequency, Best Professional Judgment, and the following criteria:

Criterion 1: Monthly monitoring will be considered for those pollutants with reasonable potential to exceed water quality objectives (monitoring has shown an exceedance of the objectives);

Criterion 2: Quarterly monitoring will be considered for those pollutants in which some or all historic effluent monitoring data detected the pollutants, but without reasonable potential to exceed water quality objectives; and

Criterion 3: Semiannual monitoring will be considered for those pollutants in which all the historic effluent monitoring data are not detected and do not have reasonable potential to exceed water quality objectives.

Table F- 11. Effluent Monitoring Frequency

Parameter	Monitoring Frequency R4-2025-0272 (002)
Total residual chlorine	Daily, Continuous
Total waste flow	Continuous
Turbidity	Continuous, Weekly
Total and fecal coliform	Daily
<i>Enterococci</i>	Weekly
Settleable solids	Daily
BOD ₅ 20°C	Daily
TSS	Daily
Dissolved oxygen	Daily
Salinity	Monthly
Dissolved sulfide	Monthly
Temperature	Weekly
pH	Weekly
Oil and grease	Monthly
Phosphate as P	Monthly
Total Phosphorous	Monthly
Total Ammonia	Monthly
Nitrate nitrogen	Monthly

Parameter	Monitoring Frequency R4-2025-0272 (002)
Nitrite nitrogen	Monthly
Nitrate plus nitrite	Monthly
Organic nitrogen	Monthly
Total nitrogen	Monthly
Total Kjeldahl nitrogen	Monthly
Cyanide	Semiannually
Chronic toxicity	Monthly
Copper	Semiannually
Mercury	Semiannually
Nickel	Semiannually
Selenium	Semiannually
Silver	Semiannually
Total Chromium	Semiannually
Zinc	Semiannually
TCDD Equivalents	Semiannually
Radioactivity (Including gross alpha, gross beta, combined radium-226 and radium-228, tritium, strontium-90 and uranium)	Semiannually
PCBs as congeners	annually
PCBs as Aroclors	annually
PFAS	Quarterly

Parameter	Monitoring Frequency R4-2025-0272 (002)
Remaining pollutants in Ocean Plan Table 3 (excluding acute toxicity)	Semiannually

8.3. Whole Effluent Toxicity Testing Requirements

The rationale for WET monitoring has been discussed extensively in Section 4.3.5. of this Fact Sheet.

8.4. Receiving Water Monitoring

8.4.1. Surface Water and Benthic Monitoring

Receiving water, benthic infauna, and sediment chemistry monitoring are required to determine compliance with water quality objectives, to characterize the water quality of the receiving water, and ensure beneficial uses are protected. Requirements are based on the Ocean Plan. The conceptual framework for the receiving water program has three components that comprise a range of spatial and temporal scales: (a) core monitoring; (b) regional monitoring; and (c) special studies. Detailed information can be found in Section 8 of the monitoring and reporting program in Attachment E.

8.4.2. Groundwater - Not Applicable

8.5. Other Monitoring Requirements

8.5.1. Ocean Outfall and Diffuser Inspection

This survey investigates the condition of the outfall structures to determine if the structures are in serviceable condition to ensure their continued safe operation. The data collected will be used for a periodic assessment of the integrity of the outfall pipes and ballasting system.

8.5.2. Biosolids and Sludge Management

Attachment H establishes monitoring and reporting requirements for the storage, handling and disposal practices of biosolids/sludge generated from the operation of this POTW.

8.5.3. Discharge Monitoring Report Quality Assurance (DMR-QA) Study Program

Under the authority of section 308 of the CWA (33 U.S.C. § 1318), USEPA requires major and selected minor dischargers under the NPDES Program to participate in the annual DMR-QA Study Program. The DMR-QA Study evaluates the analytical ability of laboratories that routinely perform or support self-monitoring analyses required by NPDES permits. There are two options to satisfy the requirements of the DMR-QA Study Program: (1)

The Discharger can obtain and analyze a DMR-QA sample as part of the DMR-QA Study; or (2) Per the waiver issued by USEPA to the State Water Board, the Discharger can submit the results of the most recent Water Pollution Performance Evaluation Study from its own laboratories or its contract laboratories. A Water Pollution Performance Evaluation Study is similar to the DMR-QA Study. Thus, it also evaluates a laboratory's ability to analyze wastewater samples to produce quality data that ensure the integrity of the NPDES Program. The Discharger shall ensure that the results of the DMR-QA Study or the results of the most recent Water Pollution Performance Evaluation Study are submitted annually to the State Water Board. The State Water Board's Quality Assurance Program Officer will send the DMR-QA Study results or the results of the most recent Water Pollution Performance Evaluation Study to USEPA's DMR-QA Coordinator and Quality Assurance Manager.

- 8.5.4.** The volumetric wastewater and recycled water monitoring and reporting requirements are based on the Recycled Water Policy, as described in Section 4.7.2. of this Fact Sheet.

9. CONSIDERATION OF NEED TO PREVENT NUISANCE AND WATER CODE SECTION 13241 FACTORS.

The requirements in section 4.3 of this Order implement state law only; consequently, violations of these requirements are not subject to the enforcement remedies that are available for federal CWA NPDES violations. As required by Water Code section 13263, the Los Angeles Water Board has considered the need to prevent nuisance and the factors listed in Water Code section 13241 in establishing the state law provisions/requirements. The Los Angeles Water Board finds, on balance, that the state law requirements in this Order are reasonably necessary to prevent nuisance and to protect beneficial uses identified in the Basin Plan.

- 9.1. Need to prevent pollution or nuisance:** In establishing effluent limitations in this Order, the Los Angeles Water Board has considered state law requirements to prevent pollution or nuisance as defined in section 13050, subdivisions (l) and (m), of the Water Code. The only requirement in this Order that is based on State law is an investigation of the feasibility of recycling, conservation, and/or alternative disposal methods for wastewater (such as groundwater injection), and/or capture and treatment of dry-weather urban runoff and stormwater on a permissive basis for beneficial reuse. This report will allow the Los Angeles Water Board to determine if and how to prevent pollution from any recycling or conservation program that might be implemented in the future.
- 9.2. Past, present, and probable future beneficial uses of water:** Chapter 2 of the Basin Plan identifies designated beneficial uses for water bodies in the Los Angeles Region. Beneficial uses of water relevant to this Order are also identified above in Tables F-4 and F-5. The Los Angeles Water Board has taken this factor into account in establishing effluent limitations in the Order, including the requirement set forth in section 4.3 of the Order. The Recycled Water Feasibility Investigation

will not affect the past or present beneficial uses of water, but it could affect the future beneficial uses of water. Should the Discharger be required to implement the feasibility investigation, any recycled water that may be produced will have to meet all legal requirements, including those set forth in Title 22 to protect beneficial uses. The requirements herein protect the past, present and probable future beneficial uses of the water.

- 9.3. Environmental characteristics of the hydrographic unit under consideration, including the quality of water available thereto: The environmental characteristics are discussed in the Region's Watershed Management Initiative Chapter, as well as available in State of the Watershed reports and the State's CWA Section 303(d) List of impaired waters. The environmental characteristics of the hydrographic unit, including the quality of available recycled water that may be produced as a result of the feasibility investigation, will be improved by compliance with the requirements of this Order. Additional information on the [Miscellaneous Ventura Coastal Watershed Management Area](https://www.waterboards.ca.gov/losangeles/water_issues/programs/regional_programs/Water_Quality_and_Watersheds/ws_miscventura.shtml) is available at: (https://www.waterboards.ca.gov/losangeles/water_issues/programs/regional_programs/Water_Quality_and_Watersheds/ws_miscventura.shtml).
- 9.4. Water quality conditions that could reasonably be achieved through the coordinated control of all factors which affect water quality in the area: The water quality standards necessary to protect beneficial uses of the waterbodies in the Miscellaneous Ventura Coastal Watershed Management Area can reasonably be achieved through the coordinated control of all factors that affect water quality in the area, including the conservation of water and/or the production of recycled water contemplated in the feasibility investigation. For example, the water quality in the watershed could be improved through the addition of recycled water that meets California Code of Regulations, Title 22 standards. The Los Angeles Water Board has taken this factor into account in establishing effluent limitations in the Order.
- 9.5. Economic considerations: The Los Angeles Water Board has considered the economic impact of requiring certain provisions pursuant to state law, which would be the cost of conducting the feasibility investigation for recycling, conservation, and/or alternative disposal methods for wastewater (such as groundwater injection), and/or capture and treatment of dry-weather urban runoff and stormwater on a permissive basis for beneficial reuse. Any additional costs associated with producing the feasibility investigation are reasonably necessary to prevent nuisance and protect beneficial uses identified in the Basin Plan, and to increase the water supply. The failure to consider conservation or recycled water could result in the loss of, or impacts to, beneficial uses would have a detrimental economic impact, particularly given the effects on beneficial uses and supplies of water from the drought and climate change. Economic considerations related to costs of compliance are therefore not sufficient, in the Los Angeles Water Board's determination, to justify failing to prevent nuisance and protect beneficial uses.
- 9.6. Need for developing housing within the region: The Los Angeles Water Board does not anticipate that the state law requirements in this Order will adversely impact the need for housing in the area. The region generally relies on imported water to meet

many of its water resource needs. Imported water makes up a vast majority of the region's water supply, with local groundwater, local surface water, and reclaimed water making up the remaining amount. This Order helps address the need for housing by controlling pollutants in discharges, which will improve the quality of local surface and ground water, as well as water available for recycling and reuse. This in turn may reduce the demand for imported water thereby increasing the region's capacity to support continued housing development. A reliable water supply for future housing development is required by law, and with less imported water available to guarantee this reliability, an increase in local supply is necessary. Therefore, the potential for developing housing in the area will be facilitated by the conservation of water, or reuse or production of, recycled water that may result from the feasibility investigation.

- 9.7. Need to develop and use recycled water: The State Water Board's Recycled Water Policy requires the Los Angeles Water Board to encourage the use of recycled water. In addition, as discussed immediately above, a need to develop and use recycled water exists within the region, especially during times of drought. To encourage recycling, the Permittee is required by this Order to continue to explore the feasibility of recycling to maximize the beneficial reuse of tertiary treated effluent and to report on its recycled water production and use. The Discharger shall submit an update to this feasibility investigation as part of the submittal of the Report of Waste Discharge (ROWD) for the next permit renewal.

10. PUBLIC PARTICIPATION

The Los Angeles Water Board has considered the issuance of WDRs that will serve as an NPDES permit for the Ventura WRF. As a step in the WDRs adoption process, the Los Angeles Water Board staff has developed tentative WDRs and has encouraged public participation in the WDRs adoption process.

10.1. Notification of Interested Persons

The Los Angeles Water Board notified the Permittee and interested agencies and persons of its intent to prescribe WDRs and issue an NPDES permit for the discharge and provided an opportunity to submit written comments and recommendations. The public notice, the fact sheet, and the draft order were posted on the Los Angeles Water Board's home page at [Tentative Orders / Permits | Los Angeles Regional Water Quality Control Board \(ca.gov\)](https://www.waterboards.ca.gov/losangeles/board_decisions/tentative_orders/index.html) (https://www.waterboards.ca.gov/losangeles/board_decisions/tentative_orders/index.html) under the "Individual NPDES" heading. Permittee notification was provided by (to be provided after completion). In addition, interested agencies and persons were notified through a transmittal email to the Discharger, being included in the email transmission, for the Los Angeles Water Board's intention to prescribe WDRs for the discharge.

The public had access to the agenda and any changes in dates and locations through the Los Angeles Water Board's website at [Agendas | Los Angeles Regional Water Quality Control Board \(ca.gov\)](http://www.waterboards.ca.gov/losangeles/board_info/agenda/index.html) (http://www.waterboards.ca.gov/losangeles/board_info/agenda/index.html).

10.2. Written Comments

Interested persons were invited to submit written comments concerning tentative WDRs as provided through the notification process. Comments were due either in person or by mail to the Executive Office at the Los Angeles Water Board at the address on the cover page of this Order, or by email submitted to: losangeles@waterboards.ca.gov with a copy to danielle.robinson@waterboards.ca.gov.

To be fully responded to by staff and considered by the Los Angeles Water Board, the written comments were due at the Los Angeles Water Board office by **5:00 p.m. on November 13, 2025**.

Pursuant to section 648.4, title 23 of the California Code of Regulations, written comments or evidence submitted after the comment deadline will not be allowed or accepted into the Administrative Record without a showing of good cause for the delay, and in no event if any party or the Board would be unduly prejudiced by the late submittal including if staff or the Board would not have an adequate opportunity to review, consider, and respond to the comments or evidence. Additionally, if the Board receives only supportive comments, the permit may be placed on the Board's consent calendar and approved without oral testimony.

10.3. Public Hearing

The Los Angeles Water Board held a public hearing on the tentative WDRs during its regular Board meeting on the following date and time, and at the following location:

Date: December 18, 2025
Time: 9:00 a.m.
Location: 320 W 4th Street, Carmel Room
Los Angeles, California 90013

A virtual platform was also available for those who wanted to join online, and directions were provided in the agenda to register or to view the Board meeting.

Additional information about the location of the hearing and options for participating were available 10 days before the hearing. Any person desiring to receive future notices about any proposed Board action regarding this Discharger, please contact Danielle Robinson at danielle.robinson@waterboards.ca.gov, to be included on the email list.

Interested persons were invited to attend. At the public hearing, the Los Angeles Water Board heard testimony pertinent to the discharge, WDRs and NPDES permit. For accuracy of the record, testimony was requested in writing.

10.4. Review of Waste Discharge Requirements

Any person aggrieved by this action of the Los Angeles Water Board may petition the State Water Board to review the action in accordance with Water Code section 13320 and California Code of Regulations, title 23, section 2050 and following. The State Water Board must receive the petition by 5:00 pm within 30 calendar days of the date of adoption of this Order at the following address, except that if the thirtieth day following the date of this Order falls on a Saturday, Sunday, or State Holiday, the petition must be received by the State Water Board by 5:00 pm on the next business day:

State Water Resources Control Board
Office of Chief Counsel
P.O. Box 100, 1001 I Street
Sacramento, CA 95812-0100

Or by email at waterqualitypetitions@waterboards.ca.gov.

For [instructions on how to file a petition for review](#), see http://www.waterboards.ca.gov/public_notices/petitions/water_quality/wqpetition_instr.shtml.

Filing a petition does not automatically stay any of the requirements of this Order.

10.5. Information and Copying

The Report of Waste Discharge (ROWD), other supporting documents, and comments received are on file and may be inspected at the addresses below any time between 8:30 a.m. and 4:45 p.m., Monday through Friday. Copying of documents may be arranged through the Los Angeles Water Board at the address below or by calling (213) 576-6600.

Los Angeles Regional Water Quality Control Board
320 W 4th Street, Suite 200
Los Angeles, CA 90013-2343

10.6. Register of Interested Persons

Any person interested in being placed on the mailing list for information regarding the WDRs and NPDES permit should contact the Los Angeles Water Board, reference this facility, and provide a name, address, and phone number.

10.7. Additional Information

Requests for additional information or questions regarding this Order should be directed to Danielle Robinson at (213) 576-6656 or at Danielle.Robinson@waterboards.ca.gov.

ATTACHMENT G – TOXICITY REDUCTION EVALUATION (TRE) WORK PLAN

1. Gather and Review Information and Data
 - 1.1. Facility Operation and Performance
 - 1.2. Facility Influent and Pretreatment Program
 - 1.3. Effluent Data, including Toxicity Results
 - 1.4. Sludge (Biosolids) Data
2. Evaluate Facility Performance
3. Conduct Toxicity Identification Evaluation (TIE)
4. Evaluate Sources and In-Plant Controls
5. Implement Toxicity Control Measures
6. Conduct Confirmatory Toxicity Testing

ATTACHMENT H – BIOSOLIDS AND SLUDGE MANAGEMENT

(Note: “Biosolids” refers to non-hazardous sewage sludge as defined in 40 CFR §503.9. Sewage sludge that is hazardous, as defined in 40 CFR part 261, must be disposed of in accordance with the Resource Conservation and Recovery Act (RCRA).) If there is any conflict between requirements stated in this attachment and provisions stated in the Waste Discharge Requirements (WDRs) or the Estuary Discharge Permit, Order No R4-2020-0024 (NPDES No. CA0053651), the more stringent requirements will prevail.

1. GENERAL REQUIREMENTS

- 1.1. All biosolids generated by the Permittee shall be reused or disposed of in compliance with the applicable portions of:
 - 1.1.1. 40 CFR part 503: for biosolids that are land applied, placed in surface disposal sites (dedicated land disposal sites or monofills), or incinerated; 40 CFR § 503 Subpart B (land application) applies to biosolids placed on the land for the purposes of providing nutrients or conditioning the soil for crops or vegetation. 40 CFR § 503 Subpart C (surface disposal) applies to biosolids placed on land for the purpose of disposal.
 - 1.1.2. 40 CFR part 258: for biosolids disposed of in a municipal solid waste landfills.
 - 1.1.3. 40 CFR part 257: for all biosolids use and disposal practices not covered under 40 CFR parts 258 or 503.
- 1.2. The Permittee is responsible for assuring that all biosolids from its facility are used or disposed of in accordance with 40 CFR part 503, whether the Permittee uses or disposes of the biosolids itself or transfers their biosolids to another party for further treatment, reuse, or disposal. The Permittee is responsible for informing subsequent preparers, applicers, and disposers of requirements they must meet under 40 CFR part 503.
- 1.3. Duty to mitigate: The Permittee shall take all reasonable steps to prevent or minimize any biosolids use or disposal which may adversely impact human health or the environment.
- 1.4. No biosolids shall be allowed to enter wetland or other waters of the United States.
- 1.5. Biosolids treatment, storage, and use or disposal shall not contaminate groundwater.
- 1.6. Biosolids treatment, storage, use or disposal shall not create a nuisance such as objectionable odors or flies.
- 1.7. The Permittee shall assure that haulers transporting biosolids off site for further treatment, storage, reuse, or disposal take all necessary measures to keep the biosolids contained.

- 1.8. If biosolids are stored for over two years from the time they are generated, the Permittee must ensure compliance with all the requirements for surface disposal under 40 CFR part 503 Subpart C, or must submit a written request to USEPA with the information in part 503.20(b), requesting permission for longer temporary storage.
- 1.9. Sewage sludge containing more than 50 mg/kg PCBs shall be disposed of in accordance with 40 CFR part 761.
- 1.10. Any off-site biosolids treatment, storage, use, or disposal site operated by the Permittee within Region 4 (Los Angeles Region of RWQCB) that is not subject to its own Waste Discharge Requirements shall have facilities adequate to divert surface runoff from the adjacent area, to protect the site boundaries from erosion, and to prevent any conditions that would cause drainage from the materials in the disposal site to escape from the site. Adequate protection is defined as protected from at least a storm or flood having a 1-percent chance of occurring in a 24-hour period in any given year and from the highest tidal stage that may occur.
- 1.11. There shall be adequate screening at the plant headworks and/or at the biosolids treatment units to ensure that all pieces of metal, plastic, glass, and other inert objects with a diameter greater than 3/8 inches are removed.

2. INSPECTION AND ENTRY

The Los Angeles Water Board, USEPA or an authorized representative thereof, upon the presentation of credentials, shall be allowed by the Permittee, directly or through contractual arrangements with their biosolids management contractors, to:

- 2.1. enter upon all premises where biosolids are produced by the Permittee and all premises where Permittee biosolids are further treated, stored, used, or disposed, either by the Permittee or by another party to whom the Permittee transfers the biosolids for further treatment, storage, use, or disposal;
- 2.2. have access to and copy any records that must be kept under the conditions of this permit or of 40 CFR part 503, by the Permittee or by another party to whom the Permittee transfers the biosolids for further treatment, storage, use, or disposal; and
- 2.3. inspect any facilities, equipment (including monitoring and control equipment), practices, or operations used in the production of biosolids and further treatment, storage, use, or disposal by the Permittee or by another party to whom the Permittee transfers the biosolids for further treatment, storage, use, or disposal.

3. MONITORING

- 3.1. Biosolids shall be monitored for the metals required in 40 CFR § 503.16 (for land application) or § 503.26 (for surface disposal), using the methods in "Test

Methods for Evaluating Solids Waste, Physical/Chemical Methods" (SW-846), as required in 503.8(b)(4), at the following minimum frequencies:

Amount of Sewage Sludge (Metric Tons per 365 days)	Frequency
Greater than 0 but less than 290	Once per year
Equal to or greater than 290 but less than 1,500	Once per quarter
Equal to or greater than 1,500 but less than 15,000	Once per 60 days
Equal to or greater than 15,000	Once per month

For accumulated, previously untested biosolids, the Permittee shall develop a representative sampling plan, which addresses the number and location of sampling points, and collect representative samples.

Test results shall be expressed in milligrams pollutant per kilogram biosolids on a 100% dry weight basis.

Biosolids used for land application shall be tested for organic nitrogen, ammonia nitrogen, and nitrate nitrogen at the frequencies required above.

- 3.2. Biosolids shall be monitored for the following constituents at the frequency stipulated in 40 CFR § 503.16: arsenic, cadmium, chromium, copper, lead, mercury, molybdenum, nickel, selenium, zinc, organic nitrogen, ammonia nitrogen, and total solids. If biosolids are removed for use or disposal on a routine basis, sampling should be scheduled for regular intervals throughout the year. If biosolids are stored for an extended period prior to use or disposal, sampling may occur at regular intervals, or samples of the accumulated stockpile may be collected prior to use or disposal, corresponding to the tons accumulated in the stockpile for that period.
- 3.3. Class 1 facilities (facilities with pretreatment programs or others designated as Class 1 by the Regional Administrator) and Federal facilities with > 5 MGD influent flow shall sample biosolids for pollutants listed under section 307(a) of the Clean Water Act (as required in the pretreatment section of the permit for POTWs with pretreatment programs). Class 1 facilities and Federal Facilities with > 5 MGD influent flow shall test dioxins/dibenzofurans using a detection limit of < 1 pg/g during their next sampling period if they have not done so within the past 5 years and once per 5 years thereafter.
- 3.4. The biosolids shall be tested annually or more frequently if necessary to determine hazardousness in accordance with Title 22 of the California Code of Regulations, Article 1, Chapter 11, Division 4.5 (section 66261.3).

4. PATHOGEN AND VECTOR CONTROL

- 4.1. Prior to land application, the Permittee shall demonstrate that the biosolids meet Class A or Class B pathogen reduction levels by one of the methods listed in 40 CFR § 503.32. Prior to disposal in a surface disposal site, the Permittee shall demonstrate that the biosolids meet Class B levels or shall ensure that the site is covered at the end of each operating day.

- 4.2. If pathogen reduction is demonstrated using a “Process to Further Reduce Pathogens,” the Permittee shall maintain daily records of the operating parameters used to achieve this reduction. If pathogen reduction is demonstrated by testing for fecal coliform and/or pathogens, samples must be collected at the frequency specified in Table 1 of 40 CFR § 503.16. If Class B is demonstrated using fecal coliform, at least seven grab samples must be collected during each monitoring period and a geometric mean calculated from these samples. The following holding times between sample collection and analysis shall not be exceeded: fecal coliform – 6 hours when cooled to <4 degrees Celsius (extended to 24 hours when cooled to <4 degrees Celsius for Class A composted, Class B aerobically digested, and Class B anaerobically digested sample types); Salmonella spp. Bacteria – 24 hours when cooled to <4 degrees Celsius (unless using Method 1682 – 6 hours when cooled to 10 degrees Celsius); enteric viruses – 6 hours when cooled to <10 degrees Celsius (extended to one month when cooled to <4 degrees Celsius).
- 4.3. For biosolids that are land applied or placed in a surface disposal site, the Permittee shall track and keep records of the operational parameters used to achieve Vector Attraction Reduction requirements in 40 CFR § 503.33 (b).

5. LAND APPLICATION

The Permittee shall ensure that Class A thermophilically digested biosolids are applied at a rate not to exceed the agronomic rate for the crop that is grown.

6. SURFACE DISPOSAL

If biosolids are placed in a surface disposal site (dedicated land disposal site or monofill), a qualified groundwater scientist shall develop a groundwater monitoring program for the site or shall certify that the placement of biosolids on the site will not contaminate an aquifer.

7. NOTIFICATION

The Permittee either directly or through contractual arrangements with their biosolids management contractors shall comply with the following 40 CFR part 503 notification requirements.

7.1. Notification of Non-compliance

The Permittee shall require appliers of their biosolids to notify USEPA Region 9 and their state permitting agency of any noncompliance within 24 hours if the non-compliance may seriously endanger health or the environment. For other instances of non-compliance, the Permittee shall require appliers of their biosolids to notify USEPA Region 9 and their state permitting agency of the non-compliance in writing within 10 working days of becoming aware of the non-compliance.

7.2. Interstate Notification

If bulk biosolids are shipped to another State or to Indian Lands, the Permittee must send written notice within 60 days of the shipment and prior to the initial application of bulk biosolids to the permitting authorities in the receiving State or Indian Land (the USEPA Regional Office for the area and the State/Indian authorities).

7.3. Land Application Notification

A reuse/disposal plan shall be submitted to USEPA Region 9 Coordinator and, in the absence of other state or regional reporting requirements, to the state permitting agency, prior to the use or disposal of any biosolids from this facility to a new or previously unreported site. The plan shall be submitted by the land applier of the biosolids and shall include a description and a topographic map of the proposed site(s) for reuse or disposal, names and addresses of the applier(s) and site owner(s), and a list of any state or local permits which must be obtained. For land application sites, the plan shall include a description of the crops or vegetation to be grown, proposed nitrogen loadings to be used for the crops, a determination of agronomic rates, and a groundwater monitoring plan or a description of why groundwater monitoring is not required.

If the biosolids do not meet 40 CFR § 503.13 Table 3 metals concentration limits, the Permittee must require their land applier to contact the state permitting authority to determine whether bulk biosolids subject to the cumulative pollutant loading rates in 40 CFR § 503.12(b)(2) have been applied to the site since July 20, 1993, and, if so, the cumulative amount of pollutants applied to date, and background concentration, if known. The Permittee shall then notify USEPA Region 9 Coordinator of this information.

For biosolids that are land applied, the Permittee shall notify the applier in writing of the nitrogen content of the biosolids, and the applier's requirements under 40 CFR part 503, including the requirements that the applier certify that the requirement to obtain information in Subpart A, and that the management practices, site restrictions, and any applicable vector attraction reduction requirements Subpart D have been met. The Permittee shall require the applier to certify at the end of 38 months following application of Class B biosolids that those harvesting restrictions in effect for up to 38 months have been met.

7.4. Surface Disposal Notification

Prior to disposal at a new or previously unreported site, the Permittee shall notify USEPA and the State. The notice shall include a description and topographic map of the proposed site, depth to groundwater, whether the site is lined or unlined, site operator and site owner, and any state or local permits. It shall also describe procedures for ensuring grazing and public access restrictions for three years following site closure. The notice shall include a groundwater monitoring plan or description of why groundwater monitoring is not required.

8. REPORTING

The Permittee shall submit an annual biosolids report to USEPA Region 9 Biosolids Coordinator and the Los Angeles Regional Water Quality Control Board by February 19 of each calendar year. The report shall include:

8.1. The amount of biosolids generated that year, in dry metric tons, and the amount accumulated from previous years.

8.2. Results of all pollutant monitoring required in the Monitoring Section above. Results must be reported on a 100% dry weight basis.

8.3. Descriptions of pathogen reduction methods, and vector attraction reduction methods, as required in 40 CFR § 503.17 and 503.27, and certifications.

8.4. Results of any groundwater monitoring or certification by groundwater scientist that the placement of biosolids in a surface disposal site will not contaminate an aquifer.

8.5. Names and addresses of land applicators and surface disposal site operators, and volumes applied (dry metric tons).

8.6. Names and addresses of persons who received biosolids for storage, further treatment, disposal in a municipal waste landfill, deep well injection, or other reuse/disposal methods not covered above, and volumes delivered to each.

8.7. The Permittee shall submit, or require all parties contracted to manage their biosolids to submit, an annual biosolids report to USEPA Region 9 Biosolids Coordinator by February 19 of each year for the period covering the previous calendar year. The report shall include:

Names and addresses of land applicators and surface disposal site operators, name, location (latitude/longitude), and size (hectares) of site(s), volumes applied/disposed (dry metric tons), results of any groundwater monitoring; for land application: biosolids loading rates (metric tons per hectare), nitrogen loading rates (kg/ha), calculated plant available nitrogen, dates of applications, crops grown, dates of seeding and harvesting and certifications that the requirement to obtain information in 40 CFR § 503.12(e)(2), management practices in §503.14, site restrictions in § 503.32(b)(5) have been met; for biosolids exceeding 40 CFR §503.13 Table 3 metals concentrations, the locations of sites where the biosolids were applied and cumulative metals loading at the sites to date; and for closed sites, the date of site closure and certifications of management practiced for three years following site closure.

8.8. The annual biosolids report shall be submitted to USEPA using USEPA's NPDES [Central Data Exchange \(CDX\)](https://cdx.epa.gov/) and can be accessed at <https://cdx.epa.gov/>.

ATTACHMENT I – PRETREATMENT REPORTING REQUIREMENTS

The Discharger is required to submit annual Pretreatment Program Compliance Report (Report) to the Los Angeles Water Board and United States Environmental Protection Agency, Region 9 (USEPA). This Attachment outlines the minimum reporting requirements of the Report. If there is any conflict between requirements stated in this attachment and provisions stated in the Waste Discharge Requirements (WDRs) or the Estuary Discharge Permit, Order No R4-2020-0024 (NPDES No. CA0053651), the more stringent requirements will prevail.

1. Pretreatment Requirements

- 1.1. The Permittee shall be responsible and liable for the performance of all Control Authority pretreatment requirements contained in 40 CFR part 403, including any subsequent regulatory revisions to part 403. Where part 403 or subsequent revision places mandatory actions upon the Permittee as Control Authority but does not specify a timetable for completion of the actions, the Permittee shall complete the required actions within six months from the issuance date of this permit or the effective date of the part 403 revisions, whichever comes later. For violations of pretreatment requirements, the Permittee shall be subject to enforcement actions, penalties, fines and other remedies by the USEPA or other appropriate parties, as provided in the Clean Water Act (CWA). The Los Angeles Water Board or USEPA may initiate enforcement action against a nondomestic user for noncompliance with applicable standards and requirements as provided in the CWA and/or California Water Code.
- 1.2. The Permittee shall implement (or ensure implementation occurs under multijurisdictional agreements under the Permittee's direct oversight) and enforce in its entire service area, including contributing jurisdictions, its approved pretreatment program, and all subsequent revisions which are hereby made enforceable conditions of this Order. The Permittee shall enforce the requirements promulgated under sections 307(b), 307(c), 307(d) and 402(b) of the CWA with timely, appropriate and effective enforcement actions. The Permittee shall cause all nondomestic users subject to federal categorical standards to achieve compliance no later than the date specified in those requirements or, in the case of a new nondomestic user, upon commencement of the discharge.
- 1.3. The Permittee shall perform the pretreatment functions as required in 40 CFR part 403 including, but not limited to:
 - 1.3.1. Implement the necessary legal authorities as provided in 40 CFR part 403.8(f)(1);
 - 1.3.2. Enforce the pretreatment requirements under 40 CFR parts 403.5 and 403.6;
 - 1.3.3. Implement the programmatic functions as provided in 40 CFR part 403.8(f)(2); and

- 1.3.4. Provide the requisite funding and personnel to implement the pretreatment program as provided in 40 CFR part 403.8(f)(3).
- 1.4. The Permittee shall submit an annual report to the Los Angeles Water Board, State Water Resources Control Board (State Water Board), and USEPA Region 9, describing its pretreatment activities over the previous year. In the event the Permittee is not in compliance with any conditions or requirements of this Order, or any pretreatment compliance inspection/audit requirements, then the Permittee shall also include the reasons for noncompliance and state how and when the Permittee shall comply with such conditions and requirements. This annual report shall cover operations from January 1 through December 31 and is due on April 30 of each year. The report shall contain, but not be limited to, the following information:
 - 1.4.1. A summary of analytical results from representative sampling of the publicly owned treatment works (POTW) influent and effluent, as described in Attachment E – Monitoring and Reporting Program, for those pollutants USEPA has identified under section 307(a) of the CWA which are known or suspected to be discharged by nondomestic users. Representative grab sampling shall be conducted for pollutants that may degrade after collection, or where the use of automatic sampling equipment may otherwise result in unrepresentative sampling. Such pollutants include, but are not limited to, cyanide, oil and grease, volatile organic compounds, chlorine, phenol, sulfide, pH, and temperature. Sludge sampling and analysis are covered in the sludge section of this permit. The Permittee shall also provide any influent or effluent monitoring data for nonpriority pollutants which the Permittee believes may be causing or contributing to interference or pass through. Sampling and analysis shall be performed with the techniques described in 40 CFR part 136.
 - 1.4.2. A discussion of upset, interference or pass-through incidents, if any, at the treatment plant which the Permittee knows or suspects were caused by nondomestic users of the POTW system. The discussion shall include the reasons why the incidents occurred, the corrective actions taken and, if known, the name and address of the nondomestic user(s) responsible. The discussion shall also include a review of the applicable pollutant limitations to determine whether any additional limitations, or changes to existing requirements, may be necessary to prevent pass through or interference.
 - 1.4.3. An updated list of the Permittee's Significant Industrial Users (SIUs) including their names and addresses, and a list of deletions, additions and SIU name changes keyed to the previously submitted list. The Permittee shall provide a brief explanation for each change. The list shall identify the SIUs subject to federal categorical standards by specifying which set(s) of standards are applicable to each SIU. The list shall also indicate which SIUs are subject to local limitations.

- 1.4.4. The Permittee shall characterize the compliance status of each SIU by providing a list or table which includes the following information:
 - a. Name of the SIU;
 - b. Category, if subject to federal categorical standards;
 - c. The type of wastewater treatment or control processes in place;
 - d. The number of samples collected, and inspections conducted by the Permittee during the year;
 - e. The number of samples taken by the SIU during the year;
 - f. For an SIU subject to discharge requirements for total toxic organics, whether all required certifications were provided;
 - g. A list of the standards violated during the year. Identify whether the violations were for categorical standards or local limits;
 - h. Whether the facility is in significant noncompliance (SNC) as defined at 40 CFR § 403.8(f)(2)(viii) at any time during the year; and
 - i. A summary of enforcement or other actions taken during the year to return the SIU to compliance. Describe the type of action, final compliance date, and the number of fines and penalties collected, if any. Describe any proposed actions for bringing the SIU into compliance.
- 1.4.5. A brief description of any programs the Permittee implements to reduce pollutants from nondomestic users that are not classified as SIUs.
- 1.4.6. A brief description of any changes in operating the pretreatment program which differ from the previous year including, but not limited to, changes concerning the program's administrative structure, local limits, monitoring program or monitoring frequencies, legal authority, enforcement policy, funding levels, or staffing levels.
- 1.4.7. A summary of the annual pretreatment budget, including the cost of pretreatment program functions and equipment purchases.
- 1.4.8. A summary of activities to involve and inform the public of the program including a copy of the newspaper notice, if any, required under 40 CFR § 403.8(f)(2)(viii).
- 1.4.9. A description of any changes in sludge disposal methods.
- 1.4.10. A discussion of any concerns not described elsewhere in the annual report.
- 1.5. Any substantial modifications to the approved Pretreatment Program, as defined in 40 CFR § 403.18(b), shall be submitted in writing to the Los Angeles Water Board and USEPA and shall not become effective until the Los Angeles Water Board and/or USEPA approval is attained.

- 1.6. Non-industrial Source Control and Public Education Programs. The Permittee shall continue to develop and implement its non-industrial source control program and public education program. The purpose of these programs is to reduce nonindustrial toxic pollutants and pesticides into the POTW. These programs shall be periodically reviewed and addressed in the annual report.

2. LOCAL LIMITS EVALUATION

In accordance with 40 CFR part 122.44(j)(2)(ii), the POTW shall provide a written technical evaluation of the need to revise local limits under 40 CFR part 403.5(c)(1) by the expiration date of the NPDES Order. This written technical evaluation shall be consistent with local limits reviews described in section 7.1 of USEPA's *Local Limits Development Guidance* (EPA 833-R-04-002A, July 2004).

3. SIGNATORY REQUIREMENTS AND REPORT SUBMITTAL

3.1. Signatory Requirements

The annual report must be signed by a principal executive officer, ranking elected official or other duly authorized employee if such employee is responsible for the overall operation of the POTW. Any person signing these reports must make the following certification [40 CFR part 403.6(a)(2)(ii)]:

I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations.

3.2. Report Submittal

The Annual Pretreatment Report shall be submitted electronically using the State Water Board's [California Integrated Water Quality System \(CIWQS\) Program website](http://www.waterboards.ca.gov/ciwqs/index.html) (<http://www.waterboards.ca.gov/ciwqs/index.html>). The CIWQS website will provide additional information for SMR submittal in the event there will be a planned service interruption for electronic submittal.

A copy of the Annual Pretreatment Report must be sent to USEPA electronically to the following address: R9Pretreatment@epa.gov.